

CHAPTER 51

Licensing (Scotland) Act, 1959

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An Act to consolidate certain enactments which relate to licensing in Scotland and to matters connected therewith, with corrections and improvements made under the Consolidation of Enactments (Procedure) Act, 1949.
[9th July, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

LICENSING COURTS AND COURTS OF APPEAL

Constitution of licensing courts and courts of appeal

Burgh licensing courts. 1.—(1) There shall be a separate licensing court (hereafter in this Act referred to as a “burgh licensing court”) for—

- (a) each burgh being a county of a city ;
- (b) each burgh having a population of or exceeding seven thousand ; and
- (c) each burgh having a population of or exceeding four thousand but under seven thousand the magistrates of which had power, immediately before the commencement of the Licensing (Scotland) Act, 1903, to grant certificates for the sale by retail of exciseable liquor under the Licensing (Scotland) Acts, 1828 to 1897.

(2) A burgh licensing court shall consist of the magistrates of the burgh.

County licensing courts. 2.—(1) There shall be a separate licensing court (hereafter in this Act referred to as a “county licensing court”) for—

- (a) each county which is not divided into licensing districts under the next following subsection, and
- (b) each licensing district.

(2) The county council of any county may from time to time determine whether the county shall be divided into districts (in this Act referred to as “licensing districts”) for the purposes of this Act, and such a council shall, on making a determination under this subsection, forthwith notify the Secretary of State of such determination and cause notice thereof to be published in two successive weeks in one or more newspapers circulating in the county.

(3) A county licensing court shall, subject to the provisions of the next following subsection, consist of such number of members as is determined in accordance with the scale set out in

Part I of the First Schedule to this Act, of whom one half shall be justices of the peace for the county and one half county councillors for the county.

PART I
—cont.

(4) Where any burgh, the magistrates of which had power immediately before the commencement of the Licensing (Scotland) Act, 1903, to grant certificates for the sale by retail of exciseable liquor under the Licensing (Scotland) Acts, 1828 to 1897, forms part of a county or of a licensing district for the purposes of this Part of this Act, the licensing court for such county or licensing district shall consist, in addition to the members required by the last foregoing subsection, of such number of members in respect of the said burgh, being magistrates of that burgh, as the Secretary of State may by order determine:

Provided that—

- (a) the number of members in respect of such a burgh shall as nearly as may be bear the same proportion to the number of members required by the last foregoing subsection as the population of that burgh bears to the population of the county or licensing district concerned, excluding every such burgh;
- (b) the number of members in respect of any such burgh shall not exceed the number of magistrates of that burgh;
- (c) there shall be at least one member in respect of each such burgh.

3.—(1) For the purpose of hearing appeals from licensing Courts of courts and applications for the confirmation of new certificates appeal. under this Act there shall be courts (in this Act referred to as “courts of appeal”) constituted as hereafter in this section provided.

(2) The court of appeal from the licensing court for a burgh being a county of a city shall be a separate court consisting of the members of the burgh licensing court and an equal number of justices of the peace for the county of a city.

(3) The court of appeal from the licensing court for a burgh having a population of or exceeding twenty thousand, not being a county of a city, shall be a separate court consisting of the members of the burgh licensing court and an equal number of justices of the peace for the county within which the burgh is situated.

(4) There shall be a separate court in each county which shall be the court of appeal from the licensing courts for all burghs situated within the county which have a population of or exceeding seven thousand but under twenty thousand, and such court of appeal shall consist as to one half of magistrates

PART I
—*cont.*

of the said burghs and as to one half of justices of the peace for the county, and shall be constituted in accordance with the provisions of Part II of the First Schedule to this Act.

(5) There shall be a separate court in each county which shall be the court of appeal from—

- (a) the licensing court for the county or, where the county is divided into licensing districts, the licensing courts for all such districts, and
- (b) the licensing courts for all burghs situated within the county which have a separate licensing court, other than such burghs as are referred to in any of the last three foregoing subsections ;

and such court of appeal shall consist as to one half of justices of the peace for the county and as to one half of county councillors for the county, and shall be so constituted that it contains three more justices and three more county councillors than the licensing court for the county or for the most populous licensing district within the county, as the case may be.

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Election and term of office of members of licensing courts and courts of appeal

Election and term of office of members of county licensing courts and courts of appeal who are justices of the peace or county councillors.

4.—(1) The members of a county licensing court or of a court of appeal, being justices of the peace or county councillors, holding office at the commencement of this Act shall hold office until the day of the first meeting of the county council held after the election of county councillors in the year nineteen hundred and sixty-one, when they shall retire and their successors be elected, and thereafter the term of office of members of a county licensing court or of a court of appeal, being justices of the peace or county councillors, shall be from the day of their election as hereinafter provided until the day of the first meeting of the county council held after the election of county councillors in the third year thereafter.

(2) The members of such a court being justices of the peace shall be elected at a meeting of the justices of the peace to be held on the same day and at the same place as the first meeting of the county council or, in the case of a county of a city, the town council, held after the election of county councillors or, as the case may be, town councillors, in the year nineteen hundred and sixty-one and in every third year thereafter.

(3) The members of such a court being county councillors shall be elected at the first meeting of the county council held after the election of county councillors in the year nineteen hundred and sixty-one and in every third year thereafter.

(4) Notwithstanding any enactment providing that a member of a court appointed by a local authority shall cease to be a

member of the court on ceasing to be a member of the local authority, a member of a county licensing court or of a court of appeal who is a county councillor until the day of the election of county councillors shall continue to be a member of the court until his successor is appointed at the first meeting of the county council held after the election.

PART I
—cont.

(5) A justice of the peace for any county who is not entered in the valuation roll for such county as a proprietor, tenant or occupier of lands and heritages shall not be entitled to vote or submit a motion or, except with leave of the meeting, to take part in a discussion in connection with an election by the justices for the county of representatives from their own number to—

- (a) the licensing court for the county or, where the county is divided into licensing districts, the licensing court for any such district, or
- (b) the court of appeal from the county licensing court or courts, or
- (c) a court of appeal from a burgh licensing court.

5.—(1) A member of a county licensing court or of a court of appeal from a burgh licensing court who holds office as such member in his capacity as magistrate of a burgh shall hold office as aforesaid so long as he remains a magistrate of the burgh.

Election and term of office of members of county licensing courts and courts of appeal who are magistrates.

(2) The members of a county licensing court being magistrates of a burgh and the members of a court of appeal from a burgh licensing court being magistrates of a burgh having a population under twenty thousand shall, where necessary, be elected by the magistrates of the burgh in each case at a meeting to be summoned by the town clerk and to be held on any day within fourteen days after the annual election of town councillors in any year in which a vacancy occurs. The provost or, in his absence, the senior bailie present shall be chairman of such meeting.

6. Any casual vacancy arising in a licensing court or a court of appeal from death, resignation, disqualification or other cause may be filled by the election of a duly qualified person at the first meeting of quarter sessions, statutory or adjourned, or of the county council following upon such vacancy, or at a special meeting of the magistrates, as the case may be, and members so elected shall in each case respectively hold office until the date of the next ordinary meeting for elections by this Act provided.

Casual vacancies in licensing courts and courts of appeal.

7. If in any case not otherwise provided for a licensing court or court of appeal is not elected at the time at which it ought to be elected, or an insufficient number of members is elected for such court, the Secretary of State shall by order provide

Procedure where licensing court or court of appeal not duly elected.

PART I
—cont.

for the holding of a fresh election or fresh elections for supplying any such default or insufficiency in election at such times and in such manner as he may think expedient.

Provision
regarding
defective
elections.

8. No election held in pursuance of this Act shall be deemed to be vitiated in consequence of any technical defect in the proceedings which has not been prejudicial to the interests of any party concerned in such election.

Disposal of
unfinished
business by
original
licensing court
or court
of appeal.

9. For the purposes of—

- (a) any proceeding at the general half-yearly meeting in March in any year of a licensing court; or
- (b) any appeal from any such proceeding; or
- (c) any application for confirmation of a new certificate granted at any such meeting,

which is not finally disposed of before the expiry in that year of the term of office of any of the members of the licensing court or court of appeal, as the case may be, the members of the licensing court or court of appeal in office at the date of the said meeting shall, notwithstanding such expiry, be deemed to constitute the licensing court or court of appeal therefrom, as the case may be.

*Provisions relating to disqualification of members of
licensing courts and courts of appeal*

Disqualifica-
tion of
interested
persons.

10.—(1) A person who is, or who is in partnership with any person as, a brewer, maltster, distiller, or dealer in or retailer of exciseable liquor, shall not act as a member of a licensing court or court of appeal for any purpose under this Act.

(2) A member of a licensing court or court of appeal shall not act in the granting of a certificate in respect of premises of which he is the proprietor or tenant.

(3) If any person knowingly and wilfully contravenes this section he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding fifty pounds.

(4) Anything done by any person in contravention of this section shall be void:

Provided that the grant of a new certificate confirmed under this Act shall not be liable to objection on the ground that the members of the licensing court or court of appeal which granted or confirmed such certificate, or any of them, were not qualified to make such grant or confirmation.

11. A justice of the peace for any county who is not entered in the valuation roll for such county as a proprietor, tenant or occupier of lands and heritages shall not be eligible as a member of—

- (a) the licensing court for the county or, where the county is divided into licensing districts, the licensing court for any such district, or
- (b) the court of appeal from the county licensing court or courts, or
- (c) a court of appeal from the licensing court of a burgh situated within the county.

12. Retiring members of a licensing court or court of appeal shall be eligible for re-election, if otherwise qualified.

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Disqualification of justices not entered in valuation roll.

Members of licensing courts and courts of appeal eligible for re-election.

13. A person shall not be disqualified for acting as a member of a licensing court in relation to any matter by reason only that, as a member of a committee constituted under section seventy-four of this Act or (before the thirtieth day of October, nineteen hundred and fifty-two) as a member of a local advisory committee constituted under section one of the Licensing Act, 1949, he was concerned with the matter in question.

Membership of new town committee not to disqualify member of licensing court.

14. A magistrate or a county councillor shall not be disqualified for election to or membership of a licensing court or court of appeal in that capacity because he is or becomes a justice of the peace, and a justice of the peace shall not be disqualified for such election or membership in that capacity because he is or becomes a magistrate or a county councillor.

Magistrate or county councillor not disqualified by reason of being justice, and vice versa.

15. Where in a burgh any magistrate is disqualified for acting as a member of a licensing court or court of appeal, and no other magistrate is available, the town council may elect a councillor of the burgh so to act in place of such magistrate while he remains a magistrate of the burgh and his disqualification continues.

Election of town councillor to act for disqualified magistrate.

16. If in any burgh having a separate licensing court there is not a sufficient number of members of such court present who are qualified to grant certificates under this Act at any time when such certificates are appointed by this Act to be granted, the county licensing court for the county or licensing district within which such burgh is situated may grant certificates for the burgh at the same time and in the same manner as they are empowered by this Act to grant certificates for the county or licensing district, as the case may be, and in such case any members of the burgh licensing court who are so qualified may act along with the county licensing court in granting such certificates.

County licensing court may grant certificates where members of burgh licensing court disqualified.

PART I
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Expenses of
members of
licensing
courts and
courts of
appeal.

Expenses of members of licensing courts and courts of appeal

17.—(1) Part VI (except section one hundred and fourteen) of the Local Government Act, 1948 (which provides for the payment of certain allowances to members of local authorities and other bodies), shall apply with any necessary modifications to members of licensing courts and courts of appeal as if such courts were among the bodies included in subsection (1) of section one hundred and eleven as read with subsection (3) of section one hundred and eighteen of that Act.

(2) Any amounts by way of allowances payable under the foregoing subsection shall be payable by the council of the county or burgh which is liable under subsection (1) or (2) or (3) of section twenty-one of this Act to defray any necessary expenses in respect of the proceedings of any such court, and subsection (4) of that section shall apply accordingly.

Meetings of licensing courts and courts of appeal

General
half-yearly
meetings of
licensing
courts.

18.—(1) For the purpose of granting certificates under this Act, every licensing court shall in each year hold two general half-yearly meetings.

(2) A burgh licensing court shall hold their general half-yearly meetings on the second Tuesday in March and the third Tuesday in October in each year, and a county licensing court shall hold their general half-yearly meetings on the third Tuesday in March and the last Tuesday in October in each year.

(3) A licensing court may adjourn any general half-yearly meeting from time to time during the period of one month next following the first day of such meeting, but no longer.

Meetings of
courts of
appeal.

19.—(1) A court of appeal shall, if any appeals or applications for the confirmation of new certificates are duly lodged with such court, meet for the purpose of hearing such appeals or applications on a date not later than one month after the last day of the general half-yearly meeting of the licensing court concerned.

(2) Subject to the provisions of the foregoing subsection a court of appeal may make regulations with respect to their meetings.

Place of
meeting of
licensing
courts and
courts of
appeal.

20.—(1) The meetings of a burgh licensing court shall be held in the burgh.

(2) The meetings of a county licensing court shall be held at such place as the county council may determine, and the county council shall publish by advertisement notice of the place of any such meeting.

(3) The meetings of a court of appeal from the licensing court for a burgh being a county of a city or from the licensing court for a burgh having a population of or exceeding twenty thousand, not being a county of a city, shall be held in such burgh.

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(4) The meetings of every court of appeal other than those specified in the last foregoing subsection shall be held at such place or places as the county council may determine, and the county council shall publish by advertisement notice of the place of any such meeting.

21.—(1) The town council of every royal or parliamentary burgh having a separate licensing court shall provide accommodation for the meetings, and otherwise defray any necessary expenses in respect of the proceedings, of the licensing court for that burgh. Expenses, etc., of meetings of licensing courts and courts of appeal.

(2) The county council of every county shall provide accommodation for the meetings, and otherwise defray any necessary expenses in respect of the proceedings, of—

- (a) the county licensing court or, where the county is divided into licensing districts, the county licensing court for each such district ; and
- (b) the burgh licensing court for each police burgh situated within the county and having a separate licensing court.

(3) Accommodation for the meetings of a court of appeal shall be provided, and any necessary expenses in respect of the proceedings of such a court shall be defrayed—

- (a) in the case of the court of appeal from the licensing court of a royal or parliamentary burgh having a population of or exceeding twenty thousand, by the town council of that burgh ;
- (b) in the case of the court of appeal from the licensing court of any other burgh, by the county council of the county within which that burgh is situated ;
- (c) in the case of the court of appeal from a county licensing court, by the county council of the county within which the said licensing court has jurisdiction.

(4) Every royal or parliamentary burgh which, for the purposes of this Part of this Act, forms part of a county or licensing district shall contribute to the county fund in aid of expenditure paid out of that fund in respect of the meetings and proceedings of the county licensing court for the licensing area within which such burgh is situated and the court of appeal therefrom, and every royal or parliamentary burgh having a population of or exceeding four thousand but under twenty thousand shall contribute to the county fund in aid of expenditure paid out of that fund in respect of the meetings and proceedings of the court of appeal from the burgh licensing court, but save as aforesaid no royal or parliamentary burgh shall be liable to contribute to the county fund in aid of any expenditure paid out of that fund in respect of the meetings or proceedings of a licensing court or court of appeal.

PART I

—cont.

General half-yearly meetings of licensing courts to be held in public.

22. Every general half-yearly meeting of a licensing court shall be held in public.

Procedure of licensing courts and courts of appeal

Chairman.

23.—(1) Every licensing court and court of appeal shall elect annually one of their number to be chairman of the court, and until a chairman is elected, or if the chairman is absent from any meeting, the court shall elect one of their number present at the meeting to be chairman of that meeting.

(2) Where on the election of a chairman an equal number of votes is given for two or more persons, the meeting shall determine by lot which of those persons shall be the chairman.

Quorum.

24.—(1) One half of the members of a licensing court or court of appeal (and in no case less than two members) shall be a quorum.

(2) The chairman of a licensing court or court of appeal or, in his absence, the clerk to such court, may, if a quorum is not present for any meeting of the court, call a further meeting in place of the meeting not held.

Licensing courts and courts of appeal may act notwithstanding vacancy.

25. A licensing court or court of appeal may act notwithstanding any vacancy, if a quorum is present.

Voting.

26. Subject to the provisions of subsection (2) of section twenty-three of this Act, at any meeting of a licensing court or court of appeal the chairman shall, in a case of equality in voting, have a second or casting vote:

Provided that at a meeting of a licensing court the chairman shall not have a second or casting vote on an application for a new certificate, and such an application shall be granted by such court only by a majority of the members thereof present and voting.

Witnesses.

27.—(1) Any member of a licensing court or court of appeal may, in any proceedings under this Act, grant warrant to cite witnesses on behalf of any party interested, and any such court or any member thereof may, in any such proceedings, examine such witnesses on oath, and may do anything necessary for the proper hearing and determination of the matter.

(2) Where a witness after being duly cited to appear before a licensing court or court of appeal fails without reasonable excuse to appear at the meeting of such court fixed for his attendance, the court may, upon proof that he has been duly

cited at least twenty-four hours before such meeting, grant warrant for his apprehension and committal to prison until he appears and gives evidence before the court or until he finds security to appear and give evidence. Such a warrant shall be signed by the chairman of the meeting and counter-signed by the clerk to the court.

(3) If any witness after being duly cited to appear before a licensing court or court of appeal fails without reasonable excuse so to appear, or on appearing refuses to be examined on oath, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding five pounds.

(4) If any witness while under examination on oath before a licensing court or court of appeal prevaricates or wilfully conceals the truth, such court may, without any formal complaint and in a summary manner, order the person so offending to be imprisoned for a period not exceeding sixty days, or to pay a fine not exceeding five pounds, and the sentence awarding such penalty shall set out shortly the nature of the evidence and shall be signed by the chairman of the meeting and counter-signed by the clerk to the court.

(5) In this section references to a witness shall include references to a haver.

Clerk to licensing courts and courts of appeal

28.—(1) The town clerk of a burgh having a separate licensing court shall be clerk to that court.

(2) The clerk of the peace for any county shall be clerk to the county licensing court or, where the county is divided into licensing districts, to the county licensing court for each such district.

(3) The clerk of the peace for any county or county of a city shall be clerk to every court of appeal having jurisdiction within the county or, as the case may be, to the court of appeal from the licensing court of the county of a city.

29.—(1) The Court of Session may, on the application of the Lord Advocate, by act of sederunt prescribe the fees payable to a sheriff clerk or town clerk for anything done under this Act, or to a clerk of the peace for anything done under this Act or otherwise; and any such act of sederunt shall have effect notwithstanding any provision of this Act or of any Act in force on the first day of January, nineteen hundred and four; and where a fee has been prescribed under this section for anything done by any such clerk, such clerk shall not demand or receive any greater or additional fee or any other reward for doing that thing.

(2) If any such clerk demands or receives any greater or additional fee or any other reward for anything done under this Act than is authorised by or under this Act, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding five pounds.

Clerk to
licensing
courts and
courts of
appeal.

Fees payable
to clerk.

PART I
—cont.

(3) The power of the Court of Session to make acts of sederunt under this section shall be exercisable by statutory instrument, and the Statutory Instruments Act, 1946, shall apply to a statutory instrument containing an act of sederunt so made by the Court in like manner as if the act of sederunt had been made by a Minister of the Crown.

Clerk to
licensing
court, etc.,
not to act
professionally
in licensing
matters.

30.—(1) The clerk to a licensing court shall not, himself or by his partner or clerk, act as solicitor to, or agent for, any person in any proceedings under this Act before the said licensing court or before the court of appeal from that licensing court.

(2) The clerk to a court of appeal shall not, himself or by his partner or clerk, act as solicitor to, or agent for, any person in any proceedings under this Act before the said court of appeal or before any licensing court from which an appeal may be taken under this Act to that court of appeal.

(3) A procurator fiscal, a prosecutor ordinarily acting in a justice of the peace court or a burgh court, or a person appointed under subsection (1) of section one hundred and ninety of this Act for the purpose of prosecuting offences under this Act, shall not, himself or by his partner or clerk, act as solicitor to, or agent for, any person in any proceedings under this Act before a licensing court or court of appeal having jurisdiction in the district for which he acts or any part thereof.

(4) If any person contravenes the provisions of this section he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding one hundred pounds.

Supplementary

Supplementary
and local
provisions.

31.—(1) For the purposes of this Part of this Act—

(a) the burgh of Banff and the burgh of Macduff shall be deemed to form one burgh of Banff and Macduff, and the magistrates of the said burghs shall be deemed to be the magistrates of the burgh so formed, and the meetings of the licensing court for such burgh shall be held in the burgh of Banff, and the town clerk of the burgh of Banff shall be clerk to such licensing court ;

(b) the burgh of Pittenweem and the burgh of Kilrenny, Anstruther Easter and Anstruther Wester shall be deemed to form one royal burgh, and the magistrates of the said burghs shall be deemed to be the magistrates

PART I
—cont.

of the burgh so formed, and the meetings of the licensing court for such burgh shall, except as otherwise appointed by that court, be held in the burgh of Kilrenny, Anstruther Easter and Anstruther Wester, and the town clerk of the burgh of Kilrenny, Anstruther Easter and Anstruther Wester shall be clerk to such licensing court ;

- (c) every burgh other than those referred to in subsection (1) of section one of this Act shall be deemed to form part of the county and licensing district (if any) within which it is situated ;
- (d) the boundaries of burghs shall be held to be the boundaries thereof at the date of the census for the time being last taken.

(2) In this Part of this Act the expression “population” means population according to the census for the time being last taken, and—

- (a) as soon as may be after each census the Secretary of State shall make an order or orders declaring the population of each county, burgh and licensing district according to such census, and may prescribe therein the date or dates on which alterations in the licensing courts and courts of appeal consequential on any increase or decrease of population shall take effect ; and
- (b) where according to the census for the time being last taken the population of a burgh in any county has so increased or decreased as to necessitate an alteration in Part II of the First Schedule to this Act, the Secretary of State shall by order alter the said Part II so that every burgh in the county containing a population of or exceeding seven thousand and under twenty thousand, and no other burgh, shall be included therein, and so as to provide for due representation on the court of appeal of every burgh so included.

(3) Any order made under this section shall be laid before Parliament.

(4) Any question as to the county or licensing district within which a burgh is situated or of which for the purposes of this Part of this Act it is to be deemed to form part shall be determined by the Secretary of State whose decision shall be final.

PART II

THE GENERAL LICENSING SYSTEM

Grant of certificates by licensing courts

Grant of
certificates by
licensing
courts.

32.—(1) Subject to the provisions of this Act, a licensing court may, at any general half-yearly meeting of the court, grant certificates for the sale by retail of exciseable liquor to such and so many persons as the court shall think fit.

(2) A certificate so granted by a licensing court shall be in respect of premises specified therein, being premises situated within the jurisdiction of the court, and shall be either—

- (a) a hotel certificate, that is to say, a certificate authorising the holder thereof to keep a hotel at the said premises in which exciseable liquor may, under the appropriate excise licence, be sold by retail for consumption either on or off the premises ; or
- (b) a public house certificate, that is to say, a certificate authorising the holder thereof to keep a public house at the said premises in which exciseable liquor may, under the appropriate excise licence, be sold by retail for consumption either on or off the premises ; or
- (c) an off-sale certificate, that is to say, a certificate authorising the holder thereof to keep the said premises as premises in which exciseable liquor may, under the appropriate excise licence, be sold by retail for consumption off the premises only.

(3) Subject to the provisions of this Act, a certificate so granted by a licensing court shall be in the appropriate form set out in the Second Schedule to this Act.

(4) A certificate granted otherwise than at a general half-yearly meeting of a licensing court, or otherwise than in accordance with the provisions of this Act, shall be void.

Persons to whom certificate may be granted

Persons to
whom
certificate may
be granted.

33. A certificate shall be granted only to an individual person not under twenty-one.

Procedure in applications for certificates

Application
for certificate.

34.—(1) An application for the grant of a certificate in respect of any premises shall be in the form set out in the Third Schedule to this Act, shall be completed and signed by the applicant or his agent, and shall be lodged with the clerk to the

licensing court within whose jurisdiction the said premises are situated not later than fourteen days before the first day of the general half-yearly meeting of the court.

PART II
—cont.

(2) Printed forms of application for the grant of a certificate shall be supplied to an applicant by the clerk to the licensing court on payment to him of the fee of one shilling and sixpence for each copy thereof.

35.—(1) The clerk to a licensing court shall, not later than ten days before the first day of the general half-yearly meeting of the court, cause to be published at least twice in one or more newspapers printed or circulating in the licensing area a list in, or as nearly as may be in, the form set out in the Fourth Schedule to this Act of all applications made to the court Publication of list of applications.

- (a) for the grant of a new certificate ;
- (b) by a new tenant or occupant of licensed premises ;
- (c) for the renewal of a certificate transferred during the currency of the previous half-year.

(2) Such clerk shall also, within the said time, send by post to the registrar of every registration district within the meaning of the Registration of Births, Deaths and Marriages (Scotland) Acts, 1854 to 1938, situated wholly or partly in the licensing area a copy of such part of the list made up under the foregoing subsection as is applicable to that district and—

- (a) such copy shall at all reasonable times be open to inspection by any person on payment of a fee of one shilling ; and
- (b) an officer of Customs and Excise shall be entitled to inspect such copy at all reasonable times without payment.

36.—(1) It shall be competent for any of the following persons to object to the grant or transfer of a certificate in respect of any premises by a licensing court, namely,— Objections to grant or transfer of certificate.

- (a) any person owning or occupying property situated in the neighbourhood of such premises ;
- (b) any member of the licensing court to which the application for such grant or transfer has been made ;
- (c) the procurator fiscal ;
- (d) the chief constable.

(2) Where such a person as is mentioned in paragraph (a) of the foregoing subsection desires to object to the grant or transfer of a certificate he shall, not later than five days before the first day of the general half-yearly meeting of the licensing court

PART II
—cont.

at which the application for such grant or transfer is to be heard,—

- (a) lodge with the clerk to that court a written notice of objection which shall be signed by such person or his agent and shall specify the grounds of objection, and
- (b) intimate his objection to the applicant for such grant or transfer in the manner provided by the next following subsection,

and an objection by such a person shall not be entertained by the licensing court unless it is proved or admitted that such objection was intimated to the applicant as aforesaid.

(3) An objection shall, for the purposes of paragraph (b) of the last foregoing subsection, be intimated to an applicant either—

- (a) by delivering to him a copy of the notice of objection lodged with the licensing court under paragraph (a) of that subsection; or
- (b) by sending a copy of the said notice by post in a letter addressed to him at his proper address; or
- (c) by leaving a copy of the said notice for him at his proper address;

and for the purposes of paragraphs (b) and (c) of this subsection the proper address of an applicant shall be his place of abode as specified in his application, or, in the case of an applicant for the renewal of a certificate, the premises in respect of which the application is made.

(4) Such a person as is mentioned in paragraph (b) or (c) or (d) of subsection (1) of this section may object to the grant or transfer of a certificate either orally or in writing at the general half-yearly meeting of the licensing court at which the application for such grant or transfer is before the court.

(5) The licensing court shall at their general half-yearly meeting hear any objection to the grant or transfer of a certificate duly made under this section and shall, if such objection is proved to their satisfaction and is considered by them to be of sufficient importance, refuse to grant or, as the case may be, transfer the said certificate.

(6) The licensing court, if in their opinion any objection to the renewal of a certificate is frivolous or vexatious, may find the objector liable in the expenses caused by such objection to such extent as they may think fit, or if in their opinion any such objection is unauthorised, may find the agent of the objector liable in the expenses as aforesaid; and the amount of any expenses so found due may be recovered in the sheriff or justices of the peace small debt court having jurisdiction, and a certified copy of the finding of the licensing court shall be sufficient evidence and authority for decerning for the said amount with expenses.

37.—(1) A licensing court shall not, at their general half-yearly meeting, hear the cases of new applicants until all the other cases have been disposed of:

Provided that where more than one application for a certificate has been made in respect of any premises, the licensing court may hear and consider such applications together.

PART II
—cont.

Consideration of applications at general half-yearly meeting of licensing court.

(2) A licensing court shall not at any adjournment of a general half-yearly meeting alter anything which was done on any previous day of that meeting in granting or refusing to grant a certificate.

(3) Where an applicant for the grant of a certificate—

- (a) has through inadvertence or misadventure failed to comply with any of the preliminary requirements of this Act; or
- (b) having duly lodged his application, has died before the meeting of the licensing court at which such application was to have been heard;

the court may, if they think fit, and upon such terms as they think proper, postpone the consideration of the application to an adjourned meeting, and at such adjourned meeting they may, if they are satisfied that those terms have been complied with, proceed to grant the certificate to the applicant or, as the case may be, to his executors, representatives or disponees (being possessed of the premises in respect of which the application has been made), as if the preliminary requirements of this Act had been complied with.

38. The clerk to each licensing court shall keep a register of applications for certificates in the form set out in the Fourth Schedule to this Act and shall, at the end of each day's meeting of the licensing court, enter in such register a deliverance in the form set out in the said Schedule specifying how the applications considered at that meeting were disposed of, and such deliverance shall thereupon be signed by the chairman of the meeting.

Register of applications and deliverances.

39.—(1) The clerk to a licensing court shall make out and deliver a certificate in the appropriate form to every person to whom a certificate is granted by such court.

Issue of certificates.

(2) If the clerk to any licensing court knowingly and wilfully—

- (a) issues or delivers a certificate contrary to a deliverance entered in the register kept by him under the last foregoing section; or

PART II
—cont.

- (b) issues or delivers a certificate to any person not authorised to receive the same by the licensing court; or
- (c) inserts any untrue date in a certificate issued by him; or
- (d) refuses to deliver a certificate to any person authorised by the licensing court to receive the same;

he shall be guilty of an offence and if convicted thereof during the period for which the certificate in question appears to have been granted or ought to have been granted, or within six months after the expiry of such period, shall be liable to a fine not exceeding twenty pounds.

(3) The clerk to a licensing court shall, when lawfully required, make out a duplicate of any certificate issued by him under this section and shall certify such duplicate to be a true copy of the original certificate, and any such duplicate, duly certified as aforesaid, shall be sufficient evidence of the facts therein contained and of the terms of the original certificate.

(4) On making out a duplicate certificate under the last foregoing subsection the clerk to a burgh licensing court shall be entitled to a fee of three shillings and threepence and the clerk to a county licensing court shall be entitled to a fee of three shillings.

List of
certificate
holders to be
sent to
Customs and
Excise.

40.—(1) The clerk to each licensing court shall, within eight days after the expiry of the period during which the general half-yearly meeting of the court may be adjourned by virtue of subsection (3) of section eighteen of this Act, send to the Collector of Customs and Excise for any collection which, or any part of which, is situated in the licensing area a list of the persons who have obtained certificates at the said meeting, being certificates in respect of premises situated in the said collection, and such list shall be in the same form as the register kept by the clerk under section thirty-eight of this Act, shall be completed in accordance with all deliverances entered in such register in pursuance of the said section thirty-eight, and shall be signed by the said clerk.

(2) Such clerk shall, on delivery of the said list, be entitled to receive from the Collector of Customs and Excise a fee of eight shillings or, if the list contains more than twenty-five names, of eight shillings plus threepence additional for each name beyond twenty-five.

(3) If any such clerk contravenes this section he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding five pounds.

Proceedings under this subsection shall be taken only with the authority of the Commissioners of Customs and Excise.

PART II
—cont.

41. A licensing court may, at any general half-yearly meeting of the court held in March, cause to be compiled a list of the persons to whom, and the premises in respect of which, certificates have been granted at that meeting, and the said list shall be in such form as the court may direct and shall be printed for the use of the court and of others concerned in the execution of this Act, and the expense of compiling and printing the list shall, in the case of a royal or parliamentary burgh having a separate licensing court, be paid out of the burgh fund and in any other case be paid out of the county fund.

List of certificate holders may be compiled for licensing court, etc.

Special provisions relating to grant of new certificates

42. An applicant for a new certificate, being a hotel certificate or a public house certificate, shall, along with his application, lodge with the clerk to the licensing court a plan of the premises in respect of which the application is made.

Applicant for new hotel or public house certificate to lodge plan of premises.

43. An application for a new certificate shall not be entertained by a licensing court unless there is produced to such court—

Applicant for new certificate to produce report on premises and certificate of character.

(a) a report signed by a duly qualified member of the court stating that the premises in respect of which the application is made are of suitable construction and accommodation for the purpose for which the certificate is sought; and

(b) a certificate as to the applicant's character and qualification signed by a duly qualified member of the court; and such report and certificate shall be in, or as nearly as may be in, the appropriate form set out in the Third Schedule to this Act.

44. Except as provided in subsection (2) of section seventy-seven of this Act, the grant of a new certificate by a licensing court shall not be valid unless it is confirmed by the court of appeal from that licensing court.

Confirmation of new certificate required.

Special provisions relating to renewal of certificates

45.—(1) An application for the renewal of a certificate made by a new applicant or by an applicant to whom such certificate has been transferred during the currency of the previous half-year shall not be entertained by a licensing court unless there is produced to such court a certificate as to the applicant's character and qualification in, or as nearly as may be in, the appropriate form set out in the Third Schedule to this Act, and signed by a duly qualified member of the court.

Certificate of character to be produced by certain applicants for renewal of certificate.

PART II
—cont.

(2) Save as provided in the foregoing subsection, and subject to the powers of a licensing court under this Act in dealing with an application for the renewal of a certificate, an applicant for such a renewal shall not be required to produce to the licensing court any certificate of character and qualification.

Attendance at
licensing court
of applicant
for renewal of
certificate.

46.—(1) It shall not be necessary for an applicant for the renewal of a certificate to attend the meeting of the licensing court at which his application is to be considered unless he is cited by the court to attend such meeting.

(2) A licensing court shall not refuse an application for the renewal of a certificate without hearing the applicant in open court:

Provided that the court may refuse such an application without so hearing the applicant if the applicant, having been cited by the court to attend the meeting at which his application is to be considered, fails to attend such meeting.

Transfer of certificates

Transfer of
certificates.

47.—(1) A licensing court may, on an application being made to them in that behalf at the general half-yearly meeting of the court held in October, transfer to a new tenant or occupant of any licensed premises the certificate then subsisting in respect of those premises.

(2) Any two or more members of a licensing court may, on an application being made to them in that behalf by—

- (a) the executors, representatives or disponees of any person who held a certificate in respect of premises situated within the jurisdiction of the court and who has died before the expiry of such certificate; or
- (b) the trustee, judicial factor or curator bonis of any person holding such a certificate who has become bankrupt, insolvent or incapable before the expiry of the certificate;

if they are satisfied that the applicant is a fit person to hold a certificate and if the applicant is in possession of the said premises, transfer such certificate to the applicant.

(3) A certificate transferred under the last foregoing subsection shall require to be renewed by the licensing court at their general half-yearly meeting next following such transfer, and if not so renewed shall cease to have effect on the expiry of the twenty-seventh day of May or, as the case may be, the twenty-seventh day of November next following such transfer.

PART II
—cont.

(4) Where a certificate is transferred under this section to any person, the clerk to the licensing court shall, on payment to him of a fee of ten shillings, endorse on such certificate a notice of transfer in the form set out in the Fourth Schedule to this Act.

(5) A certificate transferred under this section to any person shall, within such period as may be specified in the notice of transfer endorsed thereon in pursuance of the last foregoing subsection, be presented by that person for entry at such office of Customs and Excise as may be so specified, and if not so presented shall cease to have effect on the expiry of the said period.

(6) Any certificate transferred under this section shall be held subject to the conditions on which it was originally granted.

48. An application for the transfer of a certificate under subsection (1) of the last foregoing section shall not be entertained by a licensing court unless there is produced to such court a certificate as to the applicant's character and qualification in, or as nearly as may be in, the appropriate form set out in the Third Schedule to this Act and signed by a duly qualified member of the court.

Certificate of character to be produced by certain applicants for transfer of certificate.

Appeals and confirmation of new certificates

49.—(1) It shall be competent for any of the following persons, if he is dissatisfied with anything done by a licensing court in disposing of an application for the grant or transfer of a certificate in respect of any premises, to appeal to the court of appeal from such licensing court, that is to say,—

Appeals from licensing court to court of appeal.

- (a) the owner or occupier of the said premises ;
- (b) the owner or occupier of property situated in the neighbourhood of those premises, if such owner or occupier appeared before the licensing court and objected to the grant or transfer of such certificate ;
- (c) any member of the licensing court :

Provided that notwithstanding anything contained in this or any other enactment it shall not be competent to appeal against any proceeding of a licensing court in refusing an application for a new certificate, but any such proceeding and refusal shall be final.

(2) Any person who desires to appeal under this section against anything done by a licensing court shall—

- (a) lodge his appeal with the clerk to the court of appeal within ten days after the proceeding appealed against ;
- (b) if he is such an owner or occupier as is mentioned in paragraph (a) or (b) of the foregoing subsection, find caution to abide the appeal and the expenses thereof ; and

PART II
—*cont.*

(c) if he is such an owner or occupier as is mentioned in the said paragraph (a), intimate the appeal to every person who objected before the licensing court to the grant or transfer of the said certificate, or, if he is such an owner or occupier as is mentioned in the said paragraph (b), intimate the appeal to the owner and to the occupier of the premises in respect of which the application was made, and in either case intimate the appeal to the licensing court against whose proceeding he is appealing.

(3) A court of appeal may, in any appeal under this section, make such award of expenses as they think proper, or may make no award of expenses.

Procedure in application for confirmation of new certificate.

50.—(1) An application for confirmation of the grant of a new certificate shall be in, or as nearly as may be in, the form set out in the Fifth Schedule to this Act and shall be lodged, together with such certificate, with the clerk to the court of appeal within ten days after the grant of the certificate.

(2) It shall be competent for any of the following persons to appear before a court of appeal and oppose the confirmation by such court of the grant of a new certificate, namely,—

(a) any person who appeared before the licensing court and objected to the grant of the said certificate; and

(b) the procurator fiscal for the public interest.

(3) A court of appeal may award expenses to or against any party to proceedings for confirmation of the grant of a new certificate, other than the procurator fiscal for the public interest, as they think just.

(4) Where the grant of a new certificate has been confirmed by a court of appeal, the clerk to that court shall endorse on such certificate a notice of confirmation in, or as nearly as may be in, the form set out in the Fifth Schedule to this Act.

Court of appeal may inspect premises.

51. On any appeal under section forty-nine of this Act, or on any application for confirmation of the grant of a new certificate under the last foregoing section, a court of appeal may, by themselves or any one or more of their number, inspect the premises to which such appeal or application relates and review the report on those premises made to the licensing court under paragraph (a) of section forty-three of this Act.

Consideration of business by court of appeal.

52.—(1) A court of appeal may make regulations with respect to the transaction of business at meetings of such court.

(2) If at any meeting of a court of appeal more than one application for a certificate in respect of any premises is before the court by way of appeal or otherwise the court may hear and consider those applications together.

PART II
—cont.

53. All appeals and applications for confirmation of the grant of a new certificate lodged with a court of appeal, and all deliverances of such a court, shall be entered in the register kept under section thirty-eight of this Act by the clerk to the licensing court concerned, and where the clerk to the court of appeal is not clerk to such licensing court he shall, for the purpose of such entry, forthwith intimate all such appeals, applications and deliverances to the clerk to the said licensing court.

Deliverances
of court of
appeal to be
entered in
register.

Miscellaneous provisions relating to certificates

54.—(1) A licensing court may, on an application in that behalf made to them by any person interested in premises about to be constructed or in course of construction for use as a hotel or a public house, make a provisional grant of a hotel or a public house certificate in respect of those premises if they are satisfied—

Provisional
grant of
certificate.

- (a) that the premises will be of suitable construction and accommodation for use as a hotel or, as the case may be, a public house, and
- (b) that, if the premises had been completed in accordance with the plan thereof lodged with the court in pursuance of section forty-two of this Act, they would on application have granted such a certificate in respect thereof.

(2) The provisional grant of a certificate in respect of any premises by a licensing court shall not be valid unless it is confirmed by the court of appeal from that licensing court, and such court of appeal may confirm the said grant if they are satisfied that the premises will be of suitable construction and accommodation for use as a hotel or, as the case may be, a public house, and that they would on application have confirmed the grant if it had not been provisional.

(3) A certificate of which a provisional grant has been made and confirmed as aforesaid shall not come into force until such grant is declared final by the licensing court at a general half-yearly meeting of the court, and the court shall, on being so requested at such a meeting, declare the grant final if they are satisfied—

- (a) that the premises in respect of which the grant was made have been completed in accordance with the plan thereof lodged with the court as aforesaid, and
- (b) that the person to whom the grant was made is not disqualified by or under this or any other enactment for holding a certificate and is in all other respects a fit and proper person to hold a certificate.

PART II
—cont.

(4) A licensing court shall not entertain a request to declare the provisional grant of a certificate final unless the person to whom the grant was made has given to the court such notice of his intention to make the request as may be prescribed by the court at a general half-yearly meeting thereof.

(5) Subject to the foregoing provisions of this section, applications for the provisional grant and confirmation of a certificate shall be subject to the same conditions as to the giving of notice and generally as to procedure as applications for the grant and confirmation of a new certificate.

Grant of
provisional
certificate.

55. A licensing court may grant a provisional certificate to the holder of any certificate to enable him to carry on business in temporary premises during the reconstruction of his premises.

Power of
licensing
court to grant
certificate in
form other
than that
applied for.

56. A licensing court may, if they think it inexpedient to grant to an applicant a certificate in the form applied for, grant him a certificate in any other of the forms set out in the Second Schedule to this Act.

Exciseable
liquor which
may be sold
under
certificate.

57. A certificate granted under this Act by a licensing court shall authorise the holder thereof to sell by retail under the appropriate excise licence spirits, wine, porter, ale, beer, cider, perry and any other exciseable liquor:

Provided that the licensing court may when granting a certificate restrict the exciseable liquor which may be sold thereunder to wine, porter, ale, beer, cider and perry, or to porter, ale, beer, cider and perry, as they think fit.

Currency of
certificate.

58.—(1) A certificate granted under this Act by a licensing court shall have effect—

- (a) if granted at the general half-yearly meeting of the court held in March in any year, for the period of twelve months beginning with the twenty-eighth day of May in that year;
- (b) if granted at the general half-yearly meeting of the court held in October in any year, for the period beginning with the twenty-eighth day of November in that year and ending with the twenty-seventh day of May in the following year.

(2) The provisions of the foregoing subsection shall have effect subject to the provisions of subsections (3) and (5) of section forty-seven, subsection (4) of section eighty-nine and subsection (4) of section ninety-seven of this Act and to any forfeiture or avoidance of the certificate.

PART II
—cont.

59.—(1) Subject to the provisions of the following subsection, a certificate granted under this Act in respect of a hotel or a public house shall not authorise the holder thereof to obtain an excise licence for the sale by retail of exciseable liquor, or to sell exciseable liquor by retail, in premises other than those for which such certificate was granted.

Hotel or public house certificate valid only for premises in respect of which it is granted; sale of exciseable liquor at fairs.

(2) The holder of a hotel certificate or a public house certificate may, at a time when a lawful fair is being held in the same parish as the premises for which such certificate is held or in a parish immediately adjacent thereto, sell exciseable liquor by retail in houses, booths or other places within the limits of the ground, town or place on or in which such fair is being held.

Special permission for opening of hotels, etc.

60.—(1) Any person holding a hotel certificate or a public house certificate in respect of any premises, and holding also a retailer's on-licence in respect of those premises, may, if it is intended that any public or special entertainment shall take place in the said premises or in any other premises or place, apply for a special permission to any two members of the licensing court within whose jurisdiction the premises or place in which the entertainment is to take place are situated.

Special permission for opening of hotels, etc.

(2) Members of a licensing court shall not entertain an application for a special permission unless they are satisfied that the applicant has served on the chief constable not less than forty-eight hours' notice of his intention to apply for such permission and has specified in such notice his name and address, the premises or place and occasion for which the special permission is required, the period for which the permission is to be in force, the hours to be specified therein and the members of the licensing court to whom he intends to make his application.

(3) Any two members of a licensing court to whom an application for a special permission is made under this section may, if—

(a) they are satisfied—

(i) that the premises or place in which the entertainment is to take place possess the necessary accommodation, and

PART II
—cont.

(ii) that the entertainment is for a public or special occasion of a legitimate and proper character and does not originate directly or indirectly with the applicant, and

- (b) in a case where the application relates to any premises or place other than premises in respect of which the applicant holds a certificate and a retailer's on-licence, they are also of opinion that the grant of the special permission is expedient for the convenience and accommodation of the public,

and if they otherwise think fit, grant the special permission applied for.

- (4) A special permission shall be in writing.

(5) Subject to the following provisions of this section, a special permission granted under this section to any person shall authorise the sale by that person, for the purpose of the public or special entertainment in question, of any exciseable liquor to which his certificate and retailer's on-licence extend in such premises or place, during such period, and between such hours, as may be specified in the permission.

(6) A special permission shall not authorise the sale of exciseable liquor on any Sunday.

- (7) A special permission shall have effect subject to—

- (a) such special conditions as the two members of the licensing court who granted it may appoint; and
(b) such general regulations relating to special permissions as the licensing court may prescribe at any general half-yearly meeting of the court held in March.

(8) Any person to whom a special permission is granted under this section shall lodge such permission with the chief constable not less than twenty-four hours before the beginning of the entertainment in question, and the chief constable shall furnish such person with a certified copy of the permission, and that person shall show the said copy to any constable who asks to see it.

(9) A person to whom a special permission is granted under this section shall, if the permission relates to any premises or place other than the premises in respect of which he holds a retailer's on-licence, obtain an occasional licence under section

PART II
—cont.

one hundred and fifty-one of the Customs and Excise Act, 1952, before he sells any exciseable liquor under the permission in the first-mentioned premises or place, and in the said section one hundred and fifty-one the expression "appropriate consent" shall be construed as referring to a special permission granted under this section.

(10) Sections one hundred and forty-four and one hundred and forty-six of this Act shall apply to a person holding an occasional licence as they apply to the holder of a certificate, and to the premises or place where exciseable liquor is sold under an occasional licence as they apply to licensed premises of the holder of the occasional licence.

(11) Nothing in section one hundred and twenty-one or one hundred and thirty-three of this Act shall prohibit the sale of exciseable liquor in accordance with a special permission.

(12) The foregoing provisions of this section shall apply as respects a licence under Part III of this Act and the canteen to which it relates as they apply as respects a certificate and the premises to which that certificate relates:

Provided that in subsection (3) of this section as applied by this subsection the words "and does not originate directly or indirectly with the applicant" shall be omitted.

Control of licensing courts over structure of licensed premises

61.—(1) No reconstruction of or alteration in any premises in respect of which a hotel certificate or a public house certificate is in force or the premises of any licensed canteen shall be made unless the licensing court within whose jurisdiction such premises are situated have consented to such reconstruction or alteration at a general half-yearly meeting of the court or at such other time as may be appointed by the court, or unless such reconstruction or alteration is required by order of some lawful authority.

Consent of
licensing court
required for
reconstruction,
etc., of certain
licensed
premises.

(2) A licensing court may, before considering an application for their consent under this section, require plans of the proposed reconstruction or alteration to be lodged with their clerk at such time as they may appoint.

(3) If subsection (1) of this section is contravened, the sheriff may, on a complaint at the instance of the procurator fiscal, by order declare the certificate, or the licence under Part III of this Act, as the case may be, which is in force for the premises in respect of which the contravention took place, to be forfeited, or may direct that, within a time fixed by the order, the premises shall be restored to their original condition.

PART II
—cont.

Power of
licensing court
to order
structural
alterations on
renewal of
certain
certificates.

62.—(1) On any application for the renewal of a certificate in respect of a hotel or a public house a licensing court may require a plan of the licensed premises to be produced to them and lodged with their clerk, and on renewing such certificate they may order that, within a time fixed by the order, such structural alterations as they think reasonably necessary to secure the proper conduct of the business shall be made in that part of the licensed premises in which exciseable liquor is sold or consumed.

(2) Where an order made under this section in respect of any premises is complied with, the licensing court shall not make a further order in respect of those premises within the five years following the date of the first-mentioned order unless during that time they have refused to renew the certificate in force in respect of the said premises.

(3) If the holder of a certificate makes default in complying with an order made under this section he shall be guilty of an offence, and he shall be guilty of a further offence for every day on which the default continues after the expiry of the time fixed by the order.

(4) A person guilty of an offence under this section shall on conviction thereof be liable to a fine not exceeding twenty shillings.

Regulations and byelaws of licensing courts.

Power of
licensing court
to make
regulations
with respect
to applications,
etc.

63. A licensing court may at any general half-yearly meeting make regulations with respect to the making of applications for the grant of certificates and the procedure following thereon, and such regulations may include provisions designed to assist the court in determining the character of applicants and the expediency of granting certificates for the premises in respect of which application is made; and the court may also at such a meeting make regulations with respect to the procedure to be followed in transferring certificates under this Act.

Power of
licensing court
to make
byelaws.

64.—(1) Without prejudice to their other powers under this Act, a licensing court may make byelaws for any or all of the following purposes, namely,—

- (a) for closing licensed premises wholly or partially on New Year's Day, and on such other days not being more than four in any one year as the licensing court may think expedient for special reasons;
- (b) for prohibiting holders of certificates from residing in their licensed premises, or for requiring the dwelling-houses of holders of certificates to be separate from their licensed premises;
- (c) for requiring all wines and spirits sold by the holder of an off-sale certificate to be sold in corked or stoppered bottles, vessels, jars or casks;
- (d) for requiring every holder of a hotel certificate or a public house certificate to keep in his licensed premises

and to renew from day to day a sufficient supply of drinking water and such eatables as may be specified in the byelaw, and to display, offer and supply the same as may be required by the byelaw ;

- (e) for fixing the procedure to be followed in making applications for special permissions under section sixty of this Act ;
- (f) for printing a list of all applications coming before any meeting of the licensing court, with such other information as may be considered necessary by them :

PART II
—cont.

Provided that a byelaw made under paragraph (c) of this subsection shall not apply to licensed premises where no groceries are kept or sold and where a bona fide wholesale business in exciseable liquor is carried on.

(2) Byelaws made under the foregoing subsection by a licensing court shall not have effect until they are confirmed by the Secretary of State, and the provisions of subsections (4), (5), (7) to (13) and (15) of section three hundred and one of the Local Government (Scotland) Act, 1947, and of section three hundred and three of that Act, shall with all necessary modifications apply in relation to byelaws to be made or made under this section by a licensing court as they apply in relation to byelaws to be made or made by a local authority by virtue of any of the enactments mentioned in subsection (1) of the said section three hundred and one.

(3) If the holder of any certificate commits a breach of any byelaw made under this section, he shall be deemed to be guilty of a breach of his certificate and shall be liable accordingly.

PART III

SEAMEN'S CANTEENS

65. If a body approved by the Minister of Transport and Civil Aviation have provided or propose to provide a seamen's canteen the need for which has been certified by that Minister after consultation with the Merchant Navy Welfare Board, the licensing court within whose jurisdiction the said canteen is or will be situated may grant a licence under this Part of this Act authorising the person who is the manager of the canteen to hold a retailer's on-licence to sell exciseable liquor in the canteen ; and a retailer's on-licence may be granted to him accordingly notwithstanding that he does not hold a certificate.

Power to
authorise
grant of
retailers'
on-licences for
seamen's
canteens.

66.—(1) A licensing court shall not refuse to grant a licence under this Part of this Act except under the next following subsection or on one or more of the following grounds, that is to say—

Procedure
for grant
of licences.

- (a) that the applicant is disqualified by or under this or any other enactment for holding a certificate or is in other

PART III
—cont.

respects not a fit and proper person to hold a licence under this Part of this Act ; or

- (b) that the premises are not fit and convenient for the purposes of the canteen ; or
- (c) in a case where objection has been made to the situation of the canteen, on the ground specified in the objection ; or
- (d) that the applicant or body providing the canteen has entered into an agreement limiting the sources from which the exciseable liquor or the mineral waters to be sold in the canteen may be obtained,

but nothing in this subsection shall prevent a licensing court from specifying in the licence granted by them a kind of retailer's on-licence other than that requested by the applicant.

(2) Before application is made for the grant of a licence under this Part of this Act draft rules as to the persons entitled to use the canteen shall be prepared for submission with the application and the licensing court shall refuse to grant the licence unless the body providing the canteen undertake to make rules for the canteen in the form of the draft, with the modifications, if any, required by the licensing court, and not to vary those rules without the consent of the licensing court.

(3) Any licence granted under this Part of this Act shall provide that at all times at which exciseable liquor is sold food and beverages other than exciseable liquor shall also be provided for sale.

(4) Part I of the Sixth Schedule to this Act shall have effect as respects the notices to be given and the documents to be served on an application for the grant of a licence under this Part of this Act.

(5) A licence under this Part of this Act may, in a case where it is proposed to construct or convert premises for a seamen's canteen, be a provisional licence to be made final after the proposal has been carried out ; and Part II of the said Sixth Schedule shall have effect as respects such licences.

(6) Any person, other than the procurator fiscal or chief constable, intending to oppose an application for the grant of a licence under this Part of this Act shall, not later than five days before the hearing of the application, give to the applicant and to the licensing court notice in writing of his intention, specifying the ground of his objection.

**Renewal of
licences.**

67.—(1) A licence under this Part of this Act shall, unless renewed under this section, cease to have effect on the expiry of the twenty-seventh day of May next after the date on which it comes into force.

PART III
—cont.

(2) If the Minister of Transport and Civil Aviation has, in the calendar year in which the licence would otherwise expire, certified that the canteen is still needed, the licensing court may renew the licence for a further period of twelve months.

(3) A licensing court shall not refuse an application for the renewal of a licence under this Part of this Act except under the next following subsection or on one or more of the following grounds, that is to say—

- (a) that the manager is disqualified by or under this or any other enactment for holding a certificate or is in other respects not a fit and proper person to hold a licence under this Part of this Act ; or
- (b) that the rules as to the persons entitled to use the canteen have not been observed or that the canteen has in other respects been improperly conducted ; or
- (c) that the manager or the body providing the canteen has entered into an agreement of the kind mentioned in paragraph (d) of subsection (1) of the last foregoing section.

(4) On renewing a licence under this Part of this Act a licensing court may by order, to be served on the holder, direct that, within a time fixed by the order, such structural alterations shall be made in the premises comprising the canteen as they think reasonably necessary to secure the proper conduct of the canteen ; and if, when application for renewal of the licence is next made after the time fixed by the order has expired, it is not shown to the satisfaction of the licensing court that the order has been complied with, the licensing court may refuse to renew the licence.

If an order under this subsection is complied with, the licensing court shall not make a further order within the five years following the first-mentioned order.

(5) If the applicant for renewal of a licence under this Part of this Act has given such notices as the licensing court may require and so requests, the licensing court may at their discretion in renewing the licence vary the kind of retailer's on-licence to be authorised by the licence so renewed.

(6) Any person, other than the procurator fiscal or chief constable, intending to oppose an application for renewal of a licence under this Part of this Act shall, not later than five days before the hearing of the application, give to the holder of the licence and to the licensing court notice in writing of his intention, specifying the ground of his objection.

68.—(1) A licence under this Part of this Act shall not authorise the grant or transfer of a retailer's on-licence to a manager of the canteen who is not the individual to whom the licence under this Part of this Act was granted unless the

Transfer of
licences.

PART III
—*cont.*

licence under this Part of this Act has been transferred to him ; but where the holder of a licence under this Part of this Act has in pursuance of this Part of this Act been granted a retailer's on-licence and subsequently ceases to be the manager of the canteen, the person for the time being in charge of the canteen may, during the period of fourteen days from the date on which the holder of the licences ceased to be the manager, sell exciseable liquor in the canteen as if those licences had been transferred to him.

(2) The power to transfer a licence under this Part of this Act shall be exercisable by the licensing court or by any two members thereof.

(3) A transfer of a licence under this Part of this Act shall not be refused except on the ground that the applicant is disqualified by or under this or any other enactment for holding a certificate or is in other respects not a fit and proper person to hold a licence under this Part of this Act.

(4) An applicant under this section shall give the notices required by Part III of the Sixth Schedule to this Act.

**Rights of
appeal.**

69. Where a licensing court—

- (a) refuse to grant, renew or transfer a licence under this Part of this Act ; or
- (b) on an application for the grant of a licence under this Part of this Act do not authorise the kind of retailer's on-licence duly requested by the applicant ; or
- (c) on an application for renewal of a licence under this Part of this Act do not comply with the applicant's request duly made for a change in the kind of retailer's on-licence to be authorised ; or
- (d) require modifications in the rules proposed to be made as to the persons entitled to use the canteen, or withhold their consent to a variation of those rules ; or
- (e) make an order under subsection (4) of section sixty-seven of this Act,

any person aggrieved may appeal to the court of appeal from such licensing court.

**Exemption
of licensed
canteens from
restrictions
under s. 214
of Merchant
Shipping Act,
1894.**

70. A hostel which includes a canteen as respects which a licence under this Part of this Act is in force shall be exempt from any byelaws made under section two hundred and fourteen of the Merchant Shipping Act, 1894, and from any Order in Council under that section requiring that only persons duly licensed under such byelaws shall keep seamen's lodging houses or let lodgings to seamen.

Jurisdiction.

71. The power of renewing licences under this Part of this Act conferred on the licensing court shall be exercisable at the general half-yearly meeting of the court held in March, and any other power so conferred shall be exercisable on any

occasion on which the licensing court have power to deal with any matter relating to a certificate.

PART III
—cont.

72. Subsection (3) of section one hundred and fifty of the Customs and Excise Act, 1952 (which makes the forfeiture of a certificate operate also as a forfeiture of any excise licence) shall apply as if references therein to a certificate included references to a licence under this Part of this Act. Extension of s. 150 (3) of Customs and Excise Act, 1952.

73. In this Part of this Act "canteen" includes a part of a hostel where food or drink is supplied, whether or not the food or drink is separately paid for. Interpretation of Part III.

PART IV

NEW TOWNS

74.—(1) For the purpose of determining the number, nature and distribution of licensed premises in new towns there shall be a committee for each new town or, if it appears to the Secretary of State that by reason of the proximity of any two new towns it is expedient that one committee should be constituted for them and the Secretary of State by order so directs, for those two new towns. Committee to determine distribution of licensed premises in new town.

(2) Such committees shall be constituted, and their procedure shall be regulated, in accordance with the provisions of the Seventh Schedule to this Act.

(3) The proceedings of such a committee shall not be invalidated by reason of any vacancy in the committee or any defect in the appointment of a member of the committee.

(4) The development corporation for the new town for which such a committee are constituted shall provide for the committee such accommodation and secretarial and other services as may be requisite for enabling the committee to exercise their functions; and the development corporation shall defray any expenses incurred by the committee in connection with the exercise of the committee's functions or in the payment of travelling and other allowances to members of the committee, being expenses incurred with the agreement of the development corporation given either before or after the incurring of the expenses or, in default of such agreement, with the approval of the Secretary of State given as aforesaid.

(5) Where a committee are constituted for two new towns, the accommodation and services mentioned in the last foregoing subsection shall be provided by such one of the development corporations concerned, or partly by one and partly by the other, as the corporations may from time to time agree or, in default of such agreement, as the Secretary of State may determine; and the expenses mentioned in that subsection shall be defrayed by

PART IV
—cont.

the development corporations in such proportions as may be so agreed or determined; and references in that subsection to the development corporation shall be construed accordingly.

(6) Where a committee are constituted for two new towns, references in this Part of this Act and in the Seventh Schedule to this Act to the area for which the committee are constituted shall be construed as references to the aggregate of the areas of the said new towns.

(7) An order under this section or the said Schedule may be varied or revoked by a subsequent order made thereunder.

**General duties
of committee.**

75. It shall be the duty of every committee constituted under the last foregoing section to consider from time to time, having regard to the existing circumstances of the area for which the committee are constituted and to the proposed development of that area, the requirements of the area as respects licensed premises, the accommodation and amenities which should be provided thereat and the facilities which should be available thereat for obtaining both exciseable liquor and meals and other refreshments, including the provision of accommodation to be provided for the consumption therein of beverages other than exciseable liquor and in which the consumption of exciseable liquor is prohibited.

**Submission
and approval
of proposals by
committee.**

76.—(1) In the light of their consideration of the matters mentioned in the last foregoing section a committee constituted under section seventy-four of this Act shall from time to time formulate proposals specifying the places in the area for which the committee are constituted at which licensed premises should be established; and the proposals shall specify the way in which any licensed premises established in accordance with the proposals should be licensed, and shall contain provisions (in this Part of this Act referred to as “supplementary provisions”) as to the type of accommodation, amenities and services to be provided in premises being or comprising any such licensed premises, including, unless the committee in any particular case otherwise decide, provisions for the service of meals and of refreshments other than exciseable liquor.

(2) References in this Part of this Act to specifying the way in which licensed premises should be licensed are references to specifying—

- (a) what form of certificate should be granted in respect of the premises, and
- (b) what descriptions of exciseable liquor should be authorised to be sold under that certificate,

and references in this Part of this Act to the licensing of premises in accordance with proposals shall be construed accordingly.

PART IV
—cont.

(3) The committee shall submit proposals formulated under this section to the Secretary of State, together with such plans and other matter explanatory of the nature and effect of the proposals as the committee think fit or the Secretary of State may in any particular case require.

(4) Where a committee have submitted proposals to the Secretary of State under this section, they shall publish by advertisement in each of two successive weeks in one or more local newspapers circulating in the area for which the committee are constituted, and may publish in such further manner as the committee may determine, a notice that they have submitted the proposals, naming a place at which copies of the proposals and of the plans and explanatory matter submitted to the Secretary of State may be seen at all reasonable hours, and stating the time, not being less than twenty-eight days, within which and the manner in which objections to the proposals may be made to the Secretary of State.

(5) If no objection to the proposals is made to the Secretary of State within the time and in the manner stated in the notice, or if all objections so made are withdrawn, the Secretary of State may, if he thinks fit, confirm the proposals; but, if objection is so made and not withdrawn, he shall afford to any person making an objection an opportunity of appearing before and being heard by a person appointed for the purpose by the Secretary of State or, if it appears to the Secretary of State that the matters to which the objection relates are such as to require investigation by public local inquiry, he shall cause a public local inquiry to be held, and after considering any objection not withdrawn and the report of the person before whom the objector appeared or of the person holding the inquiry, as the case may be, he may confirm the proposals.

(6) Subsections (2) to (9) of section three hundred and fifty-five of the Local Government (Scotland) Act, 1947 (which relate to local inquiries held under that section) shall apply to an inquiry held under this section as they apply to inquiries held under that section.

(7) The Secretary of State shall before confirming any proposals submitted to him under this section consult with the local planning authority within the meaning of the Town and Country Planning (Scotland) Acts, 1947 to 1954.

(8) The power of the Secretary of State under subsection (5) of this section to confirm proposals shall include power—

- (a) where the proposals relate to the establishment of licensed premises at more than one place, to confirm the proposals (but without prejudice to the next following paragraph) so far as they relate to one or some only of the places in question;

PART IV
—*cont.*

- (b) to confirm the proposals subject to modifications so far as they relate to the situation of proposed licensed premises ;
- (c) to confirm the proposals subject to the modification of any supplementary provisions contained in the proposals or to the addition of any supplementary provisions which the committee could have included in the proposals ;

and references in this Part of this Act to proposals which have been confirmed shall be construed accordingly.

(9) Proposals of a committee under this section may be varied or revoked by subsequent proposals formulated by the committee and submitted to and confirmed by the Secretary of State in like manner as the original proposals ; and references in this Part of this Act to proposals under this section which have been confirmed shall be construed as references to such proposals as they have effect having regard to any subsequent variation or revocation of them.

Grant of new
certificates,
and renewals,
in new towns.

77.—(1) Where application is made under Part II of this Act for the grant of a new certificate for any premises in a new town, being premises situated in accordance with proposals under the last foregoing section which have been confirmed, or for the renewal of a certificate granted in respect of such premises, then if the effect of the grant or renewal would be that the premises would be licensed in accordance with the proposals and if the licensing court are satisfied—

- (a) that the premises are fit and convenient for the purpose or, in the case of an application for the provisional grant of a new certificate or for the renewal of such a provisional grant, that if the premises had been actually constructed in accordance with the plans submitted to the licensing court they would be fit and convenient as aforesaid ;
- (b) that the applicant is not disqualified by or under this or any other enactment for holding a certificate and is in all other respects a fit and proper person to hold a certificate ; and
- (c) that effect has been or will be given to any supplementary provisions contained in the proposals ;

the court shall grant the application.

(2) The grant of a new certificate on an application made as mentioned in the foregoing subsection shall not require confirmation by the court of appeal ; and section fifty-four of this Act shall, in relation to an application made in such circumstances, have effect as if references to the court of appeal and to the confirmation of the provisional grant of a certificate were omitted.

(3) It shall not be lawful for a certificate to be granted in respect of any premises in a new town which are not licensed at the time of the application for such grant unless—

- (a) the premises are situated in accordance with proposals under the last foregoing section which have been confirmed ; and
- (b) the effect of the grant would be that the premises would be licensed in accordance with the proposals ; and
- (c) the licensing court are satisfied that effect has been or will be given to any supplementary provisions contained in the proposals.

(4) It shall not be lawful—

- (a) for a certificate in a form different from the form of the subsisting certificate ; or
- (b) for a certificate the effect of which would be to add to the descriptions of exciseable liquor authorised to be sold on the premises ; or
- (c) for a certificate the effect of which would be to authorise the sale of exciseable liquor to travellers on Sunday where such sale is not authorised under the subsisting certificate ;

to be granted in respect of any premises in a new town which are licensed at the time of the application for such grant unless the committee constituted under section seventy-four of this Act for the new town notify the licensing court that the committee have no objection to the grant.

(5) Where a certificate is granted as mentioned in the last foregoing subsection, the grant shall not require confirmation by the court of appeal.

(6) In the application for the purposes of this section of subsection (2) of section one hundred and ninety-nine of this Act, a certificate shall not be treated as not being in force by reason only that the grant thereof was provisional and has not been declared to be final.

78. On the coming into operation of an order under subsection (1) of section fifteen of the New Towns Act, 1946, providing for the winding up and dissolution of the development corporation for any new town,—

Dissolution of
development
corporation.

- (a) if under section seventy-four of this Act a committee were constituted for that new town only, the committee shall cease to exist ;

PART IV
—cont

- (b) if under the said section seventy-four a committee were constituted for that and another new town, the committee shall cease to exercise their functions as respects the first-mentioned new town, and thereafter this section shall apply as if under section seventy-four of this Act the committee had been constituted for the said other new town only, and the Secretary of State shall vary any order made by him under the said section seventy-four in such manner as appears to him requisite in consequence of the coming into operation of the said order providing for the winding up and dissolution of the development corporation ;
- (c) section seventy-seven of this Act shall cease to apply to the first-mentioned new town but without prejudice to the operation of subsections (1) and (2) thereof as respects any application made before the date on which the order providing for the winding up and dissolution of the development corporation came into operation or made at the general half-yearly meeting of the licensing court next held after that date.

Saving.

79. Nothing in this Part of this Act shall affect the operation in any new town of the provisions of Part VIII of this Act.

**Interpretation
of Part IV.**

80. In this Part of this Act “ new town ” means an area designated as the site of a proposed new town under section one of the New Towns Act, 1946, by an order which has become operative :

Provided that—

- (i) if an order designating the site of a proposed new town is revoked, section seventy-eight of this Act shall with the necessary modifications apply as if at the time of the revocation of that order an order had come into operation under subsection (1) of section fifteen of the New Towns Act, 1946, providing for the winding up and dissolution of the development corporation ;
- (ii) where, by reason of the variation of an order, land ceases to be comprised in such a site, the variation shall not affect the operation of subsections (1) and (2) of section seventy-seven of this Act as respects an application made before the variation took effect or at the next general half-yearly meeting of the licensing court held thereafter, but except as aforesaid land excluded from such a site by the variation of an order shall be treated for the purposes of sections seventy-four to seventy-nine of this Act and the Seventh Schedule to this Act as if not comprised in a new town.

PART V

STATE MANAGEMENT DISTRICTS

81.—(1) The provisions of this section shall have effect for declaring the powers exercisable by the Secretary of State for the purposes of State management of the liquor trade in the districts specified in Part I of the Eighth Schedule to this Act (in this Part of this Act referred to as "State management districts").

(2) The Secretary of State may in the State management districts sell exciseable liquor for consumption either on or off the premises where it is sold, and may carry on any of the activities specified in Part II of the Eighth Schedule to this Act in accordance with the provisions of that Part; and the provisions of Part III of that Schedule shall apply to the carrying on by him of those activities:

Provided that nothing in this subsection or the said Part II shall authorise the Secretary of State, at any premises where he carries on a business of selling exciseable liquor for consumption off the premises only, to carry on any other business except the sale of mineral waters or other non-intoxicating drinks for consumption off the premises, tobacco or matches.

(3) The local advisory committee appointed under any scheme for a State management district having effect immediately before the commencement of this Act under section one of the Licensing Act, 1949, shall assist the Secretary of State in the exercise of his functions relating to that district; and the provisions of the scheme having effect immediately before the commencement of this Act shall, notwithstanding the repeal by this Act of the said section, continue to have effect subject to any provision in the scheme for its variation or duration, and subject to any provision in the scheme for the making of a new scheme to take effect on the expiry of the previous scheme.

(4) The Secretary of State shall cause such accounts to be kept in relation to the State management districts as the Treasury may direct, and shall cause an annual report to be presented to Parliament about his procedure in connection with the management of the liquor trade in those districts.

82.—(1) No person, other than a person acting on behalf of the Secretary of State, shall sell exciseable liquor by retail in a State management district; and no person, other than a person acting on behalf of the Secretary of State, shall supply exciseable liquor in any licensed premises or in the premises of any registered club in a State management district:

Provided that this subsection shall not apply—

(a) to anything done in premises which were licensed premises or premises of a registered club when State

Restriction of sale and supply, otherwise than by Secretary of State, of exciseable liquor in State management districts.

PART V
—*cont.*

management came into operation in the district in which the premises are situated and have continued to be licensed premises or premises of a registered club, as the case may be, since that time ;

- (b) to anything done under the written authority of the Secretary of State and in accordance with such terms and conditions as he may specify ;
- (c) to anything done in premises of a class specified by order of the Secretary of State.

(2) If any person contravenes this section he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding thirty pounds.

(3) The power to make orders conferred on the Secretary of State by paragraph (c) of the proviso to subsection (1) of this section shall be construed as including power, exercisable in the like manner and subject to the like conditions, to vary or revoke the order, and any order under that paragraph may be made either generally or as respects a particular State management district.

(4) In this section the expression " licensed premises " includes any premises or place where exciseable liquor is sold by retail under a licence, whether it is sold under a certificate or not, but does not include premises where the Secretary of State carries on a business of selling exciseable liquor by retail in exercise of powers conferred on him by this Part of this Act.

**Acquisition
of land.**

83.—(1) For the purposes of his functions under this Part of this Act the Secretary of State may—

- (a) by agreement purchase or take on lease any land, whether in a State management district or elsewhere ;
- (b) acquire by compulsory purchase any licensed premises in a State management district and any land in such a district required for the erection or extension of, or otherwise for use in connection with, any premises in a State management district in which the sale of exciseable liquor by retail is, or is to be, carried on on behalf of the Secretary of State :

Provided that before acquiring any land in a new town, whether by agreement or compulsorily, the Secretary of State shall consult with the development corporation for that new town.

(2) After the service of a notice to treat for the compulsory acquisition under this Part of this Act of any interest in licensed premises in a State management district, the certificate shall not be removable under section ninety-two of this Act.

(3) For the purposes of the foregoing provisions of this section a certificate shall be treated as being in force notwithstanding that it may be in suspense by virtue of section eighty-eight

of this Act, and references in those provisions to licensed premises shall be construed accordingly, and as including the site of licensed premises.

PART V
—cont.

(4) The powers of compulsory purchase conferred on the Secretary of State by subsection (1) of this section shall be exercisable for the purchase of any particular land on his being authorised to purchase the land in accordance with the provisions of the Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947; and that Act shall apply accordingly as if paragraph (b) of subsection (1) of section one thereof (which refers to the compulsory purchase of land by the Minister of Transport and Civil Aviation under certain enactments) included a reference to any compulsory purchase by the Secretary of State under this section.

(5) So much of section two of the Ordnance Board Transfer Act, 1855, as provides that, where a Secretary of State ceases to hold office, the land mentioned in that section shall by virtue of that Act be transferred to and vested in his successor as therein provided shall apply to the Secretary of State in relation to land vested in him for the purposes of his functions under this Part of this Act.

(6) Any officer of the Valuation Office of the Inland Revenue Department, or any other person if authorised by the Secretary of State, may at any reasonable time enter upon land for the purpose of surveying it in connection with any proposal for the compulsory purchase of the land, or any adjacent land, under this section; and any person who wilfully obstructs a person acting in the exercise of a right of entry conferred by or under this subsection shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding five pounds, and in the case of any subsequent offence, to a fine not exceeding twenty pounds:

Provided that a person proposing to exercise a power of entry conferred under this section—

- (a) shall, if required to do so, produce some duly authenticated document showing his authority;
- (b) shall not demand admission as of right to any land that is occupied unless twenty-four hours' notice of the intended entry has been given to the occupier.

84.—(1) The Secretary of State shall so far as is practicable secure that a resident tenant or manager of licensed premises acquired by the Secretary of State under the last foregoing section shall have the opportunity, if the business previously carried on in the premises is continued by the Secretary of State, of being employed in carrying it on on terms not less favourable

Provision of
alternative
employment
where
licensed
premises
acquired.

PART V
—cont.

than those appropriate to a manager employed in a business such as was carried on in the premises before their acquisition.

(2) In this section the expression “resident tenant or manager”, in relation to premises acquired by the Secretary of State as aforesaid, means a person who immediately before the acquisition was residing in the premises and was either the holder or one of joint holders of the certificate in respect thereof or was employed as manager of the premises by the holder of the certificate.

Certificates in
suspense in
State
management
districts.

85.—(1) Where a certificate is in suspense under this Act, and the premises for which it was last in force for all purposes are, or the site of those premises is, in a State management district, the Secretary of State on the application of the holder of the certificate shall direct that as from the date of the direction, or such later date as may be agreed between the Secretary of State and the holder of the certificate, the certificate shall be extinguished:

Provided that, where the certificate is in suspense by virtue of section eighty-eight of this Act, this subsection shall not have effect if—

- (a) a notice to treat has been served for the compulsory acquisition under section eighty-three of this Act of any interest in the premises or site, or
- (b) such an interest has been acquired under that section by agreement.

(2) The Secretary of State shall pay to the holder of a certificate extinguished under this section such compensation for the extinguishment as may be agreed or, in default of agreement, as the Lands Tribunal for Scotland may determine:

Provided that until sections one to three of the Lands Tribunal Act, 1949, come into force as respects Scotland the expression “the Lands Tribunal for Scotland” shall be construed as meaning an official arbiter appointed under the Acquisition of Land (Assessment of Compensation) Act, 1919, and the following provisions of the said Act of 1919, that is to say, section three thereof (which relates to procedure) section five thereof (which relates to costs) as modified by sections five and ten of the said Act of 1949, but with the substitution for references to the acquiring authority of references to the Secretary of State, and section six thereof (which relates to the statement of special cases) as modified by section ten of the said Act of 1949, shall apply for the purposes of this subsection.

(3) For the purposes of any reference to the Lands Tribunal for Scotland under the last foregoing subsection, section five of the Acquisition of Land (Assessment of Compensation) Act, 1919 (which relates to costs), shall have effect with the substitution for the references to the acquiring authority of references to the Secretary of State.

(4) Compensation under this section shall be determined without regard to the fact that by reason of the provisions of section eighty-two of this Act the restoration to full force or removal of the certificate would or might be prevented.

PART V
—cont.

86. Expenditure of the Secretary of State under this Part of this Act shall be defrayed out of moneys provided by Parliament; and receipts of the Secretary of State in the exercise of his functions under this Part of this Act shall be paid into the Exchequer.

Expenses and
receipts of
Secretary of
State.

87. In this Part of this Act "new town" means an area designated as the site of a proposed new town under section one of the New Towns Act, 1946, by an order which has become operative, but does not include any such area after the development corporation established for the area has been wound up and dissolved.

Interpretation
of Part V.

PART VI

SUSPENSION OF CERTIFICATES BY REASON OF WAR CIRCUMSTANCES

88.—(1) Where the Commissioners of Customs and Excise (hereafter in this Act referred to as "the Commissioners") are satisfied, on application made to them for a certificate under this subsection, that a business for the purposes of which or in connection with which a certificate for the sale by retail of exciseable liquor was granted under this Act has been temporarily discontinued by reason of war circumstances, they shall certify accordingly, and shall state in their certificate whether or not those circumstances include the destruction of the premises or serious damage to them.

Suspension of
certificate
where business
discontinued
owing to war
circumstances.

(2) As from the date of a certificate given under the foregoing subsection, the certificate for the sale by retail of exciseable liquor granted in respect of the premises shall be in suspense by virtue of this section until it is again in force for all purposes by virtue of this Part of this Act, or until it is extinguished by virtue of this Part of this Act or by virtue of section eighty-five of this Act.

(3) While a certificate is in suspense by virtue of this section—

- (a) it may be transferred, renewed or removed in accordance with the provisions of this Act;
- (b) it may be forfeited, or may be avoided by reason of the disqualification of the holder, in accordance with the provisions of this Act;
- (c) it may be extinguished under section eighty-five of this Act;

PART VI
—cont.

but except so far as is requisite for giving effect to those provisions and the other provisions of this Part of this Act, and except as provided by subsection (3) of section eighty-three of this Act, it shall not be in force for any purpose.

(4) A certificate which is in suspense by virtue of this section shall not continue so to be unless an application for renewal thereof is duly made and granted at each March half-yearly meeting of the licensing court occurring during the period of discontinuance of the business.

(5) Where a certificate given under subsection (1) of this section states that the war circumstances do not include the destruction of the premises or serious damage to them, then, if the holder of the certificate which is in suspense satisfies the Commissioners that since the discontinuance of the business the premises have been affected by war circumstances consisting of the destruction of them or serious damage to them, the Commissioners shall certify accordingly.

Restoration
to full force
of certificate
in suspense.

89.—(1) Subject to the provisions of the next following subsection, where the holder of a certificate for the time being in suspense by virtue of the last foregoing section wishes to resume the business carried on in the premises in respect of which the certificate was granted, he may give notice in writing to that effect to the clerk to the licensing court; and from the time of his giving such notice the certificate shall be in force for all purposes.

(2) Where the certificate for the time being in suspense is in respect of a hotel or a public house and a certificate given under the last foregoing section states that the war circumstances include destruction of the premises or serious damage to them, then, unless plans of such works as are reasonably necessary to secure the proper conduct of the business have been submitted to the licensing court and approved by them, and the court have signified their satisfaction that the works have been executed in accordance with those plans, a notice under the foregoing subsection shall have no effect.

(3) Where a removal of a certificate for the time being in suspense by virtue of the last foregoing section is authorised under section ninety-two of this Act, the certificate shall be in force for all purposes from the time of the authorisation of the removal, and where the holder of a certificate removal of which has been so authorised desires to resume business in the premises specified in the certificate he may give notice in accordance with the foregoing provisions of this section in like manner as if the certificate were still in suspense and the said provisions shall apply accordingly.

(4) A certificate in force for all purposes after being in suspense by virtue of the last foregoing section shall, unless previously forfeited or becoming void under this Act, have effect until the expiry of the twenty-seventh day of May next following the first March half-yearly meeting of the licensing court after the time when the certificate ceased to be in suspense.

PART VI
—cont.

90.—(1) Where a certificate is in suspense by virtue of section eighty-eight of this Act and the licensing court are satisfied that there are no longer any war circumstances which justify its continuing to be in suspense, they may order it to be extinguished on the expiry of such period as may be specified in the order unless it is again in force for all purposes by virtue of the last foregoing section before the expiry of that period.

Extinguish-
ment of
certificate in
suspense when
suspension no
longer
justified.

(2) If Her Majesty by Order in Council declares that there are in general no longer any war circumstances which justify certificates continuing to be in suspense, every certificate in suspense by virtue of section eighty-eight of this Act at the date of the Order shall be extinguished on the expiry of such period as may be specified in the Order unless it is again in force for all purposes by virtue of the last foregoing section before the expiry of that period.

(3) A licensing court may, on application made to them in that behalf, extend the period specified in an order made under subsection (1) of this section, or, in relation to a particular certificate, the period specified in an Order in Council made under the last foregoing subsection.

91. The provisions of Part II of this Act with regard to renewal of certificates shall apply with any necessary modifications in relation to certificates which are at any time in suspense by virtue of section eighty-eight of this Act in like manner as those provisions apply to certificates which are in force for all purposes, and in a case in which it is certified under the said section that the war circumstances included the destruction of the premises or serious damage thereto no regard shall be had for the purposes of this section to the condition of the licensed premises.

Renewal of
certificate
in suspense.

92.—(1) Where the premises specified in any certificate which is for the time being in suspense by virtue of section eighty-eight of this Act have been destroyed or seriously damaged or have been taken possession of on behalf of Her Majesty in the exercise of emergency powers, the licensing court may authorise a removal of the certificate from the premises specified therein to other premises within their licensing area (not being premises situated in an area in which a no-licence

Provisions as
to removal of
certificate.

PART VI
—cont.

or a limiting resolution is in force by virtue of Part VIII of this Act), and where a removal is so authorised the certificate shall have effect as if those premises had been specified in it in lieu of the premises which have been so destroyed or damaged or taken possession of.

(2) A removal to any premises under this section shall not be authorised unless—

- (a) the licensing court are satisfied that no reconstruction or alteration of the premises is necessary to secure the proper conduct of the business ; or
- (b) plans of such works as are reasonably necessary for the said purpose have been submitted to the licensing court and approved by them and the licensing court have signified their satisfaction that the works have been executed in accordance with the plans approved.

(3) A removal of a certificate authorised in pursuance of this section shall cease to have effect on notice being given in pursuance of subsection (3) of section eighty-nine of this Act.

Appeals.

93. The provisions of section forty-nine of this Act as to appeal against a refusal of a licensing court to grant a renewal of a certificate shall have effect with the requisite modifications in relation to a refusal of a licensing court to authorise a removal of a certificate under subsection (1) of the last foregoing section or to approve plans or to signify their satisfaction as to the execution of works under subsection (2) of section eighty-nine of this Act or paragraph (b) of subsection (2) of the last foregoing section, and in relation to an order under subsection (1) of section ninety of this Act, and in relation to a refusal of a licensing court to grant an application under subsection (3) of the said section ninety, and the provisions of section twenty-seven of this Act shall apply in relation to any appeal in pursuance of this section.

General.

94. Any power exercisable by a licensing court under the provisions of this Part of this Act may be exercised at a general half-yearly meeting of the court or at another meeting specially convened for the purpose, and the powers conferred by subsection (2) of section eighty-nine or paragraph (b) of subsection (2) of section ninety-two of this Act to signify satisfaction of works having been executed in accordance with plans approved may be exercised by any two members of the licensing court nominated by the court for the purpose and any decision by such two members shall be deemed to be a decision of the licensing court.

95. For the purposes of this Part of this Act—

PART VI
—*cont.*

- (a) “war circumstances” means circumstances directly or indirectly attributable to any war in which Her Majesty may be or has been engaged ;
- (b) the destruction of premises or serious damage to them, though not caused by enemy action or other causes arising from war, shall be deemed in relation to a business carried on in those premises to be war circumstances if the execution of works necessary to enable the business to be carried on is prevented by war circumstances.

PART VII

SUSPENSION OF CERTIFICATES BY REASON OF COMPULSORY ACQUISITION, ETC.

96.—(1) Where the Commissioners are satisfied, on application made to them for a certificate under this subsection, that a business has been temporarily discontinued by reason of circumstances arising out of the compulsory acquisition, or the proposed compulsory acquisition, of licensed premises in which the business was carried on, other than compulsory acquisition or proposed compulsory acquisition by the Secretary of State under section eighty-three of this Act, they shall certify accordingly.

Suspension of certificate where licensed premises are compulsorily acquired.

(2) As from the date of a certificate given under the foregoing subsection, the certificate for the sale by retail of excisable liquor granted in respect of the premises which was in force immediately before the discontinuance shall be in suspense by virtue of this section until it is again in force for all purposes by virtue of this Part of this Act, or until it is extinguished by virtue of this Part of this Act or by virtue of section eighty-five of this Act.

(3) While a certificate is in suspense by virtue of this section—

- (a) it may be transferred, renewed or removed in accordance with the provisions of this Act ;
- (b) it may be forfeited, or may be avoided by reason of the disqualification of the holder, in accordance with the provisions of this Act ;

PART VII
—cont.

(c) it may be extinguished under section eighty-five of this Act;

but, except so far as is requisite for giving effect to those provisions and the other provisions of this Part of this Act, it shall not be in force for any purpose.

(4) A certificate which is in suspense by virtue of this section shall not continue so to be unless an application for renewal thereof is duly made and granted at each March half-yearly meeting of the licensing court occurring during the period of discontinuance of the business.

(5) In this Part of this Act references to compulsory acquisition of premises include references to acquisition by agreement by an authority or person, and for a purpose, such that the authority or person could be authorised to acquire the premises compulsorily.

**Restoration to
full force of
certificate in
suspense.**

97.—(1) Subject to the provisions of the next following subsection, where the holder of a certificate for the time being in suspense by virtue of the last foregoing section wishes to resume the business carried on in the premises in respect of which the certificate was granted, he may give notice in writing to that effect to the clerk to the licensing court; and from the time of his giving such notice the certificate shall be in force for all purposes.

(2) Where the certificate for the time being in suspense is in respect of a hotel or a public house, then, unless plans of such works as are reasonably necessary to secure the proper conduct of the business have been submitted to the licensing court and approved by them, and the court have signified their satisfaction that the works have been executed in accordance with those plans, a notice under the foregoing subsection shall have no effect.

(3) Where a removal of a certificate for the time being in suspense by virtue of the last foregoing section is authorised under section one hundred of this Act, the certificate shall be in force for all purposes from the time of the authorisation of the removal, and where the holder of a certificate removal of which has been so authorised desires to resume business in the premises specified in the certificate he may give notice in accordance with the foregoing provisions of this section in like manner as if the certificate were still in suspense, and the said provisions shall apply accordingly.

(4) A certificate in force for all purposes after being in suspense by virtue of the last foregoing section shall, unless previously forfeited or becoming void under this Act, have effect

until the expiry of the twenty-seventh day of May next following the first March half-yearly meeting of the licensing court after the time when the certificate ceased to be in suspense.

PART VII
—cont.

98.—(1) Where a certificate is in suspense by virtue of section ninety-six of this Act and the licensing court are satisfied that there are no longer circumstances arising out of the compulsory acquisition or proposed compulsory acquisition of the licensed premises which justify its continuing to be in suspense, they may order it to be extinguished on the expiry of such period as may be specified in the order unless it is again in force for all purposes by virtue of the last foregoing section before the expiry of that period.

Extinguish-
ment of
certificate in
suspense when
suspension
no longer
justified.

(2) The licensing court may, on application made to them in that behalf, extend the period specified in an order made under the foregoing subsection.

99. The provisions of Part II of this Act with regard to renewal of certificates shall apply with any necessary modifications in relation to certificates which are at any time in suspense by virtue of section ninety-six of this Act in like manner as those provisions apply to certificates which are in force for all purposes.

Renewal of
certificate
in suspense.

100.—(1) Where a certificate is in suspense by virtue of section ninety-six of this Act, the licensing court may authorise a removal of that certificate from the premises specified therein to other premises within their licensing area (not being premises situated in an area in which a no-licence or a limiting resolution is in force by virtue of Part VIII of this Act), and where a removal is so authorised the certificate shall have effect as if those premises had been specified in it in lieu of the premises specified therein.

Provisions as
to removal of
certificate.

(2) A removal to any premises under this section shall not be authorised unless—

- (a) the licensing court are satisfied that no reconstruction or alteration of the premises is necessary to secure the proper conduct of the business ; or
- (b) plans of such works as are reasonably necessary for the said purpose have been submitted to the licensing court and approved by them and the licensing court have signified their satisfaction that the works have been executed in accordance with the plans approved.

(3) A removal of a certificate authorised in pursuance of this section shall cease to have effect on notice being given in pursuance of subsection (3) of section ninety-seven of this Act.

PART VII*—cont.***Appeals.**

101. The provisions of section forty-nine of this Act as to appeal against a refusal of a licensing court to grant a renewal of a certificate shall have effect with the requisite modifications in relation to a refusal of a licensing court to authorise a removal of a certificate under subsection (1) of the last foregoing section or to approve plans or to signify their satisfaction as to the execution of works under subsection (2) of section ninety-seven of this Act or paragraph (b) of subsection (2) of the last foregoing section, and in relation to an order under subsection (1) of section ninety-eight of this Act, and in relation to a refusal of a licensing court to grant an application under subsection (2) of the said section ninety-eight; and the provisions of section twenty-seven of this Act shall apply in relation to any appeal in pursuance of this section.

General.

102. Any power exercisable by a licensing court under the provisions of this Part of this Act may be exercised at a general half-yearly meeting of the court or at another meeting specially convened for the purpose, and the powers conferred by subsection (2) of section ninety-seven of this Act or paragraph (b) of subsection (2) of section one hundred of this Act to signify satisfaction of works having been executed in accordance with plans approved may be exercised by any two members of the licensing court nominated by the court for the purpose, and any decision by such two members shall be deemed to be a decision of the licensing court.

PART VIII**TEMPERANCE POLLS****Temperance
polls.**

103.—(1) In this Act the expression “temperance poll” means a poll of the electors in any area taken in accordance with the provisions of this Part of this Act.

(2) If a requisition for a temperance poll in any area is made under section one hundred and thirteen of this Act, the local authority for that area shall cause such a poll to be taken in the area.

**Question for
electors at
temperance
poll.**

104.—(1) The question to be submitted to the electors at a temperance poll in any area shall be the adoption for that area of one or other of the resolutions placed before them at the poll.

(2) The resolutions to be placed before the electors at a temperance poll in any area in which such a poll has not previously been taken shall be a no-change resolution, a limiting resolution and a no-licence resolution.

(3) The resolutions to be placed before the electors at a temperance poll in any area in which such a poll has previously been taken shall be as follows, namely—

PART VIII
—cont.

- (a) if a no-change resolution is in force in that area, or if a limiting resolution or a no-licence resolution was repealed at the last poll taken in the area, a no-change resolution, a limiting resolution and a no-licence resolution ;
- (b) if a limiting resolution is in force in the area, a resolution for the repeal of such limiting resolution, a resolution for the continuance thereof, a further limiting resolution and a no-licence resolution ;
- (c) if a no-licence resolution is in force in the area, a resolution for the repeal of such no-licence resolution and a resolution for the continuance thereof.

105.—(1) A no-change resolution shall be held to have been adopted at a temperance poll if a majority of the votes recorded at such poll are in favour of that resolution or if no other resolution is adopted at the poll. Adoption of resolutions.

(2) A limiting resolution shall be held to have been adopted at a temperance poll if—

- (a) a majority of the votes recorded at such poll are in favour of that resolution, and
- (b) not less than thirty-five per cent of the electors have voted in favour thereof,

and where at any poll a no-licence resolution is not adopted, the votes recorded in favour of that resolution shall, if a limiting resolution was before the electors at the poll, be deemed to have been recorded in favour of such limiting resolution and shall be added to the votes recorded in favour thereof.

(3) A no-licence resolution shall be held to have been adopted at a temperance poll if—

- (a) not less than fifty-five per cent of the votes recorded at such poll are in favour of that resolution, and
- (b) not less than thirty-five per cent of the electors have voted in favour thereof.

(4) A resolution for the repeal of a limiting resolution or of a no-licence resolution shall be held to have been adopted at a temperance poll only if a majority of the votes recorded at such poll are in favour thereof.

(5) A resolution for the continuance of a limiting resolution shall be held to have been adopted at a temperance poll if a majority of the votes recorded at such poll are in favour of the resolution for such continuance or if no other resolution

PART VIII
—cont.

is adopted at the poll, and where at any poll a resolution for the repeal of a limiting resolution is not adopted, the votes recorded in favour of the resolution for such repeal shall be deemed to have been recorded in favour of the resolution for the continuance of such limiting resolution and shall be added to the votes recorded in favour of the resolution for such continuance.

(6) A resolution for the continuance of a no-licence resolution shall be held to have been adopted at a temperance poll if a majority of the votes recorded at such poll are in favour of that resolution or if no other resolution is adopted at the poll.

**Currency of
resolution
adopted at
temperance
poll.**

106. A resolution adopted for any area at a temperance poll shall come into force in that area on the twenty-eighth day of May next following the date on which such resolution was adopted and shall remain in force until repealed or superseded by a resolution adopted at a poll taken subsequently.

**No-change
resolution.**

107. A no-change resolution means a resolution that the powers and discretion of the licensing court in regard to the grant of certificates or otherwise shall remain unchanged.

**Limiting
resolution.**

108.—(1) While a limiting resolution is in force in any area the licensing court within whose jurisdiction such area is situated shall not grant a greater number of certificates in the area than the nearest integral number which does not exceed seventy-five per cent of the number of certificates in force in the area on the date on which such resolution was adopted.

(2) Subject to the provisions of the foregoing subsection, in any area in which a limiting resolution is in force the licensing court may exercise their ordinary powers and discretion in regard to the grant of certificates or otherwise.

**Scheme to be
made by
licensing
court in
pursuance of
limiting
resolution.**

109.—(1) Where a limiting resolution has been adopted for any area, the licensing court within whose jurisdiction such area is situated shall, before the first day of February next following the date on which such resolution was adopted, meet for the purpose of preparing a scheme for carrying out in the area the requirements of the resolution, and such scheme shall give particulars of the licensed premises whose certificates the court, in pursuance of the resolution, propose not to renew.

(2) A scheme prepared under the foregoing subsection shall be advertised forthwith by the clerk to the licensing court in a newspaper circulating in the area and shall be open to inspection by the public, at a place to be stated in the advertisement, for three weeks before the first day of March next following the date on which the limiting resolution was adopted.

PART VIII
—cont.

(3) Where a scheme has been prepared by them under subsection (1) of this section, the licensing court shall, before their next general half-yearly meeting held in March, meet for the purpose of hearing the parties interested in such scheme and of adjusting the scheme for consideration at the said general half-yearly meeting; and the licensing court shall at that general half-yearly meeting take the scheme as so adjusted into consideration and, after hearing the parties interested therein so far as not already heard and, if they modify the scheme, after hearing the parties interested in any modification, shall decide upon the certificates which, in pursuance of the limiting resolution, are not to be renewed.

(4) The decision of a licensing court in refusing to grant certificates in pursuance of a limiting resolution shall not be subject to appeal under section forty-nine of this Act.

110.—(1) Subject to the provisions of the next following section, while a non-licence resolution is in force in any area no certificate shall be granted in that area by the licensing court within whose jurisdiction the area is situated. No-licence resolution.

(2) The decision of a licensing court in refusing to grant certificates in pursuance of a no-licence resolution shall not be subject to appeal under section forty-nine of this Act.

111.—(1) Notwithstanding the provisions of the last foregoing section, while a no-licence resolution is in force in any area the licensing court within whose jurisdiction such area is situated may, if they are satisfied that in the special circumstances of the case a certificate is reasonably required, grant one or more certificates for a hotel or for premises structurally adapted for use and bona fide used or to be used as a restaurant. Grant of certificates while no-licence resolution in force.

(2) Any certificate granted in pursuance of the foregoing subsection shall be deemed to include the following conditions:—

- (a) that there shall not be a bar in the premises in respect of which the certificate is granted;
- (b) that exciseable liquor shall be sold in the premises by retail only;
- (c) in the case of a hotel, that exciseable liquor shall be sold only to persons residing in the hotel and, if the licensing court so sanction, to persons taking a meal in the premises for consumption at such meal;
- (d) in the case of a restaurant, that exciseable liquor shall be sold only to persons taking a meal in the premises for consumption at such meal.

(3) Subject to the provisions of the last foregoing subsection, any certificate granted by virtue of subsection (1) of this section in respect of a hotel shall be in the first form set out in the Second Schedule to this Act and any certificate so granted in respect of a restaurant shall be in the second form set out in the said Schedule.

PART VIII
—*cont.*

(4) A certificate granted by virtue of subsection (1) of this section shall not be renewed in any year after the year in which it is first so granted unless the applicant satisfies the licensing court by the production of an excise licence or otherwise that he is entitled to a reduction of duty in terms of paragraph 3, 4 or 5 of the Fourth Schedule to the Customs and Excise Act, 1952.

**Restriction on
grant of
wholesaler's
excise licences
in no-licence
area.**

112.—(1) While a no-licence resolution is in force in any area a wholesaler's excise licence shall not be granted to any person in respect of premises situated in that area, except—

(a) to brewers of beer for sale, distillers, rectifiers or compounders of spirits, makers of sweets or wholesale dealers in spirits, wine, beer or sweets, in respect of premises for which a wholesaler's excise licence has been in force for the period of twelve months immediately preceding the date on which the said no-licence resolution was adopted ; or

(b) to a person who produces to the Commissioners an authorisation from the licensing court within whose jurisdiction such premises are situated permitting him to deal wholesale in exciseable liquor in those premises.

(2) In the foregoing subsection the expression "premises" includes premises formed by a reconstruction of, addition to or extension of, premises on the same or an adjoining site, and any premises in substitution for other premises from which the holder of a wholesaler's excise licence has removed.

(3) An authorisation to deal wholesale in exciseable liquor, granted to any person by a licensing court under subsection (1) of this section, shall be applied for, granted, confirmed, renewed and transferred in like manner as if it were a certificate.

**Requisition for
temperance
poll.**

113.—(1) A requisition for a temperance poll in any area shall, save as provided in section one hundred and eighteen of this Act, be competent only in a year in which such a poll may, in terms of this Part of this Act, be taken in that area, and such a requisition shall not be valid unless—

(a) it is in the form set out in the Ninth Schedule to this Act ;

(b) it is made on papers issued by the clerk to the local authority ;

(c) it is signed by not less than one-tenth of the electors in the area ;

(d) the full address of each person signing it is entered in the said papers along with his signature ; and

(e) save as aforesaid, it is lodged with the clerk to the local authority during the month of September in the year in which it is desired that the poll be taken.

PART VIII
—cont.

(2) Papers for a requisition shall be issued by the clerk to the local authority to any elector on demand, but save in pursuance of section one hundred and eighteen of this Act such papers shall be issued in any area only in a year in which a temperance poll may, in terms of this Part of this Act, be taken in that area and only after the fourteenth day of August in that year, and each sheet of such papers shall bear the date on which it was issued.

(3) The clerk to the local authority shall, on receiving a requisition for a temperance poll in any area, forthwith cause a notice of the receipt thereof to be advertised in not less than two newspapers circulating in that area.

(4) A requisition shall be open to inspection by the electors at all reasonable times.

(5) A signature to a requisition shall not be withdrawn after such requisition has been lodged as aforesaid.

(6) It shall not be competent for a member of a licensing court to sign a requisition for a temperance poll.

114.—(1) Save as provided in section one hundred and eighteen of this Act, a temperance poll shall be taken in an area situated in a county only in a year in which the triennial election of county councillors representing the landward area of such county has taken place under section five of the Local Government (Scotland) Act, 1947. Years in which temperance poll may be taken.

(2) Where a temperance poll has been taken in any area then, save as provided in section one hundred and eighteen of this Act, such a poll shall not again be taken in that area before the first day of November third occurring after the date of the first-mentioned poll.

115. Save as provided in section one hundred and eighteen of this Act, a temperance poll shall be taken on a day fixed by the local authority, being a day (other than a market day) in the month of November or December next following the lodging of the requisition for such poll. Date of temperance poll.

116.—(1) Subject to the following provisions of this section, on the day on which a temperance poll is taken in any area all licensed premises in such area shall remain closed for the sale of exciseable liquor until after the hour fixed for the close of the poll. Licensed premises to be closed on day of temperance poll.

(2) Nothing in this section shall prohibit—

(a) the sale of exciseable liquor to any person in licensed premises where he is residing ; or

PART VIII
—*cont.*

- (b) the sale thereof to travellers for consumption at a meal supplied at the same time in such part of any licensed premises as is usually set apart for the service of meals ;
or
- (c) the sale or delivery thereof under the conditions prescribed by section one hundred and thirty-nine of this Act.

Procedure with
respect to
requisitions
and polls.

117.—(1) An elector shall not be entitled to vote for more than one of the resolutions placed before him at a temperance poll.

(2) The Secretary of State shall make regulations—

- (a) for regulating the procedure with respect to requisitions for a temperance poll ;
- (b) for regulating the procedure with respect to the taking of such polls ;
- (c) providing for the recounting or scrutiny of the votes recorded at such a poll when a demand is made therefor ;

and, without prejudice to the generality of the said powers, may by such regulations apply for the purposes of temperance polls, with any necessary modifications, any enactments relating to parliamentary or local government elections and to the prevention of corrupt and illegal practices thereat, including the penal provisions of such enactments.

(3) A temperance poll in any area shall be taken by ballot, and—

- (a) where such a poll has not previously been taken in that area and more than one certificate is in force in the area on the date of the poll, the ballot papers shall be in the form set out in the Ninth Schedule to this Act, subject to any modifications therein which the Secretary of State may sanction in order to meet the circumstances of the case ;
- (b) in any other case, the ballot papers shall be in the prescribed form.

(4) In the last foregoing subsection “the prescribed form” means a form prescribed by regulations made by the Secretary of State, and the Secretary of State may prescribe different forms in relation to different kinds of case.

(5) The Secretary of State shall fix a maximum scale for the expenses of a temperance poll.

118. If a temperance poll, or the declared result thereof, is declared void by a judgment of the Court of Session, then— PART VIII
—cont.

- (a) the Court of Session may, if they think fit, order the local authority concerned to cause a new poll to be taken; or Procedure where temperance poll declared void.
- (b) if no such order is made, the electors in the area concerned may by a requisition lodged with the local authority not later than two months after the date of the said judgment, demand a new poll;

and on such an order being made or such a requisition being lodged the local authority shall forthwith cause a new poll to be taken.

119.—(1) If any returning officer, presiding officer, clerk or officer of a local authority knowingly contravenes any of the provisions of this Part of this Act or any of the regulations made by the Secretary of State under section one hundred and seventeen of this Act, he shall be guilty of an offence and on conviction thereof shall be liable, in cases where no penalty is otherwise provided, to a fine not exceeding ten pounds on a first conviction and twenty pounds on a second or any subsequent conviction. Offences by returning officer, etc.

(2) If any person forges or procures the forgery of a signature to a requisition or alters or defaces a requisition, or delivers a requisition to the clerk to a local authority knowing it to contain signatures which have been forged or to have been altered or defaced in any way, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds or to imprisonment for a term not exceeding three months.

120. In this Part of this Act unless the context otherwise requires the following expressions have the meanings hereby respectively assigned to them:— Interpretation of Part VIII.

“area” means—

(a) in the case of a burgh divided into wards, being a burgh the population of which, as ascertained for the purposes of the Temperance (Scotland) Act, 1913, under section fifteen of that Act, was not less than twenty-five thousand, any ward of such burgh or, in the case of the burgh of Kilmar-nock, the combination of wards constituted by resolution of the town council under the said section fifteen; and

(b) in the case of any other burgh, the whole burgh; and

(c) in the case of a county, the parish;

PART VIII
—cont.

“county” means a county exclusive of any burgh or part of a burgh situated therein;

“elector” means, in relation to any area, a person registered under the Representation of the People Acts as a local government elector by virtue of residence, or of occupation of lands and heritages, within that area;

“local authority” means—

(a) in the case of an area being a burgh or a ward of a burgh or a combination of wards of a burgh, the town council of that burgh; and

(b) in the case of an area being a parish, the county council of the county within which that parish is situated; and

“parish” means a parish as defined in the Local Government (Scotland) Act, 1894, exclusive of any burgh or part of a burgh situated therein:

Provided that where a parish is situated within two counties, the portion in each county shall, for the purposes of this Part of this Act, be deemed to be a separate parish.

PART IX

THE PERMITTED HOURS

Prohibition
of sale and
consumption
of exciseable
liquor in
licensed
premises and
clubs except
during
permitted
hours.

121.—(1) Subject to the provisions of this Act, no person shall, except during the permitted hours,—

(a) himself, or by his servant or agent, sell or supply to any person in any licensed premises or in the premises of a registered club any exciseable liquor to be consumed either on or off the premises, or

(b) consume in, or take from, any such premises any exciseable liquor.

(2) Nothing in the foregoing subsection shall prohibit or restrict—

(a) the sale or supply to, or consumption by, any person of exciseable liquor in any premises where he is residing;

(b) the ordering of exciseable liquor to be consumed off the premises, or the dispatch by the vendor of liquor so ordered;

(c) the supply of exciseable liquor for consumption on licensed premises to any private friends of the holder of the certificate bona fide entertained by him at his own expense, or the consumption of exciseable liquor by persons so supplied;

(d) the consumption of exciseable liquor at a meal by any person at any time within half an hour after the conclusion of the permitted hours in the afternoon or

PART IX
—cont.

evening, as the case may be, if the liquor was supplied during the permitted hours and served at the same time as the meal and for consumption at the meal ;

- (e) the sale of exciseable liquor to a trader for the purposes of his trade, or to a registered club for the purposes of the club ; or
 - (f) the sale or supply of exciseable liquor to any canteen in which the sale or supply of exciseable liquor is carried on under the authority of the Secretary of State or the Admiralty or to any authorised mess of members of Her Majesty's naval, military or air forces.
- (3) If any person contravenes this section, then—
- (a) if he holds a certificate for the premises in which the contravention took place, he shall be deemed to be guilty of a breach of that certificate and shall be liable accordingly ;
 - (b) in any other case, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds.

122.—(1) Subject to the provisions of this Act, no person shall, except during the permitted hours,—

- (a) himself, or by his servant or agent, sell or supply any exciseable liquor to any person in the premises of a licensed canteen, or
- (b) consume any exciseable liquor in any such premises.

Prohibition of sale and consumption of exciseable liquor in licensed canteens except during permitted hours.

(2) Nothing in the foregoing subsection shall prohibit or restrict the consumption of exciseable liquor at a meal by any person at any time within half an hour after the conclusion of the permitted hours in the afternoon or evening, as the case may be, if the liquor was supplied during the permitted hours and served at the same time as the meal and for consumption at the meal.

(3) If any person contravenes this section he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding thirty pounds.

123.—(1) The permitted hours in licensed premises in a licensing area on weekdays shall be such as may be fixed by order of the licensing court for that area ; and, if the licensing court fix no permitted hours, they shall be the period between half past eleven in the morning and three in the afternoon, and the period between half past five and ten in the evening.

Permitted hours in licensed premises on weekdays.

(2) The permitted hours fixed by any licensing court under this section shall be eight, beginning not earlier than eleven in

PART IX
—cont.

the morning and ending not later than ten in the evening, and there shall be a break of at least two hours in the afternoon:

Provided that a licensing court may, if satisfied that the special requirements of the licensing area make it desirable, make one or both of the following orders, that is to say—

- (a) that the permitted hours in the area shall be eight and a half and shall end not later than half past ten in the evening;
- (b) that the permitted hours may begin at an hour specified in the order earlier than eleven but not earlier than ten in the morning.

(3) A licensing court may make such an order as is mentioned in paragraph (a) of the proviso to the last foregoing subsection to take effect for part of the year only, being a period of not less than eight consecutive weeks.

**Permitted
hours in clubs.**

124.—(1) The permitted hours in the premises of a registered club shall be fixed by the rules of the club and, subject to the provisions of subsection (4) of this section, shall on weekdays be not more than eight, beginning not earlier than eleven in the morning and ending not later than ten in the evening, and there shall be a break of at least two hours in the afternoon.

(2) If the licensing court for any licensing area make an order under paragraph (a) of the proviso to subsection (2) of the last foregoing section, the foregoing subsection shall, during the time that such order is in force, have effect in relation to any club situated within that area as if for the word “eight” there were substituted the words “eight and a half” and for the word “ten” there were substituted the words “half past ten”.

(3) If the licensing court for any licensing area make an order under paragraph (b) of the said proviso, subsection (1) of this section shall, during the time that such order is in force, have effect in relation to any club situated within that area as if the hour specified in the order were substituted for eleven in the morning.

(4) The permitted hours in the premises of a registered club on Sundays, Christmas Day and Good Friday shall be not more than five, and there shall be not more than two between noon and three in the afternoon and not more than three between six and ten in the evening, and none shall be outside those periods.

**Permitted
hours in
licensed
canteens.**

125.—(1) The permitted hours in a licensed canteen on weekdays shall be those fixed by or under section one hundred and twenty-three of this Act for licensed premises in the licensing area within which the canteen is situated.

(2) The permitted hours in a licensed canteen on Sundays shall be those, if any, fixed by the canteen rules ; but those hours shall be not more than five, and there shall be not more than two between noon and three in the afternoon and not more than three between six and ten in the evening, and none shall be outside those periods.

(3) Before rules are made or varied for the purposes of the last foregoing subsection a draft of the proposed rules shall, after such notices have been given as may be required by the licensing court within whose jurisdiction the canteen is situated, be submitted to such licensing court who may, within the limits laid down in that subsection, modify the proposed rules, but not so as to reduce the total number of hours proposed to be permitted ; and the rules shall not be made or varied except in accordance with the draft so submitted and subject to the modifications, if any, made by the licensing court.

126.—(1) This section shall apply to licensed premises or the premises of a registered club during the time that—

Extension of
permitted
hours on
weekdays in
restaurants,
etc.

- (a) the licensing court for the licensing area within which the premises are situated are satisfied that the premises are structurally adapted and bona fide used, or intended to be used, for the purpose of habitually providing, for the accommodation of persons frequenting the premises, substantial refreshment to which the sale and supply of exciseable liquor is ancillary, and
- (b) the holder of the certificate or, as the case may be, the secretary of the club applies the section to the premises in pursuance of subsection (5) of this section.

(2) The permitted hours in any licensed premises to which this section applies shall on weekdays be increased by the addition of one hour at the end of the evening permitted hours fixed by or under section one hundred and twenty-three of this Act.

(3) The permitted hours in the premises of any club to which this section applies shall on weekdays be increased by the addition of one hour at the end of the evening permitted hours fixed under section one hundred and twenty-four of this Act.

(4) During the said hour—

- (a) exciseable liquor shall be sold or supplied only for consumption at a meal supplied at the same time in such part of the premises as is usually set apart for the service of meals,
- (b) no person shall consume or be permitted to consume any exciseable liquor on the premises except at such a meal, and
- (c) any bar in the premises shall be closed.

(5) This section shall, subject to the licensing court remaining satisfied as mentioned in paragraph (a) of subsection (1) of this section, apply to premises from the day fixed by the holder

PART IX
—*cont.*

of the certificate or, as the case may be, the secretary of the club for the commencement of the application of the section to the premises until the expiry of the day fixed by him for the termination of the application of the section to the premises, and the latter day shall in every case be the twenty-seventh day of May.

(6) A day shall be fixed for the purposes of the last foregoing subsection by notice to the chief constable served not less than fourteen days before the day to be fixed.

(7) The holder of the certificate for premises to which this section applies, or the secretary of the club to whose premises this section applies, shall keep affixed in some conspicuous place in the premises a notice to the effect that the provisions of this section apply to the premises.

(8) If any person contravenes any provision in subsection (4) or (7) of this section, then—

(a) if he holds a certificate in respect of the premises in which such contravention took place, he shall be deemed to be guilty of a breach of such certificate and shall be liable accordingly ;

(b) in any other case, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds.

**Early-closing
certificate.**

127.—(1) On granting or transferring a hotel or a public house certificate in respect of any premises a licensing court shall, if the applicant so requests, insert in the certificate a condition that in relation to the said premises the permitted hours shall end one hour earlier in the evening than the permitted hours fixed by or under section one hundred and twenty-three of this Act.

(2) A certificate in which such a condition is inserted is in this Act referred to as an “early-closing certificate”.

**Six-day
certificate.**

128.—(1) On granting or transferring a hotel certificate in respect of any premises a licensing court shall, if the applicant requests that the sale or supply of exciseable liquor to travellers in the said premises on Sunday be prohibited, modify the certificate by deleting from condition (4) thereof the words “and travellers”.

(2) A certificate so modified is in this Act referred to as a “six-day certificate”.

(3) Nothing in this Act shall preclude the holder of a six-day certificate from selling or supplying exciseable liquor on Sunday to any person residing in the hotel for which such certificate is held.

129.—(1) The powers conferred on a licensing court by the foregoing provisions of this Part of this Act (other than section one hundred and twenty-five of this Act) shall be exercisable by them, in accordance with such procedure as may be prescribed by rules made by the Secretary of State, at their general half-yearly meeting in March; and the powers conferred on a licensing court by subsection (3) of section one hundred and twenty-five of this Act shall be exercisable on any occasion on which the licensing court have power to deal with any matter relating to a certificate.

PART IX
—*cont.*
Permitted
hours.
Supplemental
provisions.

(2) The power of a licensing court to make an order under section one hundred and twenty-three of this Act shall include power to vary an order so made by a subsequent order.

(3) An order made under the said section one hundred and twenty-three shall be published in such manner as may be prescribed by rules made by the Secretary of State.

(4) A document purporting to be issued under this Part of this Act by a licensing court shall be sufficient evidence of the contents thereof.

130.—(1) The Minister of Transport and Civil Aviation may by order bring this section into operation at any airport which appears to him to be an airport at which there is a substantial amount of international passenger traffic.

Exemption of
international
airports from
restrictions on
times at which
exciseable
liquor may be
sold or
supplied.

(2) At an airport where this section is in operation, neither section one hundred and twenty-one of this Act nor any provision or rule of law prohibiting or restricting the sale or supply of exciseable liquor on Sunday shall apply to licensed premises which are within the examination station approved for the airport under section sixteen of the Customs and Excise Act, 1952.

(3) Before the Minister makes an order bringing this section into operation at an airport, he shall satisfy himself that arrangements have been made for affording reasonable facilities in licensed premises within the said examination station on the airport for obtaining hot and cold beverages other than exciseable liquor at all times when exciseable liquor is obtainable in those premises, and if it appears to him that at any airport where this section is in operation such arrangements are not being maintained he shall revoke the order in force as respects that airport; but this subsection shall be without prejudice to his power of making a further order with respect to that airport.

(4) The power of making orders under this section shall include power to revoke a previous order and shall be exercisable by statutory instrument.

PART X

GENERAL PROVISIONS REGULATING SALE AND SUPPLY OF
EXCISEABLE LIQUOR*Breach of certificate, etc.*Breach of
certificate.

131.—(1) Every certificate shall be held subject to the conditions contained therein.

(2) If any person holding a certificate and an excise licence for the sale by retail of exciseable liquor granted to him in that behalf contravenes any of the conditions contained in such certificate, he shall be guilty of a breach of the certificate.

(3) If any person is guilty of a breach of a certificate he shall thereby be guilty of an offence and on conviction thereof shall be liable—

- (a) in the case of a first conviction, to a fine not exceeding five pounds ;
- (b) in the case of a second conviction, to a fine not exceeding ten pounds ;
- (c) in the case of a third conviction, to a fine not exceeding twenty pounds ;

and the court may award expenses against a person so convicted.

(4) Where any person is convicted of a breach of a certificate, the court may, and, in the case of a third conviction, shall, declare such certificate to be forfeited, and the certificate shall thereupon become void.

(5) Where a person is convicted of a breach of a certificate held by him in respect of any premises, then for the purposes of the last two foregoing subsections it shall be deemed to be—

- (a) a first conviction, if during the period of three years immediately preceding such conviction he has not been convicted of a breach of a certificate held by him in respect of the said premises ;
- (b) a second conviction, if during the said period he has been convicted of a breach of such a certificate and that conviction was a first conviction ;
- (c) a third conviction, if during the said period he has been convicted of a breach of such a certificate and that conviction was a second conviction.

(6) A contravention of any of the conditions contained in a certificate may be proved by the evidence of one witness.

(7) A person accused of having committed a breach of a certificate shall be cited to appear before the court at least six clear days before the day of appearance.

Offences by
manager of
licensed
canteen.

132. Where the manager of a licensed canteen is guilty of any act or omission which would, if he were the holder of a certificate, constitute a breach of his certificate, he shall be guilty of an offence under this Act and on conviction thereof shall be liable to the like punishment as for a breach of a certificate.

*Illegal sale, etc.***PART X****—cont.**

133.—(1) Subject to the provisions of this Act, if a person trafficks in any exciseable liquor in any premises or place without holding a certificate in that behalf or a licence in that behalf granted under Part III of this Act, he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding fifty pounds, and in the case of a second or subsequent conviction, to a fine not exceeding one hundred pounds, and the court may award expenses against a person so convicted.

Trafficking
without
certificate
or licence.

(2) A person may be convicted of an offence under this section on the evidence of one witness.

134.—(1) Subject to the provisions of this Act, if any person barter or sells spirits by retail without holding a certificate in that behalf, he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding fifty pounds, and in the case of a second or any subsequent conviction, to a fine not exceeding one hundred pounds, and the court may award expenses against a person so convicted.

Barter or
sale of spirits
without
certificate.

(2) A person shall, on his third conviction for an offence under this section, be disqualified for life for holding an excise licence for the sale of exciseable liquor.

(3) A conviction of any person for an offence under the next following section shall be treated as a conviction of that person for an offence under this section for the purpose of subjecting him to an increased fine or other penalty under this section.

135.—(1) If any dealer in groceries or other provisions for consumption off the premises supplies to any person, gratuitously or otherwise, spirits to be consumed on the premises, he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding fifty pounds, and in the case of a second or any subsequent conviction, to a fine not exceeding one hundred pounds, and the court may award expenses against a person so convicted.

Supply of spirits
by grocer for
consumption
on premises.

(2) A person shall, on his third conviction for an offence under this section, be disqualified for life for holding an excise licence for the sale of exciseable liquor.

(3) A conviction of any person for an offence under the last foregoing section shall be treated as a conviction of that person for an offence under this section for the purpose of subjecting him to an increased fine or other penalty under this section.

PART X
—*cont.*

Taking of
exciseable
liquor from
off-sale
premises for
sale, etc.

136. If the holder of an off-sale certificate takes, or causes or permits any other person to take, any exciseable liquor from the premises in respect of which he holds such certificate, either—

- (a) for the purpose of its being sold or hawked on his account or for his benefit or profit, or
- (b) for the purpose of its being consumed for his benefit or profit in any house, tent, shed or other premises belonging to him, or hired, used or occupied by him, or in which he may be interested,

such exciseable liquor shall be deemed to have been consumed on the premises for which the said person holds such certificate, and that person shall be deemed to be guilty of a breach of his certificate and shall be liable accordingly.

Inducing
holder of
off-sale
certificate to
sell exciseable
liquor
illegally.

137. If any person induces the holder of an off-sale certificate in respect of any premises to sell or supply to him any exciseable liquor and consumes such liquor or any part thereof in those premises, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding forty shillings.

Hawking
exciseable
liquor.

138.—(1) If any person hawks exciseable liquor, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds.

(2) A constable or any other person may arrest without warrant a person committing an offence under this section.

Delivery of
exciseable
liquor from
vehicles, etc.

139.—(1) A person shall not, in pursuance of a sale by him of exciseable liquor, deliver that liquor, either himself or by his servant or agent, from any van, barrow, basket or other vehicle or receptacle unless—

- (a) before the liquor was dispatched the quantity, description and price of the liquor and the name and address of the person to whom it was to be supplied had been entered in a day book kept in the premises from which the liquor was dispatched, and
- (b) the person delivering the liquor carries a delivery book or invoice in which there had been entered, before the liquor was dispatched, the quantity, description and price of the liquor and the name and address of the person to whom it was to be supplied.

(2) A person shall not, himself or by his servant or agent,—

- (a) carry in any van, barrow, basket or other vehicle or receptacle, while in use for the delivery of exciseable

liquor in pursuance of a sale by that person, any exciseable liquor that is not entered in a day book and delivery book or invoice under the foregoing subsection ;

(b) deliver, in pursuance of a sale, any exciseable liquor at any address not entered as aforesaid.

(3) A person shall not, himself or by his servant or agent, refuse to allow a constable to examine any van, barrow, basket or other vehicle or receptacle while in use for the delivery of exciseable liquor or to examine a delivery book or invoice carried, or day book kept, under subsection (1) of this section.

(4) The holder of a certificate shall not be guilty of an offence under this section committed by his servant or agent if he proves that the offence was committed without his knowledge or consent.

(5) Nothing in this section shall prohibit or restrict the delivery of exciseable liquor to a trader for the purposes of his trade or to a registered club for the purposes of the club.

(6) If the holder of a certificate contravenes any of the provisions of this section, he shall be deemed to be guilty of a breach of his certificate and shall be liable accordingly, and if any other person contravenes any of the said provisions, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds.

140.—(1) If any person sells or supplies exciseable liquor in the premises of an unregistered club, or authorises the sale or supply of exciseable liquor in any such premises, to a member or other person, or if any person pays for exciseable liquor so sold or supplied, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding one month, or to both such fine and such imprisonment.

(2) If exciseable liquor is kept in any such premises for sale or supply in those premises, every officer and member of the club shall be guilty of an offence and on conviction thereof shall be liable—

(a) in the case of a first conviction, to a fine not exceeding seven pounds ;

(b) in the case of a second conviction, to a fine not exceeding fifteen pounds ;

(c) in the case of a third or subsequent conviction, to a fine not exceeding thirty pounds.

(3) A person shall not be guilty of an offence under the last foregoing subsection if he proves that the liquor was kept as mentioned in that subsection without his knowledge or consent.

PART X
—cont.

(4) If a justice of the peace or magistrate is satisfied by information on oath that there are reasonable grounds for believing that exciseable liquor is being sold or supplied in the premises of an unregistered club or is being kept in any such premises for the purpose of being sold or supplied there, he may by warrant authorise a constable to enter those premises at any time, if need be by force, and to search the premises and seize any documents relating to the business of the club and to take the names and addresses of any persons found in the premises.

(5) If a justice of the peace or magistrate is satisfied by oral evidence on oath that there are reasonable grounds for believing that exciseable liquor is being kept in the premises of an unregistered club for the purpose of being sold or supplied there, he may by warrant authorise a constable to seize and remove any such liquor which the constable has reasonable grounds for supposing to be in the premises for the purpose of being sold or supplied there, together with the vessels containing the liquor.

(6) If any of the officers or members of a club from the premises of which any exciseable liquor has been removed under the last foregoing subsection is convicted of an offence under subsection (2) of this section in respect of such liquor or any part thereof, that liquor or such part thereof, as the case may be, and the vessels containing it, shall be forfeited and sold and the proceeds thereof paid into the fund of the county or burgh, as the case may be, in which the said premises are situated.

(7) If any person found in the premises of a club refuses to give his name and address on being requested to do so by a constable acting under a warrant granted in pursuance of subsection (4) of this section, or gives a false name or address on being so requested, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding five pounds.

Sale or supply
of exciseable
liquor for
consumption
outside
registered
club.

141.—(1) If any person sells or supplies exciseable liquor in the premises of a registered club for consumption off the premises, or authorises such sale or supply of exciseable liquor, or pays for exciseable liquor so sold or supplied, he shall, unless such liquor was sold or supplied to a member of the club in person for consumption by him or to a person holding an excise licence for the sale of such liquor, be guilty of an offence and on conviction thereof shall be liable—

(a) in the case of a first conviction, to a fine not exceeding seven pounds ;

(b) in the case of a second conviction, to a fine not exceeding fifteen pounds ;

- (c) in the case of a third or subsequent conviction, to a fine not exceeding thirty pounds.

PART X
—cont.

(2) A person shall not be guilty of an offence under this section if he proves that the liquor was sold or supplied as mentioned in the foregoing subsection without his knowledge or consent.

(3) Where in any proceedings under this section it is proved that any exciseable liquor has been received or delivered in the premises of a registered club and taken outside those premises for the purposes of the proceedings such liquor shall, unless the contrary is shown, be deemed to have been so taken for consumption off the premises.

142. If any person—

- (a) himself, or by his servant or agent, sells or supplies exciseable liquor in a licensed canteen for consumption outside the canteen, or
(b) takes exciseable liquor from any such canteen for consumption outside the canteen,

he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding thirty pounds.

Prohibition
of sale or
supply of
exciseable
liquor in
licensed
canteens for
consumption
off the
premises.

Persons under age

143.—(1) The holder of a certificate in respect of any premises shall not allow a person under fourteen to be in the bar of those premises during the permitted hours, and the holder of a licence under Part III of this Act in respect of any canteen shall not allow such a person to be in that canteen during the permitted hours.

Children
prohibited
from bars
and licensed
canteens.

(2) No person shall cause or procure, or attempt to cause or procure, any person under fourteen to go to, or to be in,—

- (a) the bar of any licensed premises, or
(b) any licensed canteen,

during the permitted hours.

(3) Where it is shown that a person under fourteen was in the bar of any licensed premises or in any licensed canteen during the permitted hours, the holder of the certificate or licence, as the case may be, shall be guilty of an offence under this section unless he proves either—

- (a) that he used due diligence to prevent the person under fourteen from being admitted to the bar or canteen, or
(b) that the person under fourteen had apparently attained that age.

PART X
—cont.

(4) No offence shall be committed under this section if the person under fourteen—

- (a) is a child of the holder of the certificate or licence, as the case may be, or
- (b) resides in the licensed premises but is not employed there, or
- (c) is in the bar of the licensed premises solely for the purpose of passing to or from some other part of the premises, not a bar, being a part to or from which there is no other convenient means of access or egress, or
- (d) is in the licensed canteen solely for the purpose of passing to or from some other part of premises in which the canteen is comprised, not a bar, being a part to or from which there is no other convenient means of access or egress.

(5) No offence shall be committed under this section in respect of a bar which is in any railway refreshment rooms or other premises constructed, fitted and intended to be used *bona fide* for any purpose to which the holding of a certificate is merely ancillary.

(6) If any person contravenes this section he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding forty shillings, and in the case of a second or subsequent conviction, to a fine not exceeding five pounds.

(7) Where in any proceedings under this section it is alleged that a person was at any time under fourteen, and he appears to the court then to have been under that age, for the purposes of the proceedings he shall be deemed to have been then under that age unless the contrary is shown.

**Persons under
eighteen not
to be employed
in bars or
licensed
canteens.**

144.—(1) If any person under eighteen is employed in any bar of licensed premises, or in a licensed canteen, at a time when the bar or canteen is open for the sale or consumption of exciseable liquor, the holder of the certificate or licence, as the case may be, shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding five pounds, and in the case of a second or subsequent conviction, to a fine not exceeding twenty pounds.

(2) For the purposes of this section—

- (a) a person shall not be deemed to be employed in a bar of licensed premises by reason only that in the course of his employment in some other part of the premises he enters the bar for the purpose of giving

or receiving any message or of passing to or from some other part of the premises, not a bar, being a part to or from which there is no other convenient means of access or egress ;

PART X
—cont.

- (b) a person shall not be deemed to be employed in a licensed canteen by reason only that in the course of his employment in some other part of premises in which the canteen is comprised he enters the canteen for the purpose of giving or receiving any message or of passing to or from some other part of such premises, not a bar, being a part to or from which there is no other convenient means of access or egress.

(3) For the purposes of this section a person shall be deemed to be employed by the person for whom he works notwithstanding that he receives no wages for his work.

(4) Where in any proceedings under this section it is alleged that a person was at any time under eighteen, and he appears to the court then to have been under that age, for the purposes of the proceedings he shall be deemed to have been then under that age unless the contrary is shown.

(5) A conviction for any offence shall not after five years from the date of the conviction be receivable in evidence against any person for the purpose of subjecting him under this section to an increased fine.

145.—(1) The holder of a certificate shall not knowingly sell or deliver, or allow any other person to sell or deliver, exciseable liquor to a person under fourteen :

Restriction
on sale or
delivery of
exciseable
liquor to
children.

Provided that this subsection shall not prohibit the sale or delivery of exciseable liquor to such a person—

- (a) at the residence or working place of the purchaser, or
(b) in corked and sealed vessels in quantities not less than one reputed pint for consumption off the premises only.

(2) A person shall not knowingly send any person under fourteen to any place where exciseable liquor is sold or delivered in pursuance of a sale for the purpose of obtaining exciseable liquor except for the purpose of obtaining it in corked and sealed vessels in quantities not less than one reputed pint for consumption off the premises only.

(3) This section shall not prohibit the holder of a certificate from delivering exciseable liquor to a person under fourteen who is a member of his family or his servant or apprentice and is employed as a messenger to deliver exciseable liquor, or the sending of such a person under fourteen to the licensed premises to obtain exciseable liquor.

PART X
—cont.

(4) If any person contravenes this section, he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding forty shillings, and in the case of a second or subsequent conviction, to a fine not exceeding five pounds.

(5) In this section "corked" means closed with a plug or stopper, and "sealed" means secured with any substance without the destruction of which the plug or stopper cannot be withdrawn.

**Restriction
on sale of
exciseable
liquor to young
persons for
consumption
on the
premises.**

146.—(1) The holder of a certificate or of a licence under Part III of this Act shall not knowingly sell or allow any other person to sell, and a servant of the holder of a certificate or of such a licence shall not knowingly sell, exciseable liquor to be consumed on the premises to a person under eighteen.

(2) A person under eighteen shall not buy or attempt to buy in licensed premises or in the premises of any licensed canteen exciseable liquor to be consumed by him on the premises.

(3) Nothing in the last two foregoing subsections shall prohibit the sale to, or purchase by, a person who has attained the age of sixteen of beer, porter, cider or perry for consumption at a meal in a part of any licensed premises, not a bar, usually set apart for the service of meals.

(4) The holder of a certificate or of a licence under Part III of this Act, and the servant of the holder of a certificate or of such a licence, shall not knowingly allow a person under eighteen to consume exciseable liquor in any bar in the licensed premises or to consume such liquor in the premises of the licensed canteen, as the case may be.

(5) No person shall buy or attempt to buy exciseable liquor for consumption in a bar in any licensed premises, or for consumption in the premises of any licensed canteen, by a person under eighteen.

(6) If any person contravenes this section he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding twenty shillings, and in the case of a second or subsequent conviction, to a fine not exceeding forty shillings.

Travellers

**Offences in
connection
with sale of
exciseable
liquor to
travellers.**

147.—(1) If the holder of a hotel certificate sells or supplies exciseable liquor on Sunday to any traveller, unless for consumption by such traveller in the premises of the hotel, he shall be deemed to be guilty of a breach of his certificate and shall be liable accordingly.

(2) If any traveller induces the holder of a hotel certificate or a servant of the holder of such a certificate to sell or supply exciseable liquor to him on Sunday, except for consumption by him in the premises of the hotel, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding forty shillings.

PART X
—cont.

Offences relating to measure

148. If the holder of a certificate sells, or allows any person under his control or in his employment to sell, exciseable liquor in quantities of a pint or more except in a cask or bottle or in a measure marked according to the imperial standards, he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding ten pounds, and in the case of a second or subsequent conviction, to a fine not exceeding twenty pounds, and in either case shall be liable to forfeit any illegal measure in which the liquor was sold. Sale by standard measure.

149. If any person in licensed premises or in the premises of a licensed canteen or of a registered club himself or by his servant or agent sells or supplies to any person as the measure of exciseable liquor for which he asks an amount exceeding that measure, then— Long pull prohibited.

- (a) if he holds a certificate in respect of those premises, he shall be deemed to be guilty of a breach of such certificate and shall be liable accordingly;
- (b) if he is the manager of the canteen, he shall be liable as provided in section one hundred and thirty-two of this Act;
- (c) in any other case, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds.

Sale on credit

150.—(1) A person shall not—

Restriction on credit sales

- (a) himself, or by his servant or agent, sell or supply in licensed premises or in the premises of a licensed canteen or of a registered club exciseable liquor to be consumed on the premises, or

- (b) consume exciseable liquor on any such premises,

unless it is paid for before or at the time when it is supplied or sold:

Provided that, if the liquor is sold or supplied for consumption at a meal supplied at the same time and is consumed with the meal, and the liquor is paid for together with the meal, no offence shall be committed under this section.

PART X
—*cont.*

(2) If any person contravenes this section, then—

- (a) if he holds a certificate in respect of the premises in which such contravention took place, he shall be deemed to be guilty of a breach of such certificate and shall be liable accordingly ;
- (b) if he is the manager of the canteen in which the contravention took place, he shall be liable as provided in section one hundred and thirty-two of this Act ;
- (c) in any other case, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds.

(3) Nothing in this section shall prohibit or restrict the sale or supply of exciseable liquor to any canteen in which the sale or supply of exciseable liquor is carried on under the authority of the Secretary of State or the Admiralty or to any authorised mess of members of Her Majesty's naval, military or air forces.

Order in licensed premises, etc.

Intoxicated
persons
entering
public house

151.—(1) If any person attempts to enter a public house while in a state of intoxication, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding forty shillings.

(2) A constable may arrest without warrant any person committing an offence under this section.

Intoxicated
persons in
licensed
premises.

152.—(1) If any person is in licensed premises while in a state of intoxication and incapable of taking care of himself, he shall, unless he is under the care or protection of a suitable person, be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding forty shillings.

(2) A constable may arrest without warrant any person committing an offence under this section.

(3) An offence under this section shall be deemed to be an offence mentioned in the First Schedule to the Inebriates Act, 1898.

Riotous
behaviour, etc.,
in licensed
premises.

153.—(1) If any person in licensed premises—

- (a) behaves while drunk in a riotous or disorderly manner, or
- (b) while drunk uses obscene or indecent language to the annoyance of any person,

he shall be guilty of an offence, and on conviction thereof shall be liable to a fine not exceeding forty shillings or to imprisonment for a term not exceeding thirty days.

(2) An offence under this section shall be deemed to be an offence mentioned in the First Schedule to the Inebriates Act, 1898.

PART X
—cont.

154.—(1) If any person is drunk in licensed premises while having the charge of a child under seven, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding forty shillings.

Drunken person in charge of child under seven in licensed premises.

(2) Where in any proceedings under this section it is alleged that a child was at any time under seven, and he appears to the court then to have been under that age, for the purposes of the proceedings the child shall be deemed to have been then under that age unless the contrary is shown.

(3) An offence under this section shall be deemed to be an offence mentioned in the First Schedule to the Inebriates Act, 1898.

155. All fines recovered in proceedings under any of the last three foregoing sections shall, if imposed in the burgh court of a burgh to which the Burgh Police (Scotland) Act, 1892, applies, be paid into the burgh fund.

Disposal of certain fines under ss. 152 to 154.

156.—(1) If a person in any premises licensed for the sale of exciseable liquor procures or attempts to procure any exciseable liquor for consumption by a drunken person, he shall be guilty of an offence under this section.

Procuring drink for drunken person in premises licensed for the sale of exciseable liquor.

(2) If any person aids a drunken person in obtaining or consuming any exciseable liquor in any such premises, he shall be guilty of an offence under this section.

(3) Any person guilty of an offence under this section shall on conviction thereof be liable to a fine not exceeding forty shillings or to imprisonment for a term not exceeding thirty days.

157.—(1) If a person in any premises or place licensed for the sale by retail of exciseable liquor—

Penalty on persons refusing to leave premises licensed for the sale by retail of exciseable liquor.

(a) being riotous, quarrelsome or disorderly, refuses or neglects to leave such premises on being requested so to do by the occupier or manager thereof or his servant or agent or by any constable, or

(b) refuses to leave such premises at the conclusion of the permitted hours in the afternoon or evening, as the case may be, on being requested so to do as aforesaid,

he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding forty shillings.

PART X
—*cont.*

(2) A constable may assist in expelling from any such premises any person who refuses or neglects to leave the premises on being requested so to do as aforesaid.

(3) A constable may arrest without warrant any person committing an offence under this section.

Penalty on
persons found
in shebeens
drunk or
drinking.

158.—(1) If any person is found in a shebeen drunk or drinking he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten shillings.

(2) A constable may arrest without warrant any person committing an offence under this section.

(3) The offence under this section of being found in a shebeen drunk shall be deemed to be an offence mentioned in the First Schedule to the Inebriates Act, 1898.

General

Offences in
relation to
constables.

159. If the holder of a certificate or of a licence under Part III of this Act—

- (a) knowingly suffers to remain in his premises any constable during any part of the time appointed for the constable's being on duty, except for the purpose of the execution of the constable's duty; or
- (b) supplies any liquor or refreshment, whether by way of gift or sale, to any constable on duty, except by authority of a superior officer of the constable; or
- (c) bribes or attempts to bribe any constable;

he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding ten pounds, and in the case of a second or subsequent conviction, to a fine not exceeding twenty pounds.

Prohibition
of sale of
exciseable
liquor to
persons
convicted of
drunkenness.

160.—(1) Where any person is convicted of an offence mentioned in the First Schedule to the Inebriates Act, 1898, and such person has, during the period of twelve months immediately preceding the date of such conviction, been convicted on three occasions of an offence mentioned in the said Schedule, the court may order that notice of the conviction, together with such particulars as may be prescribed, shall be sent to the police authority.

(2) The court shall, on ordering notice of the conviction of any person to be sent to the police authority in pursuance of the foregoing subsection, inform the said person that the notice is to be so sent.

(3) Where in pursuance of the foregoing provisions of this section notice of the conviction of any person has been sent to a police authority and that person has been informed that such notice is to be so sent, then—

PART X
—cont.

- (a) if the said person, within three years after the date of such conviction, purchases or obtains, or attempts to purchase or obtain, exciseable liquor at any licensed premises or at the premises of any registered club, he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding twenty shillings, and in the case of a second or subsequent conviction, to a fine not exceeding forty shillings; and
- (b) if the holder of any certificate, or any person selling or supplying exciseable liquor or authorising such sale or supply in the premises of a registered club, within the said period knowingly sells or supplies, or allows any person to sell or supply, exciseable liquor to or for consumption by the said person, he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding ten pounds, and in the case of a second or subsequent conviction in respect of the said person, to a fine not exceeding twenty pounds.

(4) Regulations shall be made by each police authority for the purpose of securing that information regarding orders made in pursuance of subsection (1) of this section is given to the holders of certificates and the secretaries of registered clubs, and for the purpose of assisting in the identification of the persons in respect of whom such orders may be made.

(5) For the purposes of this section—

“prescribed” means prescribed by rules made by the Secretary of State; and

“police authority” means the police authority within the meaning of the Police (Scotland) Act, 1956, for the police area within which the court in question is situated.

161. Subject to the provisions of this Act, exciseable liquor shall not be sold or supplied in any theatre (being a theatre in respect of which no certificate is held but for which, by virtue of subsection (2) of section one hundred and fifty of the Customs and Excise Act, 1952, a retailer's on-licence has been granted) during any time when the sale and supply of such liquor in

Sale of
exciseable
liquor in
theatres.

PART X
—cont.

public houses in the licensing area within which such theatre is situated is prohibited by or under this Act.

Drinking at
place of public
refreshment,
etc., when
public houses
closed.

162.—(1) Subject to the provisions of this Act, exciseable liquor shall not be consumed in any premises used for the sale to, or consumption by, the public of provisions, refreshments, confectionery or tobacco during any time when the consumption of such liquor in public houses in the licensing area within which such premises are situated is prohibited by or under this Act.

(2) If any person keeping or occupying any such premises permits exciseable liquor to be consumed therein in contravention of the foregoing provisions of this section, he shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding ten pounds, and in the case of a second or subsequent conviction, to a fine not exceeding twenty pounds.

(3) Such a person shall not be guilty of an offence under this section if he proves that the liquor in question was consumed without his knowledge or consent.

Supply of
exciseable
liquor on
order by
certain officials
and others.

163.—(1) The holder of a certificate in respect of any premises may supply exciseable liquor from those premises during any time when such supply would, apart from this section, be prohibited by or under this Act, on an order stating why the liquor is required and signed—

(a) by a member of a police force of or above the rank of inspector or by a constable in charge of a police station ; or

(b) by the procurator fiscal ; or

(c) by a medical official ; or

(d) in case of sickness, accident or emergency, by a duly qualified medical practitioner.

(2) Any such order shall be a sufficient defence in any prosecution in respect of the supply of the exciseable liquor to which it relates if within forty-eight hours after the supply of such liquor the order is sent by post to the procurator fiscal together with a note of the description and quantity of the liquor supplied and the name and address of the person to whom the liquor was supplied.

(3) The procurator fiscal shall, not later than seven days before the general half-yearly meeting of any licensing court having jurisdiction in the district for which he acts or any part thereof, transmit to the clerk to such court a list of orders received by him under the last foregoing subsection during the

current half-year, being orders received from persons holding certificates from that court, and the said list shall contain a note of the names and designations of all persons signing such orders.

PART X
—cont.

164.—(1) If a justice of the peace or magistrate is satisfied by oral evidence on oath that there are reasonable grounds for believing that exciseable liquor is being trafficked in in any unlicensed premises or by any person not holding an excise licence for the sale of exciseable liquor in such premises, or that such liquor is being kept for the purpose of being trafficked in in any such premises, he may by warrant under his hand authorise any member of a police force of or above the rank of sergeant, with any constable, to enter those premises at any time or times within one month from the date of the warrant and search the premises for exciseable liquor and, if such liquor be found in the premises in a quantity exceeding one gallon, to seize and remove such liquor, together with the vessels containing the liquor.

Penalty for
trafficking in
exciseable
liquor in
unlicensed
premises.

(2) Where exciseable liquor in a quantity exceeding one gallon is found as aforesaid in any unlicensed premises and it is proved that such liquor was being trafficked in in such premises or by any person not holding an excise licence for the sale of exciseable liquor in such premises, or that such liquor was being kept for the purpose of being trafficked in in such premises, the person occupying or using the premises shall be guilty of an offence and on conviction thereof shall be liable, in the case of a first conviction, to a fine not exceeding five pounds, and in the case of a second or subsequent conviction, to a fine not exceeding ten pounds.

(3) If any person occupying or using premises from which any exciseable liquor has been removed under the last foregoing subsection is convicted of an offence under this section in respect of such liquor or any part thereof, that liquor or such part thereof, as the case may be, and the vessels containing it, shall be forfeited and sold and the proceeds thereof paid into the fund of the county or burgh, as the case may be, in which the said premises are situated.

(4) In this section “unlicensed premises” means premises in respect of which no excise licence for the sale of exciseable liquor is in force.

165.—(1) If any person who occupies or keeps any premises in respect of which a certificate is held—

Penalty for
harbouring
thieves, etc.

- (a) knowingly suffers thieves or reputed thieves to remain in those premises, or knowingly permits thieves or reputed thieves to meet or assemble in the premises; or

PART X
—cont.

- (b) knowingly permits to be deposited in the premises goods which he has reasonable grounds for believing to be stolen goods ;

he shall be guilty of an offence and on his being convicted thereof the court may order him—

- (a) to pay a fine not exceeding ten pounds ; or
(b) to find caution for a sum not exceeding twenty pounds for being of good behaviour during the period of twelve months from the date of such conviction ; or
(c) both to pay such fine and to find such caution.

(2) Where any person is convicted of an offence under this section in respect of any premises, then—

- (a) in the case of a first conviction of the said person in respect of those premises, the court may declare any certificate held by such person in respect of the premises to be forfeited ;
(b) in the case of a second conviction of the said person in respect of the same premises, the court shall declare any certificate held by such person in respect of the premises to be forfeited, and the said person shall be disqualified for obtaining a certificate in respect of those premises during the period of two years from the date of such conviction ;

and any certificate so declared to be forfeited shall thereupon become void, and any certificate granted in contravention of paragraph (b) of this subsection shall be void.

(3) Where any person is convicted of an offence under this section in respect of any premises, the court shall, if within the period of three years immediately preceding the date of such conviction the same or any other person has been convicted of an offence under this section in respect of the said premises, order that a certificate shall not be granted to any person in respect of those premises within the period of one year from the said date, and any certificate granted in contravention of this subsection shall be void.

(4) The holder of a certificate shall, in any proceedings against him for an offence under this section, produce such certificate to the court for examination and, if the certificate is forfeited under this section, shall thereupon deliver it to the court ; and any person who wilfully refuses or neglects to produce his certificate in accordance with this subsection shall be guilty of an offence and on conviction thereof shall, in addition to any other penalty to which he may be liable under this section, be liable to a fine not exceeding five pounds.

PART X
—cont.

(5) All fines recovered in proceedings under this section shall be accounted for by the clerk of court and paid by him to the Exchequer.

166. If any person by any wilfully false representation induces the holder of a hotel certificate, or the servant of any such holder, to sell or supply exciseable liquor to him during any time when the sale or supply of exciseable liquor, except to lodgers or travellers, is prohibited by or under this Act, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding five pounds.

Penalty on persons obtaining exciseable liquor by false representation.

167.—(1) If the holder of a wholesaler's excise licence knowingly permits any breach of the peace, drunkenness or riotous and disorderly conduct in his premises, or sells or supplies exciseable liquor on a Sunday or to persons who are in a state of intoxication, he shall be guilty of an offence.

Forfeiture of wholesaler's excise licence in certain cases.

(2) Where any person holding such a licence is convicted of an offence under this section or of an offence under section one hundred and thirty-three, one hundred and thirty-four, one hundred and thirty-five, one hundred and thirty-eight or one hundred and thirty-nine of this Act, then—

(a) the court shall, in addition to any penalty which they may impose on such person under any other provision of this Act, declare any such licence held by that person to be forfeited; and

(b) the said person shall be disqualified for obtaining any such licence during a period of two years from the date of such conviction;

and any licence so declared to be forfeited shall thereupon become void, and any licence granted in contravention of paragraph (b) of this subsection shall be void.

(3) Where any person is convicted of any such offence as is mentioned in the last foregoing subsection the clerk of court shall forthwith send particulars of the conviction to the Commissioners.

PART XI

REGISTRATION OF CLUBS

168.—(1) The sheriff clerk for each county or other area (hereafter in this Part of this Act called "the registrar") shall keep a register of clubs situated within such county or area in respect of which a certificate of registration has been granted under this Part of this Act.

Register of clubs.

(2) There shall be entered in the said register in respect of each club registered therein—

(a) the name of the club;

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—cont.

- (b) the address of the premises in respect of which the certificate of registration has been granted;
- (c) a statement whether the club is the tenant or the proprietor and occupier of those premises;
- (d) the name and address of each official and of each member of the committee of management or governing body of the club;
- (e) the date of the certificate granted to the club; and
- (f) a statement whether the certificate has been granted for the first time or on renewal.

(3) The registration of a club under this Part of this Act shall not constitute the club licensed premises or authorise any sale of exciseable liquor therein which would otherwise be illegal.

Application
for certificate
of registration.

169.—(1) An application for a certificate of registration in respect of any club shall be signed by the chairman, secretary or solicitor of the club and shall be lodged with the registrar.

(2) There shall be specified in any such application—

- (a) the name of the club;
- (b) the objects of the club; and
- (c) the address of the premises occupied by the club.

(3) There shall be lodged along with any such application—

- (a) two copies of the rules of the club;
- (b) a list containing the name and address of each official, each member of the committee of management or governing body, and each member, of the club; and
- (c) a statement in the form aforementioned certifying that the club is to be or, in the case of an existing club, has been and is to be, conducted as a bona fide club and not mainly for the supply of exciseable liquor.

(4) Any such statement as is referred to in paragraph (c) of the last foregoing subsection shall be in, or as nearly as may be in, the form set out in the Tenth Schedule to this Act, and shall be signed either—

- (a) where the premises occupied by the club are situated within a burgh having a separate licensing court, either by two justices of the peace who for the time being are members of the court of appeal from the burgh licensing court or by two magistrates of the burgh or by one such justice and one such magistrate; or
- (b) in any other case, by two members either of the licensing court or of the court of appeal for the

PART XI
—cont.

licensing area within which the premises occupied by the club are situated, or by one member of each of the said courts, not being the same member ;

and, if the premises occupied by the club are not owned by it, the statement shall be signed also by the owner of the premises or, if the owner is under a legal disability, by his legal representative :

Provided that where the premises are held under a lease for a term of years which was entered into not later than Whitsunday, nineteen hundred and three, the signature of the owner of the premises shall not be required.

(5) Any magistrate or justice of the peace who signs such a statement as is referred to in paragraph (c) of subsection (3) of this section may, within ten days from the date on which he signed such statement, withdraw his name therefrom.

(6) Any application under this section shall be accompanied by a fee of one pound.

170.—(1) Subject to the provisions of the next following subsection, an application for the renewal of a certificate of registration granted to a club under this Part of this Act shall be lodged with the registrar by the secretary of the club not later than twenty-one days before the date of expiry of that certificate. Application for renewal of certificate of registration.

(2) Notwithstanding the provisions of the foregoing subsection, the sheriff may entertain such an application if it is lodged later than twenty-one days before the said date but shall not grant such application unless he is satisfied that the failure to lodge it timeously was due to inadvertence.

(3) The provisions of the last foregoing section shall apply in respect of an application for the renewal of a certificate of registration as they apply in respect of an application under that section.

171.—(1) On an application for the grant of a certificate of registration in respect of any club or for the renewal of any such certificate being lodged in accordance with the foregoing provisions of this Part of this Act, the registrar shall forthwith give notice of such application— Procedure on application for grant or renewal of certificate of registration.

(a) to the chief constable ;

(b) where the premises of the club are situated within a burgh, to the town council of that burgh ; and

(c) where the premises are not situated within a burgh, to the district council of the district within which the premises are situated.

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—*cont.*

(2) Objection to the grant or renewal of a certificate of registration in respect of any club may be made on any of the grounds specified in section one hundred and seventy-four of this Act by any of the persons to whom notice has been given under the foregoing subsection, and also by the procurator fiscal or any person owning or occupying property in the neighbourhood of the premises occupied by the club.

(3) Any such objections shall be lodged with the registrar by the objector and, where the objector is a chief constable, a town council or a district council, shall be so lodged within twenty-one days of the date of the receipt by the objector of the notice given to him under subsection (1) of this section by the registrar, and any objector shall, on lodging objections under this section, send a copy of such objections to the secretary of the club applying for the grant or renewal of a certificate of registration.

(4) On an application for the grant of a certificate of registration in respect of any club or for the renewal of such a certificate,—

(a) if no objections to the grant or renewal of such certificate are lodged in accordance with the foregoing provisions of this section, or if all such objections are withdrawn, the sheriff shall, if he is satisfied that the application has been duly made in accordance with the foregoing provisions of this Part of this Act and that the rules of the club are in conformity with the provisions of this Act, grant the application;

(b) if such objections are lodged and not withdrawn, the sheriff shall as soon as may be hear parties upon the application and objections and may order such inquiry as he thinks fit, and shall thereafter grant or refuse the certificate, and may award expenses against the unsuccessful party.

(5) The sheriff shall, on granting any such application, cause the entries required by section one hundred and sixty-eight of this Act to be made in the register of clubs and thereupon the registrar shall issue to the applicant a certificate of registration in, or as nearly as may be in, the form set out in the Tenth Schedule to this Act.

Currency of
certificate of
registration.

172. A certificate of registration shall, subject to the provisions of this Part of this Act, remain in force for a period of twelve months from the date of issue:

Provided that where an application for the renewal of such a certificate has been made, that certificate shall remain in force

pending the final decision of the sheriff on such application for a period not exceeding three months from the date on which the certificate would otherwise have expired and, if the sheriff thinks fit, for a further period not exceeding three months.

PART XI
—cont.

173. A certificate of registration shall not be granted under this Part of this Act to any club unless the rules of the club provide— Club rules
qualifying for
registration.

- (a) that the business and affairs of the club shall be under the management of a committee or governing body elected for not less than a year by the general body of members and subject in whole or in a specified proportion to annual re-election;
- (b) that no member of the committee or governing body and no manager or servant employed in the club shall have any personal interest in the sale of exciseable liquor therein or in the profits arising from such sale;
- (c) that the committee or governing body shall hold periodical meetings;
- (d) that all members of the club shall be elected by the whole body of members or by the committee or governing body, with or without specially added members;
- (e) that the names and addresses of persons proposed as ordinary members of the club shall be displayed in a conspicuous place in the club premises for at least a week before their election, and that an interval of not less than two weeks shall elapse between the nomination and election of ordinary members;
- (f) that no person under eighteen shall be admitted a member of the club unless the club is one devoted primarily to some athletic purpose, and in the latter case that no exciseable liquor shall be sold or supplied to any person under eighteen;
- (g) that no persons shall be allowed to become honorary or temporary members of the club or be relieved of the payment of the regular entrance fee or subscription except those possessing certain qualifications defined in the rules and subject to conditions and regulations prescribed therein;
- (h) that there shall be a defined subscription payable in advance by members;
- (i) that correct accounts and books shall be kept showing the financial affairs and intromissions of the club;

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—cont.

- (j) that the permitted hours specified in the rules shall be applicable to the club ;
- (k) that a visitor shall not be supplied with exciseable liquor in the club premises unless on the invitation and in the company of a member and that the member shall, upon the admission of such visitor to the club premises or immediately upon his being supplied with such liquor, enter his own name and the name and address of the visitor in a book which shall be kept for the purpose and which shall show the date of each visit ; and
- (l) that no exciseable liquor shall be sold or supplied in the club premises for consumption off the premises except to a member of the club in person for consumption by him or to a person holding an excise licence for the sale of such liquor :

Provided that the foregoing paragraphs of this section, other than paragraph (j) thereof, shall not apply to any lodge of Freemasons duly constituted under a charter from the Grand Lodge of Scotland, and that paragraphs (d), (e) and (f) of this section shall not apply to a university Students' Union which is recognised and certified as such to the registrar by the Senatus Academicus of a university.

Competent
grounds of
objection to
registration.

174. The sheriff shall not consider any objection to the grant or renewal of a certificate of registration unless it is made on one or more of the following grounds :—

- (a) that the application made by the club is in any respect specified in such objection not in conformity with the provisions of this Act ;
- (b) that the rules of the club are in any respect specified in such objection not in conformity with the provisions of this Act ;
- (c) that the club has ceased to exist or has less than twenty-five members ;
- (d) that the premises are, or the situation thereof is, not suitable or convenient for the purpose of a club ;
- (e) that the club occupies premises in respect of which, within the period of twelve months immediately preceding the formation of the club, a certificate for the sale by retail of exciseable liquor granted under this Act had been forfeited or the renewal of such a certificate refused, or in respect of which at the time when the premises were first occupied by the

PART XI
—cont.

club an order was in force under section one hundred and seventy-six of this Act that they should not be used for the purposes of a club ;

- (f) that the club is not conducted in good faith as a club, or that it is kept or habitually used for any unlawful purpose or mainly for the supply of exciseable liquor ;
- (g) that there is a bar in the premises, or that a part of the premises is exclusively or mainly used for the consumption of exciseable liquor ;
- (h) that the club is to be used mainly as a drinking club ;
- (i) that there is frequent drunkenness in the club premises, or that persons in a state of intoxication are frequently seen to leave the premises ;
- (j) that the club is conducted in a disorderly manner ;
- (k) that illegal sales of exciseable liquor have taken place in the club premises ;
- (l) that persons who are not members of the club are habitually admitted to the club premises merely for the purpose of obtaining exciseable liquor ;
- (m) that the supply of exciseable liquor to the club is not under the control of the members of the club or of the committee of management or governing body of the club ;
- (n) that the officials and committee of management or governing body of the club, or the manager, or a servant employed in or by the club, have or will have a personal interest in the purchase by the club or in the sale in the premises of the club of exciseable liquor or in the profits arising therefrom, or, where the said premises are not owned by the club, that the owner or the immediate lessor of the premises has or will have such a personal interest ;
- (o) that any of the rules of the club are habitually broken ;
- (p) that persons are habitually admitted or supplied as members of the club without an interval of at least two weeks between their nomination and election as ordinary members, or for a subscription of a nominal amount ;
- (q) That the officials and committee of management or governing body of the club, or the members of the club, are persons of bad character or persons who

PART XI
—*cont.*

follow no lawful occupation and have no means of subsistence ;

- (r) that the club has been or will be used as the resort of criminals or persons of bad character, or that men or women of bad fame assemble in or frequent the club ;
- (s) that exciseable liquor is sold or supplied for consumption on or off the premises outwith the permitted hours.

**Cancellation
of certificate
of registration.**

175.—(1) Any person entitled under subsection (2) of section one hundred and seventy-one of this Act to object to the renewal of the certificate of registration held by a registered club may apply to the sheriff or, if the premises occupied by the club are situated within a burgh, to the sheriff or to a magistrate, for a finding that the club is being so managed or carried on as to give rise to a ground of objection to the renewal of its certificate, being one of the grounds of objection specified in the last foregoing section, and the sheriff or magistrate may, if he is satisfied that such ground of objection has been established, make such finding and shall specify therein the grounds for the finding.

(2) Where on an application under the foregoing subsection such a finding as is therein mentioned has been made in respect of any club, or where a conviction has taken place under section one hundred and forty-one of this Act in respect of exciseable liquor sold or supplied in any club, a certified copy of the application and finding or of the complaint and conviction, as the case may be, shall, within six days from the date of the finding or the conviction, be transmitted by the clerk of the court (unless he is also the registrar) to the registrar.

(3) Where—

- (a) such a finding as is mentioned in subsection (1) of this section has been made in respect of any club ; or
- (b) a conviction has taken place under section one hundred and forty-one of this Act in respect of exciseable liquor sold or supplied in any club ;

the registrar shall enter such finding or conviction, as the case may be, in the register of clubs and lay the same before the sheriff, and the sheriff may, if he thinks fit, after such further enquiry as he may think necessary, and having regard to the grounds specified in such finding or the magnitude of the offence, as the case may be, cancel the certificate of registration of such club.

(4) Where the certificate of registration of any club has been cancelled under the last foregoing subsection, that club may apply for the renewal of such certificate at the date at which it would have been competent so to do if the certificate had not been cancelled.

(5) The sheriff may, on an application under subsection (1) of this section, award expenses against the unsuccessful party.

176.—(1) Where the sheriff has refused an application by a club for the renewal of its certificate of registration or where under the last foregoing section he has cancelled the certificate held by a club, he may, if he thinks fit, order that the premises occupied by that club shall not be occupied and used for the purposes of any registered club. Disqualification of premises for purposes of club.

(2) An order made under the foregoing subsection shall be in force for such period as the order shall specify, not exceeding—

- (a) if the premises have not been subject to a previous order under that subsection, twelve months;
- (b) if the premises have been subject to any such previous order, five years.

(3) Such an order may, on good cause being shown, be subsequently cancelled or varied by the sheriff.

177.—(1) Where a finding has been made under subsection (1) of section one hundred and seventy-five of this Act that a registered club is being so managed or carried on as to give rise to a ground of objection to the renewal of its certificate of registration, then if a ground of objection mentioned in paragraph (f), (i), (j) or (l) of section one hundred and seventy-four of this Act is specified in such finding, every person entered in the register of clubs as an official or a member of the committee of management or governing body of the said club shall be guilty of an offence and on conviction thereof shall be liable— Penalties for offences by officials of registered club.

- (a) in the case of a first conviction, to a fine not exceeding seven pounds;
- (b) in the case of a second conviction, whether in respect of the same or a different club, to a fine not exceeding fifteen pounds; and
- (c) in the case of a third or subsequent conviction, whether in respect of the same or a different club, to a fine not exceeding thirty pounds.

(2) A person shall not be convicted of an offence under this section if he proves that the club was managed or carried on as aforesaid without his knowledge or consent.

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—*cont.*

Penalty for
lodging false
application for
registration.

178. If any person in an application lodged under subsection (1) of section one hundred and sixty-nine of this Act or in any of the accompanying documents specified in subsection (3) of that section, makes any statement which he knows to be false in a material particular, or recklessly makes any statement which is false in a material particular, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding fifty pounds or to imprisonment for a term not exceeding three months or to both such fine and such imprisonment.

Power to
police to
enter club.

179.—(1) If a justice of the peace or magistrate is satisfied by information on oath that there are reasonable grounds for believing—

- (a) that any registered club is being so managed or carried on as to give rise to a ground of objection to the renewal of its certificate of registration, being one of the grounds of objection specified in section one hundred and seventy-four of this Act; or
- (b) that an offence under this Act has been or is being committed in any registered club;

he may by warrant authorise a constable to enter the premises of such club at any time, if need be by force, and to search the premises and seize any documents relating to the business of the club and to take the names and addresses of any persons found in the premises.

(2) If any person found in the premises of a club refuses to give his name and address on being requested to do so by a constable acting under a warrant granted in pursuance of the foregoing subsection, or gives a false name or address on being so requested, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding five pounds.

Inspection of
register of
clubs and of
rules of club.

180.—(1) The register of clubs and a copy of the rules of any registered club lodged with the registrar under subsection (3) of section one hundred and sixty-nine of this Act shall at all reasonable times be open to inspection on payment of a fee of one shilling.

(2) A chief constable or any constable authorised by him in writing or an officer of Customs and Excise shall be entitled to inspect the register of clubs and a copy of the rules of any registered club lodged as aforesaid at all reasonable times without payment.

Citation of
registered
club.

181. Any citation of a registered club may be validly made in the registered name thereof in terms of the Citation Amendment (Scotland) Act, 1882, or by a copy of such citation being left by an officer of court at the registered address of the club.

182.—(1) The jurisdiction conferred on the sheriff by this Part of this Act shall not be excluded in relation to any club by reason only of the fact that he is a member of that club.

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—cont.

Sheriff's
jurisdiction
and decision.

(2) The decision of the sheriff in dealing with an application for the grant of a certificate of registration or for the renewal of such a certificate or in cancelling such a certificate shall be final.

183. In this Part of this Act references to the secretary of a club shall include references to any officer of the club or other person performing the duties of a secretary.

PART XII

SUPPLEMENTARY

184.—(1) A constable may at any time enter and inspect any premises in respect of which a hotel certificate or a public house certificate is in force or the premises of any licensed canteen, and may also at any time enter and inspect premises in respect of which an off-sale certificate is in force if he has reasonable grounds for believing that a breach of such certificate is being committed on those premises.

Power to
police to
enter licensed
premises and
licensed
canteens.

(2) If any person fails to admit a constable who demands entry to such premises in pursuance of this section or obstructs the entry to the premises of such a constable, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds.

185.—(1) A constable may at any time enter and inspect any temperance hotel, restaurant, shop, vessel or other place where food or drink is sold for consumption on the premises or in which he has reasonable grounds for believing that exciseable liquor is being trafficked in unlawfully:

Power to
police to enter
unlicensed
premises.

Provided that a member of a police force below the rank of inspector shall not exercise any power of entry conferred by this section unless he has previously obtained the authority in writing of a justice of the peace, magistrate or member of a police force of or above the said rank, and shall not exercise such power later than eight days from the date of such authority and shall exercise it at such time or times only as may be specified in the authority.

(2) If any person fails to admit a constable who demands entry to any premises or place in pursuance of this section or obstructs the entry to the premises or place of such constable, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding ten pounds.

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Proof of trafficking in exciseable liquor without certificate.

186. It shall be sufficient evidence that a person was trafficking in any exciseable liquor in any premises or place without holding a certificate in that behalf or a licence in that behalf granted under Part III of this Act if it is proved—

- (a) that a person other than the owner or occupier of such premises or place was at the time charged found therein drunk or drinking, or having had drink supplied to him therein ; and
- (b) either that such premises are, or such place is, by repute kept as a shebeen or that at the time charged such premises or place contained drinking utensils and fittings usually found in licensed premises.

Burden of proof in case of drunkenness in licensed premises or licensed canteen.

187. If the holder of a certificate, or of a licence under Part III of this Act, in respect of any premises is charged with knowingly permitting drunkenness in those premises and it is proved that any person was drunk in the premises, it shall lie on the holder of the certificate or licence to prove that he and the persons employed by him took all reasonable steps to prevent drunkenness in the premises.

Power to close licensed premises in case of riot.

188.—(1) The sheriff may, if a riot or tumult happens or is expected to happen, order every holder of a certificate in respect of premises situated in or near the place where the riot or tumult happens or is expected to happen to close those premises during such time as may be specified in the order.

(2) If the holder of any certificate keeps his premises open for the sale of exciseable liquor during any time at which, by virtue of an order made under the foregoing subsection, they are required to be closed, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding fifty pounds.

Trial of offences.

189.—Except as otherwise provided in this Act the following provisions shall have effect in relation to the trial of offences under this Act,—

- (a) any such offence shall be tried in a summary manner ;
- (b) any such offence, not being an offence referred to in paragraph (c) or (d) of this section, may be tried in any court of summary jurisdiction ;
- (c) the following offences shall be tried only in the sheriff court, that is to say, any offence under section ten, thirty, thirty-nine, forty, sixty-two, eighty-two, eighty-three, one hundred and nineteen, one hundred and twenty-two, one hundred and thirty-two, one hundred and forty-two, one hundred and forty-three, one hundred and forty-four, one hundred and seventy-eight,

one hundred and eighty-eight, one hundred and ninety-two or one hundred and ninety-three of this Act ;

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—cont.

- (d) any offence under section one hundred and thirty-eight or one hundred and fifty-eight of this Act shall be tried only in a court of summary jurisdiction other than the sheriff court ;
- (e) where an offence under section one hundred and thirty-eight, one hundred and fifty-one, one hundred and fifty-two, one hundred and fifty-seven, one hundred and fifty-eight or one hundred and sixty-six of this Act is tried in a justice of the peace court, such court may be constituted by a single justice ;
- (f) an offence under this Act may be tried either in a court having jurisdiction in the place where the offence is alleged to have been committed or in a court having jurisdiction in the place where the person charged with having committed the offence resides ;
- (g) in any such trial the court may, upon proof that the accused has been duly cited to appear, proceed in the absence of the accused.

190.—(1) The justices of the peace for any county in general quarter sessions assembled, or the town council of any burgh, may if they think fit appoint a person whose duty it shall be to prosecute persons charged with offences under this Act in the justice of the peace court or the burgh court, as the case may be.

Appointment
and remuneration of
prosecutors.

(2) Any prosecutor ordinarily acting in a justice of the peace court or a burgh court, and any person appointed under the foregoing subsection for the purpose of prosecuting offences under this Act in such a court, shall receive in respect of prosecutions and any other business done by him under this Act such remuneration, whether by way of salary or of fees, as the justices of the peace in general quarter sessions or the town council, as the case may be, may determine.

191.—(1) The salary payable under the last foregoing section to any prosecutor ordinarily acting in a justice of the peace court or a burgh court or to any person appointed under that section for the purpose of prosecuting offences under this Act in such a court, or the taxed amount of the fees payable as aforesaid to any such prosecutor or person, as the case may be, together with all necessary and proper outlays attending any prosecution in such a court or any other business done by such a prosecutor or person under this Act, shall, in the case of a royal or parliamentary burgh having a separate licensing court, be paid out of the burgh fund, and in any other case be paid out of the county fund.

Expenses of
prosecutions,
etc., and
disposal of
certain fines.

PART XII
—*cont.*

(2) Except as otherwise provided in this Act, all fines and expenses of prosecution recovered under this Act, being fines or expenses imposed or awarded in proceedings for offences under any of the after-mentioned sections of this Act, shall, if imposed or awarded in the burgh court of a royal or parliamentary burgh having a separate licensing court, be paid into the burgh fund and in any other case be paid into the county fund.

The sections referred to are sections ten, twenty-seven, twenty-nine, thirty, thirty-nine, forty, sixty-two, sixty-four, one hundred and twenty-one, one hundred and twenty-six, one hundred and thirty-one, one hundred and thirty-three to one hundred and forty-one, one hundred and forty-five to one hundred and fifty, one hundred and fifty-two to one hundred and fifty-four, one hundred and fifty-six to one hundred and sixty, one hundred and sixty-two, one hundred and sixty-four, one hundred and sixty-six, one hundred and seventy-seven to one hundred and seventy-nine, one hundred and eighty-four, one hundred and eighty-five, one hundred and ninety-two and one hundred and ninety-three.

Convictions of
breach of
certificate to
be transmitted
to clerk to
licensing court.

192.—(1) Where the holder of a certificate in respect of any premises is convicted of a breach thereof, a certified extract of such conviction shall, within six days after the date of the conviction, be transmitted by the clerk of court to the clerk to the licensing court within whose jurisdiction such premises are situated.

(2) The clerk to a licensing court shall, on receiving a certified extract of any conviction transmitted to him in pursuance of the foregoing subsection, enter in the register kept by him under section thirty-eight of this Act, opposite the name of the person to whom the conviction applies, a note of the conviction, specifying the date thereof and whether it is a first, second, third or subsequent conviction, and the said register shall be produced to the licensing court by the clerk at each general half-yearly meeting of such court.

(3) If the clerk of any court fails to transmit, in pursuance of subsection (1) of this section, a certified extract of any conviction, he shall be guilty of an offence and on conviction thereon shall be liable to a fine not exceeding five pounds.

Clerk to
licensing court
to certify
certain
convictions of
breach of
certificate to
Customs and
Excise.

193.—(1) Where the holder of a certificate has been convicted of a breach thereof and upon such conviction the certificate has been declared forfeited by the court in pursuance of subsection (4) of section one hundred and thirty-one of this Act, the clerk to the licensing court who granted the certificate shall transmit to the Commissioners or to the Collector of Customs and Excise of the appropriate collection notice of the said conviction in the form set out in the Eleventh Schedule to this Act.

(2) Any such notice of conviction shall be transmitted in pursuance of the foregoing subsection—

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—cont.

- (a) if the clerk to the licensing court officiated as clerk of court at the conviction in question, within six days after the date of such conviction ;
- (b) if the said clerk did not so officiate, within six days after the receipt by him of a certified extract of the conviction transmitted to him in pursuance of the last foregoing section.

(3) If the clerk to any licensing court fails to transmit, in pursuance of the foregoing provisions of this section, notice of any conviction, he shall be guilty of an offence and on conviction thereof shall be liable to a fine not exceeding five pounds.

194.—(1) Any person aggrieved by a judgment of the justices of the peace for any county in a prosecution brought for an offence under this Act may, subject to the conditions hereinafter mentioned, appeal against such judgment to the next quarter sessions for the said county. Appeal from justices of the peace to quarter sessions.

(2) Any person desiring to appeal under this section against a judgment of the justices of the peace shall, within eight days after the date of the said judgment,—

- (a) lodge his appeal with the clerk to the said justices ;
- (b) deposit with such clerk the amount of any fine and expenses awarded against him ;
- (c) find caution with such clerk to abide the appeal and to pay any sums which may finally be awarded against him ; and
- (d) give intimation of his appeal by serving a copy thereof on the opposite party ;

and if the said person fails to comply with any of the conditions specified in this subsection his appeal shall not be entertained.

195. No proceedings against any sheriff, justice of the peace, magistrate, sheriff clerk, clerk of the peace, town clerk, clerk to a licensing court or court of appeal, procurator fiscal, constable or other person on account of anything done in execution of this Act shall lie unless they are commenced within two months after the cause of such proceedings has arisen. Limitation of actions against sheriffs, etc.

196. Any notice or document required or authorised to be given or served under this Act may be served by post. Notices, etc.

PART XII*—cont.*Orders,
rules and
regulations.

197. Any power of the Secretary of State to make orders, rules or regulations under this Act, except the power of the Secretary of State to make orders under section seven or Part IV of this Act or under the Seventh Schedule to this Act, shall be exercisable by statutory instrument.

Exemptions
and savings.

198. Nothing in this Act shall—

- (a) affect the exemption from the requirement to take out a certificate conferred on a person holding a canteen under the authority of the Secretary of State or the Admiralty by paragraph (a) of the proviso to subsection (1) of section one hundred and fifty of the Customs and Excise Act, 1952 ;
- (b) affect the exemption from the requirement to take out a certificate conferred on the proprietors of theatres erected before the first day of January, nineteen hundred and four, by subsection (2) of the said section one hundred and fifty ;
- (c) affect the right of any person, by virtue of an order made by the Commissioners under subsection (3) of the said section one hundred and fifty, to carry on his business during the pendency of an appeal against the refusal of a licensing court to renew his certificate ;
- (d) affect the exemption from the requirement to take out a certificate conferred in respect of passenger aircraft, passenger vessels and railway passenger vehicles by section one hundred and fifty-five of the said Act or apply to the sale of exciseable liquor in such aircraft, vessels or vehicles ;
- (e) save as expressly provided in this Act, prohibit the sale of exciseable liquor by wholesale ; or
- (f) affect any penalties recoverable by or on behalf of the Commissioners, or any laws relating to excise.

Interpretation.

199.—(1) In this Act unless the context otherwise requires the following expressions have the meanings hereby respectively assigned to them :—

- “ bar ” includes any place exclusively or mainly used for the sale and consumption of exciseable liquor ;
- “ burgh ” means a burgh within the meaning of the Local Government (Scotland) Act, 1947 ;
- “ burgh court ” includes any police court ;
- “ burgh licensing court ” has the meaning assigned to it by section one of this Act ;
- “ certificate ” means a certificate for the sale by retail of exciseable liquor granted under this Act ;

- “the Commissioners” means the Commissioners of Customs and Excise ;
- “constable” means a constable of a police force maintained under the Police (Scotland) Act, 1956 ;
- “contravene” includes fail to comply with, and “contravention” has a corresponding meaning ;
- “county licensing court” has the meaning assigned to it by section two of this Act ;
- “court of appeal” has the meaning assigned to it by section three of this Act ;
- “development corporation” has the same meaning as in the New Towns Act, 1946 ;
- “early-closing certificate” has the meaning assigned to it by section one hundred and twenty-seven of this Act ;
- “enactment” includes an enactment contained in any order, regulation or other instrument having effect by virtue of an Act of Parliament ;
- “exciseable liquor” includes spirits, wine, porter, ale, beer, cider, perry and sweets, but does not include any liquor which on analysis of a sample thereof at any time is found to be of an original gravity not exceeding one thousand and sixteen degrees and to be of a strength not exceeding two degrees of proof so long as such liquor may, under the laws relating to excise, be sold whether by wholesale or by retail without an excise licence ;
- “grant” in relation to a certificate includes a grant by way of renewal, and “application” shall be construed accordingly ;
- “hawking” means trafficking in or about the streets, highways or other places or in or from any boat or other vessel on the water ;
- “hotel” means—
- (a) in towns and the suburbs thereof, a house containing at least four apartments set apart exclusively for the sleeping accommodation of travellers ; and
- (b) in rural districts and populous places not exceeding one thousand inhabitants according to the census for the time being last taken, a house containing at least two such apartments ;
- “hotel certificate” has the meaning assigned to it by section thirty-two of this Act ;
- “licensed canteen” means a seamen’s canteen in respect of which a licence under Part III of this Act is in force ;
- “licensing area” means any burgh or county for which there is a separate licensing court, or any licensing district ;

PART XII
—cont.

“licensing court” means a licensing court constituted under section one or two of this Act;

“licensing district” has the meaning assigned to it by section two of this Act;

“limiting resolution” has the meaning assigned to it by section one hundred and eight of this Act;

“magistrate” includes, in relation to the trial of offences, any person authorised by any enactment to act as judge in a burgh court;

“new certificate” means a certificate granted in respect of premises for which, at the time of the application for such grant, either no certificate was in force or a certificate in a form different from the form of certificate so granted was in force:

Provided that a certificate granted in respect of premises which have been rebuilt after having been destroyed by fire, tempest or other unforeseen cause and for which, at the time when they were so destroyed, a certificate in the same form as the first-mentioned certificate was in force, shall be deemed not to be a new certificate;

“no-change resolution” has the meaning assigned to it by section one hundred and seven of this Act;

“no-licence resolution” has the meaning assigned to it by section one hundred and ten of this Act;

“occasional licence” means an excise licence granted under section one hundred and fifty-one of the Customs and Excise Act, 1952;

“off-sale certificate” has the meaning assigned to it by section thirty-two of this Act;

“permitted hours” means the hours during which the sale, supply and consumption of exciseable liquor are permitted under Part IX of this Act;

“public house” includes an inn, ale-house, victualling house or other premises in which exciseable liquor is sold by retail for consumption either on or off the premises;

“public house certificate” has the meaning assigned to it by section thirty-two of this Act;

“registered club” means a club in respect of which a certificate of registration under Part XI of this Act has been granted and is in force, and “unregistered club” shall be construed accordingly.

“retailer’s on-licence” has the meaning assigned to it by section one hundred and forty-nine of the Customs and Excise Act, 1952;

PART XII
—cont.

- “shebeen” means any house, shop, room, premises or place in which exciseable liquor is trafficked in by retail without a certificate and excise licence in that behalf;
- “six-day certificate” has the meaning assigned to it by section one hundred and twenty-eight of this Act;
- “special permission” means a special permission granted under section sixty of this Act;
- “State management district,” has the meaning assigned to it by section eighty-one of this Act;
- “sweets” means sweets as defined in subsection (1) of section three hundred and seven of the Customs and Excise Act, 1952, as amended by subsection (1) of section two of the Finance Act, 1956;
- “temperance poll” has the meaning assigned to it by section one hundred and three of this Act;
- “trafficking” means bartering, selling, dealing in, trading in, or exposing or offering for sale, by retail;
- “wholesaler’s excise licence” means an excise licence to deal wholesale in exciseable liquor granted under section one hundred and forty-six of the Customs and Excise Act, 1952.

(2) Any reference in this Act to licensed premises shall, unless the context otherwise requires, be construed as a reference to premises for which a certificate is in force and as including a reference to any premises where the Secretary of State carries on a business of selling exciseable liquor by retail in exercise of powers conferred on him by Part V of this Act.

(3) References in this Act to a general half-yearly meeting of a licensing court shall, unless the context otherwise requires, be construed as including references to any adjournment of such a meeting.

(4) References in this Act to the form of a certificate shall be construed as references to one or other of the forms of certificate set out in the Second Schedule to this Act.

(5) Anything required or authorised by this Act to be done by or to a clerk of the peace may be done by or to a depute appointed by such clerk, and any reference in this Act to a clerk of the peace shall, where the depute is acting for the clerk, include a reference to the depute.

(6) Subject to the provisions of this Act, references in this Act to a second conviction of an offence under any provision of this Act shall be construed as references to conviction of an offence under that provision committed after a previous conviction of such an offence; and references in this Act to a third conviction or to a subsequent conviction shall be construed accordingly.

PART XII
—cont.

(7) Except where the context otherwise requires, references in this Act to any enactment shall include a reference to that enactment as amended, extended or applied by any other enactment, including this Act.

Repeals.

200.—(1) The enactments mentioned in the Twelfth Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(2) Nothing in this repeal shall affect any order, requirement, rule or regulation made, direction given or any thing done under any enactment repealed by this Act ; but any such order, requirement, rule, regulation, direction or thing shall, so far as it has effect immediately before the commencement of this Act, continue to have effect, and, so far as it could have been made, given or done under the corresponding provision of this Act, have effect as if it had been made, given or done under that corresponding provision.

(3) Any document referring to an enactment repealed by this Act shall be construed as referring to the corresponding provision of this Act.

(4) Any document referring to an authority for the purpose of granting certificates or hearing appeals relative thereto, or to the members of or a meeting of any such authority, or to the clerk to any such authority, shall be construed as referring to a licensing court or court of appeal, as the case may be, or to the members of or a meeting of any such court, or to the clerk to any such court.

(5) The mention of particular matters in this section shall not affect the general application to this Act of section thirty-eight of the Interpretation Act, 1889 (which relates to the effect of repeals).

**Short title,
extent and
commence-
ment.**

201.—(1) This Act may be cited as the Licensing (Scotland) Act, 1959.

(2) This Act shall extend to Scotland only.

(3) This Act shall come into force on the first day of January, nineteen hundred and sixty.

SCHEDULES

FIRST SCHEDULE

Sections 2, 3,
31.CONSTITUTION OF COUNTY LICENSING COURTS AND OF CERTAIN
COURTS OF APPEAL

PART I

CONSTITUTION OF COUNTY LICENSING COURTS

Class I.—Where population of county or licensing district
is under 25,000.

Licensing Court—

County Councillors, 4; Justices, 4; Total, 8.

Class II.—Population of or exceeding 25,000 but under 50,000.

Licensing Court—

County Councillors, 6; Justices, 6; Total, 12.

Class III.—Population of or exceeding 50,000 but under 100,000.

Licensing Court—

County Councillors, 7; Justices, 7; Total, 14.

Class IV.—Population of or exceeding 100,000.

Licensing Court—

County Councillors, 9; Justices, 9; Total, 18.

PART II

CONSTITUTION OF COURT OF APPEAL IN EACH COUNTY FROM THE
LICENSING COURTS FOR ALL BURGHS IN THE COUNTY WITH A
POPULATION OF OR EXCEEDING 7,000 BUT UNDER 20,000.

County	Burgh	Present Population of Burgh	Court to consist of			
			Magistrates		Justices	Total Number of Court
			From each Burgh	Total of Magis- trates		
Aberdeen ...	Fraserburgh ...	10,444	3	6	6	12
	Peterhead ...	12,763	3			
Angus ...	Arbroath ...	19,511	2	8	8	16
	Brechin ...	7,264	2			
	Forfar ...	9,981	2			
	Montrose ...	10,762	2			
Argyll ...	Campbeltown ...	7,172	2	4	4	8
	Dunoon ...	9,940	2			
Ayr ...	Ardrossan ...	8,799	1	8	8	16
	Irvine ...	14,745	2			
	Largs ...	8,605	1			
	Prestwick ...	11,387	1			
	Saltcoats ...	13,108	2			
	Troon ...	10,063	1			
Banff ...	Buckie ...	7,703	3	3	3	6
Bute ...	Rothsay ...	10,141	3	3	3	6
Caithness ...	Wick ...	7,161	3	3	3	6
Clackmannan ...	Alloa ...	13,436	3	3	3	6
Dunbarton ...	Helensburgh ...	8,760	2	6	6	12
	Kirkintilloch ...	14,826	2			
	Milngavie ...	7,885	2			
	Cowdenbeath ...	13,151	2			
Fife ...	Leven ...	8,868	2	8	8	16
	Lochgelly ...	9,103	2			
	St. Andrews ...	9,457	2			
	Dalkeith ...	8,786	3			
Midlothian ...	Musselburgh ...	17,010	3	6	6	12
	Elgin ...	10,624	3	3	3	6
Moray ...	Barrhead ...	12,971	2	8	8	16
	Gourock ...	9,107	2			
	Johnstone ...	15,660	2			
	Renfrew ...	17,091	2			
	Hawick ...	16,717	3	3	3	6
Selkirk ...	Galashiels ...	12,496	3	3	3	6
	Grangemouth ...	15,432	2	4	4	8
Stirling ...	Kilsyth ...	9,922	2			
West Lothian ...	Bathgate ...	11,291	3	6	6	12
	Bo'ness ...	9,950	3			
Wigtown ...	Stranraer ...	8,618	3	3	3	6

Sections 32, 56,
111, 199.

SECOND SCHEDULE

FORMS OF CERTIFICATE

1

Form of certificate for hotel

The licensing court for the county [or licensing district or burgh, as the case may be,] of _____, at their general half-yearly meeting held at _____ on the _____ day of _____ nineteen hundred and _____, did authorise and empower A.B. (hereinafter referred to as "the certificate-holder"), residing at _____, to keep a hotel at _____, in the parish of _____ and county [or licensing district or burgh] aforesaid, and to sell by retail, under the appropriate excise licence, in the premises of the said hotel but not elsewhere, victuals, spirits, wine, porter, ale, beer, cider, perry and any other exciseable liquor [or victuals, wine, porter, ale, beer, cider and perry, or victuals, porter, ale, beer, cider and perry], and the certificate-holder is accordingly authorised and empowered to sell such victuals and exciseable liquor on the following conditions:—

- (1) the certificate-holder shall not fraudulently adulterate the victuals or exciseable liquor sold by him, or sell the same knowing them to have been fraudulently adulterated ;
- (2) the certificate-holder shall not sell any groceries or other uncooked provisions in the said premises for consumption off the premises ;
- (3) the certificate-holder shall not except during the permitted hours either by himself or by any servant or agent sell or supply to any person any exciseable liquor for consumption either on or off the premises save as allowed by law ;
- (4) the certificate-holder shall not open the premises for the sale of any exciseable liquor, or permit any drinking therein, or sell or supply any exciseable liquor, on Sunday except for the accommodation of lodgers and travellers ;
- (5) the certificate-holder shall not supply any exciseable liquor to persons apparently under fourteen years of age save as allowed by law ;
- (6) the certificate-holder shall not supply any exciseable liquor to persons who are in a state of intoxication ;
- (7) the certificate-holder shall not contravene any of the conditions of a special permission granted to him under section sixty of the Licensing (Scotland) Act, 1959 ;
- (8) the certificate-holder shall maintain good order in the premises ;
- (9) the certificate-holder shall not knowingly permit any breach of the peace, drunkenness or riotous or disorderly conduct in the premises ;
- (10) the certificate-holder shall not knowingly permit men or women of notoriously bad fame or girls or boys to assemble in the premises ;

- (11) the certificate-holder shall not permit any unlawful games in the premises ; and
- (12) the certificate-holder shall not himself be in a state of intoxication in the premises.

2ND SCH.
—cont.

This certificate shall have effect on the conditions aforesaid from the day of , nineteen hundred and , until the twenty-seventh day of May, nineteen hundred and , both days inclusive.

The above certificate is made out according to the deliverance in the register appointed to be kept in terms of section thirty-eight of the Licensing (Scotland) Act, 1959.

C.D.

Clerk.

2

Form of certificate for public house

The licensing court for the county [or licensing district or burgh, *as the case may be.*] of , at their general half-yearly meeting held at on the day of nineteen hundred and , did authorise and empower A.B. (hereinafter referred to as "the certificate-holder"), residing at , to keep a public house at in the burgh of and county [or licensing district or burgh] aforesaid, and to sell by retail, under the appropriate excise licence, in the premises of the said public house but not elsewhere, victuals, spirits, wine, porter, ale, beer, cider, perry and any other exciseable liquor [or victuals, wine, porter, ale, beer, cider and perry, or victuals, porter, ale, beer, cider and perry], and the certificate-holder is accordingly authorised and empowered to sell such victuals and exciseable liquor on the following conditions:—

- (1) the certificate-holder shall not fraudulently adulterate the victuals or exciseable liquor sold by him, or sell the same knowing them to have been fraudulently adulterated ;
- (2) the certificate-holder shall not sell any groceries or other uncooked provisions in the said premises for consumption off the premises ;
- (3) the certificate-holder shall not except during the permitted hours either by himself or by any servant or agent sell or supply to any person any exciseable liquor for consumption either on or off the premises save as allowed by law ;
- (4) the certificate-holder shall not open the premises for the sale of liquor of any kind, or permit any drinking therein, or sell or supply any liquor of any kind or any other goods or commodities, on Sunday ;
- (5) the certificate-holder shall not sell or supply any exciseable liquor to persons apparently under fourteen years of age save as allowed by law ;
- (6) the certificate-holder shall not sell or supply any exciseable liquor to persons who are in a state of intoxication ;

2ND SCH.
—cont.

- (7) the certificate-holder shall not receive or take in, as the price or for the supply of any exciseable liquor, any wearing apparel or other goods;
- (8) the certificate-holder shall not contravene any of the conditions of a special permission granted to him under section sixty of the Licensing (Scotland) Act, 1959;
- (9) the certificate-holder shall maintain good order in the premises;
- (10) the certificate-holder shall not knowingly permit any breach of the peace, drunkenness or riotous or disorderly conduct in the premises;
- (11) the certificate-holder shall not knowingly permit men or women of notoriously bad fame or girls or boys to assemble in the premises;
- (12) the certificate-holder shall not permit any unlawful games in the premises; and
- (13) the certificate-holder shall not himself be in a state of intoxication in the premises.

This certificate shall have effect on the conditions aforesaid from the day of , nineteen hundred and , until the twenty-seventh day of May, nineteen hundred and , both days inclusive.

The above certificate is made out according to the deliverance in the register appointed to be kept in terms of section thirty-eight of the Licensing (Scotland) Act, 1959.

C.D.

Clerk.

3

Form of off-sale certificate

The licensing court for the county [*or* licensing district *or* burgh, as the case may be.] of , at their general half-yearly meeting held at on the day of , nineteen hundred and , did authorise and empower A.B. (hereinafter referred to as "the certificate-holder"), residing at , to keep premises at , in the parish of and county [*or* licensing district *or* burgh] aforesaid, and to sell by retail, under the appropriate excise licence, in the said premises but not elsewhere, spirits, wine, porter, ale, beer, cider, perry and any other exciseable liquor [*or* wine, porter, ale, beer, cider and perry, *or* porter, ale, beer, cider and perry], and the certificate-holder is accordingly authorised and empowered to sell such exciseable liquor on the following conditions:—

- (1) the certificate-holder shall not fraudulently adulterate any exciseable liquor sold by him, or sell such liquor knowing it to have been fraudulently adulterated;
- (2) the certificate-holder shall not traffic in or supply any exciseable liquor for consumption on the said premises;

- (3) the certificate-holder shall not except during the permitted hours either by himself or by any servant or agent sell or supply to any person any exciseable liquor save as allowed by law ;
- (4) the certificate-holder shall not open the premises for business or for the sale of liquor of any kind or of any other goods or commodities, or sell or supply any liquor of any kind or any other goods or commodities, on Sunday ;
- (5) the certificate-holder shall not sell or supply any exciseable liquor to persons apparently under fourteen years of age save as allowed by law ;
- (6) the certificate-holder shall not sell or supply any exciseable liquor to persons who are in a state of intoxication ;
- (7) the certificate-holder shall not receive or take in, as the price or for the supply of any exciseable liquor, any wearing apparel or other goods ;
- (8) the certificate-holder shall maintain good order in the premises ;
- (9) the certificate-holder shall not knowingly permit any breach of the peace, drunkenness or riotous or disorderly conduct in the premises ; and
- (10) the certificate-holder shall not himself be in a state of intoxication in the premises.

2ND SCH.
—cont.

This certificate shall have effect on the conditions aforesaid from the day of , nineteen hundred and , until the twenty-seventh day of May, nineteen hundred and , both days inclusive.

The above certificate is made out according to the deliverance in the register appointed to be kept in terms of section thirty-eight of the Licensing (Scotland) Act, 1959.

C.D.

Clerk.

THIRD SCHEDULE

Sections 34, 43,
45, 48.

FORMS FOR USE IN CONNECTION WITH APPLICATIONS FOR CERTIFICATES

1.

Form of application for grant of certificate

Unto the honourable the licensing court for

The application of [*state full name, designation, and address of applicant*]

Humbly sheweth,

That the applicant desires to obtain a certificate for a hotel [*or a certificate for a public house or an off-sale certificate in respect of premises, as the case may be,*] at [*state address of premises for which certificate is desired*] in the parish [*or burgh*] of , and county, of , for the ensuing year [*or half-year, as*

3RD SCH.
—cont.

the case may be], in terms of the Licensing (Scotland) Act, 1959, and refers to the answers which are truly made to the questions below:

Is it a new certificate, or the renewal of a certificate at present in the applicant's name, or the renewal of a certificate at present in the name of another person, or the renewal of a transferred certificate, that is desired?.....

Has the applicant attained twenty-one years of age?.....

Is the applicant bred to the trade or, if not, to what other trade or business?.....

Does the applicant carry on or does he intend to carry on or follow any other trade or occupation?.....

Does the applicant hold an excise licence for the sale of exciseable liquor in respect of any premises at present and, if so, where are those premises situated and how long has he held that licence?.....

Has the applicant any interest in any other business in premises for which an excise licence for the sale of exciseable liquor is held or in premises for which a certificate is sought; and if so, where are those premises severally situated?

What is the actual rent of the premises and the owner's or factor's name and designation?

[Signature of applicant.]

Date.

2.

Form of report by member of licensing court

I, _____, a member of the licensing court for _____, hereby report that I personally examined the premises described in the foregoing application and that they are of suitable construction and accommodation for the purpose applied for.

[Signature of member.]

3.

Form of certificate of character and qualification

I, _____, a member of the licensing court for _____, certify, after careful inquiry, that _____ designed in the foregoing application, is [*here state result of inquiry touching applicant's character and qualification*].

[Signature of member.]

FOURTH SCHEDULE

Sections 35, 38,
47.

FORMS FOR USE BY CLERKS TO LICENSING COURTS

1.

Form of list of applications for publication

List of applicants to the licensing court for the county [or licensing district or burgh, as the case may be] of _____ for certificates for the sale by retail of exciseable liquor.

Name, designation and address of applicant	Address of premises for which certificate is desired	Form of certificate applied for	Name and address of landlord or factor of premises

*For new certificate**By new tenants or occupants**For renewal of transferred certificate*

--	--	--	--

2.

Form of register of applications

Nos.	Names and designations of applicants	I. For hotels, and where situated	II. For public houses, and where situated	III. For off-sale premises, and where situated	Persons recommending applicants	How disposed of	Applications for confirmation and appeals, and results thereof	Convictions under Licensing (Scotland) Act, 1959, and dates thereof
1.								
2.								

Note: The names and designations of new applicants for certificates must be entered separately in the register.

4TH SCH.
—cont.

3.

Deliverance

[At the end of each day's register]

At

[date]

Numbers 2, 3, 6 [as the case may be] granted.

Numbers 1, 4, 5 refused.

Numbers 7, 8 continued [or otherwise disposed of].

4.

Form of notice of transfer of certificate

[Place and date.] Whereas A.B., designed in the within certificate, being a certificate for keeping a at in which exciseable liquor may be sold by retail, has

and whereas C.D. [here state qualification for the transfer] desires to have the said certificate transferred to him in order that he may carry on such business in the said premises : and whereas it is considered by the licensing court [or, as the case may be, by us, two of the members of the licensing court] for the county [or licensing district or burgh, as the case may be,] of that he is a fit person to hold a certificate, we hereby transfer the said certificate to him accordingly, subject to all the conditions therein specified, to be held by him in the same manner as if he were the person to whom it was originally granted ; and the said certificate as so transferred shall, subject to the provisions of the Licensing (Scotland) Act, 1959, and subject as aftermentioned, cease to have effect on the expiry of [the twenty-seventh day of May or the twenty-seventh day of November, as the case may be,] ; and the said certificate as so transferred shall, unless presented for entry at the office of Customs and Excise within the period of days from this date, cease to have effect on the expiry of the said period.

[Signature of clerk to the licensing court, or of two members of the licensing court, as the case may be.]

FIFTH SCHEDULE

Section 50.

FORMS RELATING TO CONFIRMATION OF CERTIFICATES

1

Form of application for confirmation of new certificate

To the court of appeal from the licensing court for the county [or licensing district or burgh, as the case may be,] of

I, A.B., hereby apply for confirmation of the grant made to me of the certificate herewith produced by the above mentioned licensing court on the day of nineteen hundred and

[Signed, A.B.,

or

C.D., solicitor to A.B.]

2

5TH SCH.
—cont.*Form of notice of confirmation of new certificate*

This certificate was confirmed by the court of appeal from the licensing court for the county [or licensing district or burgh, as the case may be.] of _____, at a meeting held on the _____ day of _____, nineteen hundred and _____.

The above confirmation is made out according to the deliverance in the register appointed to be kept in terms of section thirty-eight of the Licensing (Scotland) Act, 1959.

G.H.,
Clerk.

SIXTH SCHEDULE

Sections 66, 68.

GRANT AND TRANSFER OF LICENCES UNDER
PART III OF THIS ACT

PART I

APPLICATIONS FOR GRANT OF LICENCES

1.—(1) The applicant for the grant of a licence under Part III of this Act shall, not less than twenty-one days before the hearing of the application, give notice in writing of the application to the chief constable and the clerk to the licensing court and serve both of them with a copy of—

- (i) the certificate of the Minister of Transport and Civil Aviation,
- (ii) the draft rules which it is proposed to make as respects the persons entitled to use the canteen,
- (iii) a plan of the canteen and particulars of the means of access to the canteen and of the sanitary accommodation for persons using the canteen.

(2) The clerk to the licensing court shall, at least ten days before the hearing of the application, make out and advertise notice of the application in one or more newspapers circulating in the licensing area.

(3) A notice under this paragraph shall state the name and address of the person who is to be the holder of the licence, the kind of retailer's on-licence which is desired and the situation of the canteen.

2. Where an applicant has, through inadvertence or misadventure, failed to comply with the foregoing paragraph, the licensing court may, upon such terms as they think fit, postpone consideration of his application and, if upon any such postponed consideration they are satisfied that any terms so imposed have been complied with, may deal with the application as if that paragraph had been complied with.

6TH SCH.
—cont.**PART II****APPLICATIONS FOR AND GRANT OF PROVISIONAL LICENCES**

3. The provisions of Part III of this Act relating to the grant of a licence, and the foregoing provisions of this Schedule, shall apply in relation to the grant of a provisional licence subject to the modifications specified in this Part of this Schedule.

4.—(1) A notice under paragraph 1 of this Schedule need not state the name and address of the person who is to be the holder of the licence, and references in that paragraph to the canteen shall be taken as references to the proposed canteen after the construction or conversion has been carried out.

(2) Paragraph (a) of subsection (1) of section sixty-six of this Act shall be omitted and the reference in paragraph (b) of that subsection to the premises shall be taken as a reference to those premises when the construction or conversion has been carried out.

5.—(1) A provisional licence shall not come into force until the licensing court have made it final.

(2) The licensing court shall not refuse an application to make a provisional licence final except on either or both of the following grounds, that is to say—

(a) that the canteen has not been constructed or converted in accordance with the plan served on the clerk to the licensing court, or

(b) that the person to whom the licence is to be granted is disqualified by or under this or any other enactment for holding a certificate or is in other respects not a fit and proper person to hold a licence under Part III of this Act.

(3) An applicant under this paragraph shall give such notices as the licensing court may require.

PART III**APPLICATIONS FOR TRANSFERS**

6.—(1) A person applying to the licensing court or any members thereof for the transfer of a licence under Part III of this Act shall, not less than seven days before the hearing of the application, give notice in writing to the chief constable.

(2) A notice under this paragraph shall state the name and address of the person to whom the licence is proposed to be transferred and his trade or calling during the six months preceding the giving of the notice.

7. Paragraph 2 of this Schedule shall apply in relation to the last foregoing paragraph as it applies in relation to paragraph 1 of this Schedule.

SEVENTH SCHEDULE

Sections 74, 80.

COMMITTEE FOR NEW TOWN

1. A committee constituted under section seventy-four of this Act shall consist of—

- (a) a chairman appointed by the Secretary of State as being an independent person ;
- (b) members appointed by the development corporation for the new town for which the committee are constituted or, if the committee are constituted for more than one new town, by the development corporations for each of the new towns in such proportions as the Secretary of State may by order specify ;
- (c) members appointed from among their number by the licensing court for the licensing area in which is situated the area for which the committee are constituted or, if the last-mentioned area is situated in more than one licensing area, by the licensing court for each of those licensing areas in such proportions as the Secretary of State may by order specify :

Provided that, where the area for which the committee are constituted comprises part only of a licensing area, and it appears to the Secretary of State that, by reason of the small extent of that part of the licensing area and having regard to its nature, the licensing court have insufficient interest in the working of the committee to justify their representation on it, it shall not be necessary for the committee to include any member of the licensing court for that licensing area.

2. The members of a committee appointed under sub-paragraphs (b) and (c) of the foregoing paragraph shall be equal in number ; but except as aforesaid the number of members shall be determined by order of the Secretary of State.

3. The appointment of a member of any such committee shall be for such term, not exceeding three years, as may be determined by or under an order of the Secretary of State, with or without eligibility for re-appointment, as may be so determined, and shall be subject to such conditions as may be so determined.

4. The quorum of any such committee shall be such as the Secretary of State may by order determine.

5. If the votes are equal on any question the chairman shall have a casting vote ; but except as aforesaid the chairman shall not vote.

6. Subject to the provisions of the last two foregoing paragraphs, the procedure of any such committee shall be such as the committee may determine.

Section 81.

**EIGHTH SCHEDULE
STATE MANAGEMENT DISTRICTS****PART 1****EXTENT OF DISTRICTS**

The Cromarty Firth district:—

The burghs of Cromarty, Dingwall and Invergordon, and the parishes of Rosskeen, Alness, Kiltearn, Dingwall, Urquhart, Resolis, Cromarty and Fodderty (except that part of that parish which immediately before the coming into operation of section nine of the Water (Scotland) Act, 1949, was known as the special water district of Strathpeffer), in the county of Ross and Cromarty.

The Gretna district:—

The burgh of Annan, and the parishes of Annan, Canonbie, Cummertrees, Dornock, Gretna, Half Morton, Hoddum, Kirkpatrick-Fleming and Middlebie, in the county of Dumfries.

PART II**ANCILLARY FUNCTIONS EXERCISABLE BY SECRETARY OF STATE**

1. The provision and maintenance in a State management district of hotels where accommodation and meals are provided and exciseable liquor is sold.

2. The provision and maintenance in a State management district of premises where meals and refreshments may be obtained, whether or not exciseable liquor is sold in the premises.

3. The provision of entertainment or recreation at premises in a State management district provided by the Secretary of State for the sale of exciseable liquor, meals or refreshments.

4.—(1) The brewing of beer (as defined in section three hundred and seven of the Customs and Excise Act, 1952), the blending, reducing or bottling of any exciseable liquor and, if the Secretary of State so orders and during such period as may be specified in the order, the manufacture of table waters, that is to say, aerated waters and beverages sold or kept for sale in bottles, other than—

(a) liquors for the sale of which an excise licence is required, or

(b) syrups or other liquors intended to be consumed only in a diluted form,

for sale in, or to persons in, a State management district.

(2) The power to make orders conferred on the Secretary of State by this paragraph shall be construed as including a power, exercisable in the like manner and subject to the like conditions, to vary or revoke any such order, and any order made under this paragraph shall be subject to annulment by resolution of either House of Parliament.

5. The provision and maintenance of storage accommodation, and the provision of transport, in connection with the carrying on of any activity referred to in the foregoing provisions of this Part of this Schedule.

8TH SCH.
—cont.

6. The carrying on of any business which, by reason of being carried on outside the State management districts, does not fall within section eighty-one of this Act or the foregoing provisions of this Schedule, so long as the business is carried on in the premises in which immediately before the thirtieth day of July, nineteen hundred and forty-nine, it was being carried on on behalf of the Secretary of State in pursuance of any of the provisions of Part II of the Licensing Act, 1921, or the Third Schedule to that Act.

7. The carrying on of such activities and the doing of such things (including, without prejudice to the generality of this paragraph, the purchase of the whole or any part of any business and the assets and liabilities thereof) incidental to any of the activities specified in section eighty-one of this Act and the foregoing provisions of this Schedule as appear to the Secretary of State expedient.

PART III

SUPPLEMENTAL PROVISIONS AS TO EXERCISE OF FUNCTIONS OF SECRETARY OF STATE

8. Notwithstanding anything in the enactments relating to the sale and supply of exciseable liquor, to the sale of tobacco and to entertainment and recreation, any of the activities specified in section eighty-one of this Act and the foregoing provisions of this Schedule may be carried on by or on behalf of the Secretary of State, in premises occupied by him, without the need for any licence or certificate, and shall not be subject to any restrictions imposed by law on the carrying on of such activities :

Provided that—

- (a) any person engaged in any such activity on behalf of the Secretary of State shall be subject to any statutory provisions affecting the holders of licences or certificates, and the occupiers of premises licensed, for that activity in like manner as if he were the holder of the appropriate licence or certificate, and to any restrictions imposed by law on persons carrying on that activity ; and
- (b) where in any area as defined by section one hundred and twenty of this Act, being an area situated in whole or in part in a State management district, a resolution has been adopted as a result of a poll taken under Part VIII of this Act, the Secretary of State shall give effect to that resolution in that area or, as the case may be, in such part thereof as is situated in a State management district.

Sections 113.
117.

NINTH SCHEDULE

TEMPERANCE POLL FORMS

1

Form of Requisition for Temperance Poll

We, the subscribers hereto, being electors in [*here insert area for which the poll is demanded*] do hereby demand a temperance poll in accordance with the provisions of Part VIII of the Licensing (Scotland) Act, 1959.

Signature	Name in full	Full address	Number on register

2

Form of Ballot Paper

(Ballot Paper for [*here insert name of area*].)

Counterfoil No.	1	NO-CHANGE RESOLUTION (means that the powers and discretion of the licensing court shall remain unchanged).
	2	LIMITING RESOLUTION (means that the number of certificates for the sale by retail of exciseable liquor shall be reduced by one quarter in accordance with the provisions of Part VIII of the Licensing (Scotland) Act, 1959).
	3	NO-LICENCE RESOLUTION (means that no certificate for the sale by retail of exciseable liquor shall be granted except for hotels or restaurants in special cases in accordance with the provisions of Part VIII of the Licensing (Scotland) Act, 1959).

Indicate your vote by making a **X** in the right-hand space opposite the resolution for which you vote. You have one vote, and may vote for one resolution only. If you vote for the no-licence resolution and that resolution is not adopted your vote will then be counted as a vote in favour of the limiting resolution.

TENTH SCHEDULE

Sections 169,
171.

FORMS RELATING TO REGISTRATION OF CLUBS

1

*Form of statement to accompany application by club for
grant or renewal of certificate of registration*

We, [here state names
and qualifications for making statement] [where necessary add
and I, owner of the premises
to be occupied [or occupied] by the club hereinafter mentioned]
hereby certify that to the best of our knowledge and belief the
club designated in the accompanying
application is to be [or, in the case of an application by an existing
club, has been and is to be] conducted as a bona fide club, and not
mainly for the supply of exciseable liquor.

[Signature, date, and address of each person certifying, to be here
inserted.]

2

*Form of certificate of registration of clubs to be granted under this
Act*

Certificate of Registration

I, , sheriff clerk of
registrar of clubs, hereby certify that the club of
[here insert registered postal address of all premises used by the club]
is registered under the Licensing (Scotland) Act, 1959. This certi-
ficate shall remain in force until the day of
, 19 ; application for its renewal must be
made not later than the day of , 19 .

Given under my hand this day of
19 .

Registrar of Clubs.

ELEVENTH SCHEDULE

NOTICE OF CONVICTION OF BREACH OF A CERTIFICATE FOR
WHICH THE CERTIFICATE HAS BEEN FORFEITED

Section 193.

Unto the Honourable the Commissioners of Customs and Excise [or,
To the Collector of Customs and Excise of collection in
Scotland, as the case may be].

This is to certify that C.D. of in the county
[or burgh] of was, on the day of
nineteen hundred and , at , convicted
before G.H. Esquire and J.K. Esquire, two of Her Majesty's justices
of the peace for [or, as the case may be],
of a breach of the certificate granted to him to keep a hotel [or, as
the case may be], at [insert address of premises for which certificate
granted]; and the said certificate has by the aforesaid justices [or,
as the case may be,] been declared forfeited.

Given under my hand, this day of
nineteen hundred and .

S.K., Clerk to the licensing court for .

Section 200.

TWELFTH SCHEDULE

ENACTMENTS REPEALED

Session and Chapter	Short Title	Extent of Repeal
34 & 35 Vict. c. 112.	The Prevention of Crimes Act, 1871.	In section ten the words "any lodging-house, beer-house, public house, or other house or place where intoxicating liquors are sold, or" and the words "for the sale of any intoxicating liquors, or".
3 Edw. 7. c. 25.	The Licensing (Scotland) Act, 1903.	Sections one to sixty-nine; in section seventy, the words "or on any licensed premises", wherever they occur; section seventy-two; sections seventy-four to ninety; section ninety-one except so far as applying in relation to offences under section seventy; sections ninety-two and ninety-three; section ninety-four except so far as applying in relation to offences under section seventy; sections ninety-five to one hundred; sections one hundred and one to one hundred and five except so far as applying in relation to offences under section seventy; section one hundred and six; section one hundred and seven except the definitions of "constable" and "magistrate" contained therein; section one hundred and ten; the First to the Twelfth Schedules.
3 & 4 Geo. 5. c. 33.	The Temperance (Scotland) Act, 1913.	The whole Act.
11 & 12 Geo. 5. c. 42.	The Licensing Act, 1921 ...	The whole Act.
13 & 14 Geo. 5. c. 28.	The Intoxicating Liquor (Sale to Persons under Eighteen) Act, 1923.	The whole Act.
24 & 25 Geo. 5. c. 26.	The Licensing (Permitted Hours) Act, 1934.	The whole Act.
1 Edw. 8. & 1 Geo. 6. c. 37.	The Children and Young Persons (Scotland) Act, 1937.	Section seventeen.
5 & 6 Geo. 6. c. 21.	The Finance Act, 1942 ...	In section ten, in subsection (1), the words "this and" and "and in the Sixth Schedule to this Act" and subsections (2) to (7).
7 & 8 Geo. 6. c. 23.	The Finance Act, 1944 ...	Part II of the Sixth Schedule. Section nine.

12TH SCH.
—cont.

Session and Chapter	Short Title	Extent of Repeal
9 & 10 Geo. 6. c. 64.	The Finance Act, 1946 ...	Section thirteen.
10 & 11 Geo. 6. c. 43.	The Local Government (Scotland) Act, 1947.	Section three hundred and sixty-five.
11 & 12 Geo. 6. c. 65.	The Representation of the People Act, 1948.	Section sixty-three and, in the Seventh Schedule, the amendments of the Licensing (Scotland) Act, 1903, the Temperance (Scotland) Act, 1913, the Licensing Act, 1921 and the Licensing (Permitted Hours) Act, 1934.
12, 13 & 14 Geo. 6. c. 59.	The Licensing Act, 1949 ...	The whole Act, except subsection (1) of section four, subsection (4) of section forty-two and subsection (1) of section forty-three.
15 & 16 Geo. 6. c. 44.	The Customs and Excise Act, 1952.	In section one hundred and fifty-one, in subsection (2), paragraph (b) and the proviso.
15 & 16 Geo. 6. & 1 Eliz. 2. c. 65.	The Licensed Premises in New Towns Act, 1952.	The whole Act.
2 & 3 Eliz. 2. c. 11.	The Licensing (Seamen's Canteens) Act, 1954.	The whole Act.
4 & 5 Eliz. 2. c. 37.	The Licensing (Airports) Act, 1956.	The whole Act.
4 & 5 Eliz. 2. c. 42.	The Occasional Licences and Young Persons Act, 1956.	The whole Act.

Table of Statutes referred to in this Act

Short Title	Session and Chapter
Ordnance Board Transfer Act, 1855	18 & 19 Vict. c. 117.
Citation Amendment (Scotland) Act, 1882	45 & 46 Vict. c. 77.
Interpretation Act, 1889	52 & 53 Vict. c. 63.
Burgh Police (Scotland) Act, 1892	55 & 56 Vict. c. 55.
Local Government (Scotland) Act, 1894... ..	57 & 58 Vict. c. 58.
Merchant Shipping Act, 1894	57 & 58 Vict. c. 60.
Inebriates Act, 1898	61 & 62 Vict. c. 60.
Licensing (Scotland) Act, 1903	3 Edw. 7. c. 25.
Temperance (Scotland) Act, 1913	3 & 4 Geo. 5. c. 33.
Acquisition of Land (Assessment of Compensation) Act, 1919	9 & 10 Geo. 5. c. 57.
Licensing Act, 1921	11 & 12 Geo. 5. c. 42.
Statutory Instruments Act, 1946	9 & 10 Geo. 6. c. 36.
New Towns Act, 1946	9 & 10 Geo. 6. c. 68.
Acquisition of Land (Authorisation Procedure) (Scotland) Act, 1947	10 & 11 Geo. 6. c. 42.
Local Government (Scotland) Act, 1947	10 & 11 Geo. 6. c. 43.
Town and Country Planning (Scotland) Act, 1947	10 & 11 Geo. 6. c. 53.
Local Government Act, 1948	11 & 12 Geo. 6. c. 26.
Water (Scotland) Act, 1949	12, 13 & 14 Geo. 6. c. 31.
Lands Tribunal Act, 1949	12, 13 & 14 Geo. 6. c. 42.
Licensing Act, 1949	12, 13 & 14 Geo. 6. c. 59.
Customs and Excise Act, 1952	15 & 16 Geo. 6. & 1 Eliz. 2. c. 44.
Police (Scotland) Act, 1956	4 & 5 Eliz. 2. c. 26.
Finance Act, 1956	4 & 5 Eliz. 2. c. 54.

CHAPTER 52

An Act to empower the Minister of Pensions and National Insurance to make orders increasing any of the amounts specified in paragraph 3 or 5 of the Second Schedule to the National Assistance Act, 1948, and making certain consequential provision.

[9th July, 1959]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power to increase certain disregards.
11 & 12 Geo. 6. c. 29.

1.—(1) The Minister of Pensions and National Insurance, after consultation with the National Assistance Board, may by order amend the Second Schedule to the National Assistance Act, 1948 (which sets out rules as to disregarding certain assets in computing resources) by increasing any of the amounts for the